

# Table of Authorities — Consolidated

Every case, statute and text cited across the 263-decision corpus · 418 authorities, grouped by forum

Supreme Court of India (296)   Allahabad High Court (84)   Other High Courts (25)   Statutes, Tribunals, Treatises & Other (13)

## Supreme Court of India 296 authorities · 338 citations

|                                                                                                                                                                                                           |          |           |                                                                                                                                            |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------|
| <i>M/s Isha Marbles v. Bihar State Electricity Board</i> 1995 SCC (2) 648 · Supreme Court                                                                                                                 |          |           |                                                                                                                                            |
| PROPOSITION Section 24 of the Indian Electricity Act, 1910 confers a statutory right on the Board to cut off supply for non-payment, without prejudice to (and not limited by) its separate right to sue. |          |           |                                                                                                                                            |
| CITED IN                                                                                                                                                                                                  | CITED BY | TREATMENT | HOW TREATED                                                                                                                                |
| SCJ-122 Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others                                                                                                                                        | Court    | Followed  | Applied to hold s.24's demand/recovery power is not time-barred merely because a suit-based recovery might be subject to civil limitation. |
| SCJ-127 Special Officer, Commerce, North Eastern Electricity Company of Orissa (NESCO) & Anr. v. M/s Raghunath Paper Mills Private Limited & Anr.                                                         | Court    | Followed  | Followed as foundational authority.                                                                                                        |

|                                                                                                                                            |          |           |             |
|--------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <i>M/S Lipton India Ltd. &amp; Others v. Union of India &amp; Others</i> JT 1994 (6) SC 71 · Supreme Court                                 |          |           |             |
| PROPOSITION Though no limitation period is prescribed for Article 226 petitions, they should ordinarily be filed within a reasonable time. |          |           |             |
| CITED IN                                                                                                                                   | CITED BY | TREATMENT | HOW TREATED |
| SCJ-068 M/S Three Star Paper Mills Pvt. Ltd. v. State of U.P. & 5 Ors.                                                                     | Court    | Relied on | Relied on.  |

|                                                                                                                                                                                                                                             |          |           |                                                                                                                                                             |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <i>M/s Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.</i> AIR 1979 SC 621 · Supreme Court                                                                                                                                              |          |           |                                                                                                                                                             |
| PROPOSITION Waiver means the intentional abandonment of a right and must be made with full knowledge of the right; there is no presumption that every person knows the law, so a right cannot be treated as waived without knowledge of it. |          |           |                                                                                                                                                             |
| CITED IN                                                                                                                                                                                                                                    | CITED BY | TREATMENT | HOW TREATED                                                                                                                                                 |
| SCJ-153 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                                                                        | Court    | Relied on | Quoted within the Amrawati Devi extract and relied on: absent intimation of the Clause 5.6(c)(iii) option, the consumer cannot be deemed to have waived it. |

|                                                                                                                                                                                |          |           |                                                                                  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------------|
| <i>M/s Popcorn Entertainment v. City Industrial Development Corporation</i> JT 2007 (4) SC 70 · Supreme Court                                                                  |          |           |                                                                                  |
| PROPOSITION A writ may be entertained despite an alternative remedy where the action is without jurisdiction, or in breach of natural justice, or violates fundamental rights. |          |           |                                                                                  |
| CITED IN                                                                                                                                                                       | CITED BY | TREATMENT | HOW TREATED                                                                      |
| SCJ-040 Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.                                                                                                                           | Court    | Referred  | Referred (through Ashok Kumar) for the three exceptions, held inapplicable here. |

**Smt. Shakuntala Devi v. Delhi Electric Supply Undertaking & Ors.** (1995) 2 SCC 369 · Supreme Court

**PROPOSITION** A statutory electricity authority has a duty to maintain its electric installations and lines in proper condition so as to avoid any threat to the lives of people.

| CITED IN                                                                                         | CITED BY | TREATMENT | HOW TREATED                                          |
|--------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------|
| <b>SCJ-019</b> Divisional Engineer, Electricity Distribution Division-I v. Raman Singh & Another | Court    | Relied on | Relied on to fix the licensee's duty and negligence. |

**Shri Sitaram Sugar Company Ltd. & Anr. v. Union of India & Ors.** (1990) 3 SCC 223 · Supreme Court

**PROPOSITION** Any act of the repository of power is open to challenge if in conflict with the Constitution, the governing Act, or general principles of law, or so arbitrary/unreasonable that no fair-minded authority could have made it.

| CITED IN                                                                                                            | CITED BY   | TREATMENT     | HOW TREATED                                                                 |
|---------------------------------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------------------------------------|
| <b>SCJ-061</b> M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. | Petitioner | Distinguished | Held inapplicable to justify bypassing the alternative remedy on the facts. |

**M/s Swastic Industries v. Maharashtra State Electricity Board** 1997 (9) SCC 465 · Supreme Court

**PROPOSITION** There is no limitation for making a demand by way of supplementary bill under s.24 of the 1910 Act; the right to file suit is a separate option, not a precondition; the word 'due' should be given a wide, commercially-honest meaning.

| CITED IN                                                                  | CITED BY | TREATMENT | HOW TREATED                                                                                                  |
|---------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------|
| <b>SCJ-122</b> Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others | Court    | Followed  | Followed as directly on point for the 'no limitation on demand' proposition and the interpretation of 'due'. |

**M/s Womb Laboratories Pvt. Ltd. v. Vijay Ahuja** Criminal Appeal Nos. 1382-1383 of 2019, decided 11.9.2019 · Supreme Court

**PROPOSITION** That cheques were given by way of security, and whether they secured any debt or liability, are matters of defence to be proved at trial, not grounds to quash at the threshold.

| CITED IN                                                    | CITED BY | TREATMENT | HOW TREATED |
|-------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-132</b> Sunil Todi & Ors. v. State of Gujarat & Anr. | Court    | Followed  | Followed.   |

**A.I. Champdany Industries Ltd. (municipal dues case)** Supreme Court

**PROPOSITION** Municipal dues, being unsecured and not within the purview of Crown debt, do not have priority/charge over a company's assets on liquidation sale.

| CITED IN                                                    | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                    |
|-------------------------------------------------------------|------------|---------------|--------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-098</b> Palika Towns LLP v. State of U.P. & 2 Others | Petitioner | Distinguished | Distinguished – concerned unsecured municipal dues without a charge, unlike the lease deed's express first-charge clause here. |

|                                                                                                                         |          |           |                               |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------|
| <b>A.I.S.B. Officers Federation &amp; Others v. Union of India &amp; Others</b> JT 1996 (8) SC 550 · Supreme Court      |          |           |                               |
| PROPOSITION A petitioner cannot raise mala fide allegations against persons who have not been impleaded as respondents. |          |           |                               |
| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED                   |
| SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.                             | Court    | Relied on | Relied on to the same effect. |

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |            |           |                                                                                                                                                                                         |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>A.R. Antulay v. R.S. Nayak and 38 further authorities on statutory interpretation, precedent (sub silentio/per incuriam), vires of delegated legislation, and harmonious construction (incl. Kunj Behari Lal Butail v. State of H.P.; Global Energy Ltd. v. CERC; State of T.N. v. P. Krishnamurthy; J.K. Cotton Spinning &amp; Weaving Mills v. State of U.P.; PTC India v. CERC)</b> (1988) 2 SCC 602 and others (omnibus list, paras 36 & 42) · Supreme Court (mostly) |            |           |                                                                                                                                                                                         |
| PROPOSITION General canons of statutory interpretation and administrative law (reading a statute as a whole vs. section-by-section; ultra vires/consistency of subordinate legislation with the parent Act; precedential weight of a decision not engaging a specific provision) cited in support of the rival vires arguments.                                                                                                                                              |            |           |                                                                                                                                                                                         |
| CITED IN                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | CITED BY   | TREATMENT | HOW TREATED                                                                                                                                                                             |
| SCJ-043 Kisan Cold Storage & Ice Factory v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors. (Full Bench reference)                                                                                                                                                                                                                                                                                                                                                             | Petitioner | Referred  | Not individually discussed – the Court held the text of Section 42(5)-(7) and Rule 7 to be clear and unambiguous, so canvassing the case law would 'unnecessarily burden' the judgment. |

|                                                                                                                                                                                                             |          |           |                                              |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------|
| <b>A.V. Venkateswaran, Collector of Customs v. Ramchand Sobhraj Wadhwani</b> AIR 1961 SC 1506 · Supreme Court (Constitution Bench)                                                                          |          |           |                                              |
| PROPOSITION The exceptions to the alternative-remedy rule are not exhaustive; a discretion vests in the High Court to entertain a petition and grant relief notwithstanding an adequate alternative remedy. |          |           |                                              |
| CITED IN                                                                                                                                                                                                    | CITED BY | TREATMENT | HOW TREATED                                  |
| SCJ-153 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                                        | Court    | Referred  | Noticed within the quoted Whirlpool extract. |

|                                                                                                                                                                |          |           |             |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>Additional District Magistrate (Rev.), Delhi Admn. v. Siri Ram</b> (2000) 5 SCC 451 · Supreme Court                                                         |          |           |             |
| PROPOSITION Conferment of rule-making power does not enable the delegate to make rules travelling beyond, inconsistent with, or repugnant to the enabling Act. |          |           |             |
| CITED IN                                                                                                                                                       | CITED BY | TREATMENT | HOW TREATED |
| SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                               | Court    | Followed  | Followed.   |

|                                                                                                                                                                             |            |               |                                                                                                                    |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|---------------|--------------------------------------------------------------------------------------------------------------------|
| <b>Ahmedabad Electricity Co. Ltd. v. Gujarat Inns (P) Ltd.</b> (2004) SCC 587 (as cited) · Supreme Court                                                                    |            |               |                                                                                                                    |
| PROPOSITION Past electricity dues are not a charge over the property; the auction-purchaser may seek supply of energy without being saddled with the previous owner's dues. |            |               |                                                                                                                    |
| CITED IN                                                                                                                                                                    | CITED BY   | TREATMENT     | HOW TREATED                                                                                                        |
| SCJ-225 Raman Ispat (Pvt.) Ltd. & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                    | Petitioner | Distinguished | Cited by the petitioner alongside Isha Marbles; not applied to defeat the licensee's stipulation given DUS Steels. |

**Ahmedabad Electricity Co. Ltd. v. Gujarat Inns Pvt. Ltd. & Ors.** AIR 2004 SC 2171 · Supreme Court (Three-Judge Bench)

**PROPOSITION** In the absence of any statutory provision, an auction-purchaser applying for a fresh connection cannot be fastened with the previous owner's electricity dues, and a fresh connection cannot be denied on that ground.

| CITED IN                                                                                                                                                 | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                       |
|----------------------------------------------------------------------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-012</b> Chandra Prakash Gupta v. State of U.P. & 3 Others                                                                                         | Petitioner | Distinguished | Distinguished “ held inapplicable after Clause 4.1 of the 2005 Code supplied the statutory provision it presupposed to be absent. |
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others                         | Petitioner | Relied on     | Relied on by the petitioner as foundational auction-purchaser precedent.                                                          |
| <b>SCJ-127</b> Special Officer, Commerce, North Eastern Electricity Company of Orissa (NESCO) & Anr. v. M/s Raghunath Paper Mills Private Limited & Anr. | Court      | Followed      | Followed.                                                                                                                         |

**Aleque Padamsee & Others v. Union of India & Others** (2007) 6 SCC 171 · Supreme Court

**PROPOSITION** Where the police fail to act on information about a cognizable offence, the remedy is to file a complaint before the Magistrate under s.190/200 Cr.P.C., not a writ petition seeking a direction to register an FIR.

| CITED IN                                                    | CITED BY | TREATMENT | HOW TREATED                                                                                |
|-------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------|
| <b>SCJ-118</b> Shiv Murti Yadav v. State of U.P. & 6 Others | Court    | Followed  | Applied to hold the revisionist had no separate ground for interference given this remedy. |

**Aligarh Muslim University v. Mansoor Ali Khan** AIR 2000 SC 2783 · Supreme Court

**PROPOSITION** Following S.L. Kapoor v. Jagmohan, where on admitted/indisputable facts only one conclusion is possible, breach of natural justice need not vitiate the order (a narrow exception).

| CITED IN                                                 | CITED BY   | TREATMENT | HOW TREATED                                                    |
|----------------------------------------------------------|------------|-----------|----------------------------------------------------------------|
| <b>SCJ-032</b> Hazi Mohd. Yaseen v. P.V.V.N.L. & Another | Respondent | Referred  | Referred (respondent's line); the exception held inapplicable. |

**Andhra Steel Corporation Ltd. v. A.P. State Electricity Board** (1991) 3 SCC 263 · Supreme Court

**PROPOSITION** On minimum-guarantee charge (under the 1910 Act).

| CITED IN                                                                                    | CITED BY   | TREATMENT     | HOW TREATED                                                                            |
|---------------------------------------------------------------------------------------------|------------|---------------|----------------------------------------------------------------------------------------|
| <b>SCJ-035</b> Jharkhand State Electricity Board & Others v. M/s Ramkrishna Forging Limited | Petitioner | Distinguished | Distinguished on facts as relating to minimum-guarantee charge under the old 1910 Act. |

**Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan @ Rahamjulla** Civil Appeal No. 1672 of 2020 (arising out of SLP (C) No. 5190 of 2019) · Supreme Court

**PROPOSITION** Under Section 56(2) a licensee is not precluded from raising a supplementary demand after two years, the limitation running from the date the mistake/escaped billing was discovered.

| CITED IN                                                                                            | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                            |
|-----------------------------------------------------------------------------------------------------|------------|---------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-263</b> M/s. Zaz Leather Complex Pvt. Ltd. v. Kanpur Electricity Supply Co. Ltd. and Another | Respondent | Distinguished | Distinguished: it dealt only with Section 56(2) (not Clause 6.15) and with a supplementary bill, whereas here a fresh bill was issued for over two years for the licensee's own error. |

**Atam Prakash v. State of Haryana** 1986 (2) SCC 249 · Supreme Court

**PROPOSITION** Applied prospective overruling to a statute declared ultra vires.

| CITED IN                                                                       | CITED BY | TREATMENT | HOW TREATED                    |
|--------------------------------------------------------------------------------|----------|-----------|--------------------------------|
| <b>SCJ-128</b> Sri Chandra Mohan Goyal v. U.P. Power Corporation Ltd. & Others | Court    | Referred  | Cited in the doctrinal survey. |

**Badri Kedar Paper (P) Ltd. v. U.P. Electricity Regulatory Commission** (2009) 3 SCC 754 · Supreme Court

**PROPOSITION** On appeal, the Supreme Court took a different view of the licensee/tariff and surcharge questions decided by the High Court in this and connected matters.

| CITED IN                                                                            | CITED BY | TREATMENT | HOW TREATED                                                                                                                                                                                             |
|-------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-155</b> M/s Saini Alloys Pvt. Ltd. v. U.P. Power Corporation, Lucknow & Ors. | â€”      | Overruled | Subsequent Supreme Court judgment that REVERSED this High Court decision; noted here (it post-dates and was not before the High Court) so the record reflects that this judgment is no longer good law. |

**Balram Prasad v. Kunal Saha & Ors.** Supreme Court

**PROPOSITION** The court is sceptical of a strait-jacket multiplier method and may deviate from it to avoid over- or under-compensation, determining just, fair and reasonable compensation on the facts.

| CITED IN                                                                                            | CITED BY | TREATMENT | HOW TREATED                                                          |
|-----------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------|
| <b>SCJ-025</b> Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others | Court    | Relied on | Relied on (Â¶124 quoted) for a flexible, just-compensation approach. |

**Bar Council of India v. Union of India** (2012) 8 SCC 243 · Supreme Court

**PROPOSITION** Permanent Lok Adalats under Chapter VI-A of the LSA Act, 1987 have jurisdiction over disputes concerning public utility services (including supply of power) up to a pecuniary limit, in addition to and not in derogation of other fora, before the dispute is brought to a court.

| CITED IN                                                                                            | CITED BY | TREATMENT | HOW TREATED                                                                    |
|-----------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------|
| <b>SCJ-019</b> Divisional Engineer, Electricity Distribution Division-I v. Raman Singh & Another    | Court    | Relied on | Relied on to sustain the Permanent Lok Adalat's jurisdiction.                  |
| <b>SCJ-025</b> Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others | Court    | Relied on | Relied on to sustain the Permanent Lok Adalat's jurisdiction and its validity. |

**Bar Council of India v. Union of India** (2012) 8 SCC 243 · Supreme Court**PROPOSITION** On the nature and scope of the Legal Services Authorities / Lok Adalat framework.

| CITED IN                                                                                         | CITED BY   | TREATMENT | HOW TREATED                                                                                        |
|--------------------------------------------------------------------------------------------------|------------|-----------|----------------------------------------------------------------------------------------------------|
| <b>SCJ-159</b> Pashchimanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat, Moradabad & Anr. | Respondent | Referred  | Cited by the respondent; not found to save the PLA's adjudicatory jurisdiction.                    |
| <b>SCJ-249</b> Dakshinanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat and Another        | Court      | Relied on | Relied on to hold the Permanent Lok Adalat had jurisdiction to entertain the connection grievance. |

**Belwal Spinning Mills Ltd. v. U.P. State Electricity Board** (1997) 6 SCC 740 · Supreme Court**PROPOSITION** On the basis on which electricity charges/dues may be levied and the limits of the Board's power to raise demands.

| CITED IN                                                                             | CITED BY   | TREATMENT | HOW TREATED                                                                 |
|--------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------------------|
| <b>SCJ-202</b> Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd. & Others  | Petitioner | Referred  | Cited by the petitioner in support of the challenge to check-meter billing. |
| <b>SCJ-262</b> I.G. Shoes Pvt. Ltd. v. Kanpur Electricity Supply Co. Ltd. and Others | Court      | Followed  | Followed on the scope of s.26(6).                                           |

**Bharathidasan University & Anr. v. All-India Council for Technical Education & Ors.** (2001) 8 SCC 676 · Supreme Court**PROPOSITION** (Same proposition as Chandra Kumar Shah â€™ regulation-making power is not a source of independent legislative authority.)

| CITED IN                                                                                                               | CITED BY   | TREATMENT | HOW TREATED                                                           |
|------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------------|
| <b>SCJ-053</b> M/S Dev Prayag Paper Mill (Pvt.) & Ors. v. State of U.P. & Ors. (batch of ~90 connected writ petitions) | Petitioner | Referred  | Cited to the same effect; not examined in detail for the same reason. |

**Bhavnagar University v. Palitana Sugar Mills (P) Ltd.** (2003) 2 SCC 111 : AIR 2003 SC 511 · Supreme Court**PROPOSITION** A little difference in facts or additional facts may make a lot of difference in the precedential value of a decision.

| CITED IN                                                                         | CITED BY | TREATMENT | HOW TREATED                                                                                |
|----------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------|
| <b>SCJ-247</b> M/s. Citi Hotel v. Commissioner, Lucknow Division, Lucknow & Ors. | Court    | Referred  | Referred, to explain why J.M.D. Alloys (on materially different facts) was not applicable. |

**Bihar State Electricity Board v. M/s Green Rubber Industries** (1990) 1 SCC 731 · Supreme Court**PROPOSITION** On minimum-guarantee charge (under the Electricity Act, 1910).

| CITED IN                                                                                    | CITED BY   | TREATMENT     | HOW TREATED                                                                            |
|---------------------------------------------------------------------------------------------|------------|---------------|----------------------------------------------------------------------------------------|
| <b>SCJ-035</b> Jharkhand State Electricity Board & Others v. M/s Ramkrishna Forging Limited | Petitioner | Distinguished | Distinguished on facts as relating to minimum-guarantee charge under the old 1910 Act. |

|                                                                                                                                  |                 |                  |                                                          |
|----------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------|
| <b>Bihar State Electricity Board v. Parmeshwar Kumar Agarwala</b> (1996) 4 SCC 686 · Supreme Court                               |                 |                  |                                                          |
| <b>PROPOSITION</b> The Supply Code / conditions of supply have statutory flavour and are to be strictly followed by the parties. |                 |                  |                                                          |
| <b>CITED IN</b>                                                                                                                  | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                       |
| <b>SCJ-032</b> Hazi Mohd. Yaseen v. P.V.V.N.L. & Another                                                                         | Petitioner      | Referred         | Referred for the statutory character of the Supply Code. |

|                                                                                                                                                                                                                                                                                                           |                 |                  |                                                                      |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------|
| <b>Binani Zinc Ltd. v. Kerala State Electricity Board &amp; Ors.</b> 2009 (11) SCC 244 · Supreme Court                                                                                                                                                                                                    |                 |                  |                                                                      |
| <b>PROPOSITION</b> The regulatory commission has not been empowered to frame tariff with retrospective effect covering a period before its own constitution/determination; the rule of law postulates that all laws are prospective, absent an express provision or necessary intendment to the contrary. |                 |                  |                                                                      |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                           | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                   |
| <b>SCJ-066</b> M/S Shokumbhari Pulp & Paper Mills Ltd. v. U.P. Power Corporation Ltd. & 3 Others (with connected petitions)                                                                                                                                                                               | Petitioner      | Followed         | Followed and applied to quash the retrospective tariff notification. |

|                                                                                                                                           |                    |                  |                                                                                                              |
|-------------------------------------------------------------------------------------------------------------------------------------------|--------------------|------------------|--------------------------------------------------------------------------------------------------------------|
| <b>Board of Trustees, Port of Mumbai v. Indian Oil Corporation</b> 1998 (2) SCR 774 · Supreme Court                                       |                    |                  |                                                                                                              |
| <b>PROPOSITION</b> Port dues under the Major Port Trust Act, 1963 override all other claims, including secured creditors, in liquidation. |                    |                  |                                                                                                              |
| <b>CITED IN</b>                                                                                                                           | <b>CITED BY</b>    | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                           |
| <b>SCJ-100</b> Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Limited & Ors.                                               | Petitioner (PVVNL) | Distinguished    | Held inapplicable/distinguishable in light of the IBC's later, comprehensive waterfall mechanism under s.53. |

|                                                                                                                                                                                                                                               |                 |                  |                                                                                                                                                                                      |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd. &amp; Anr.</b> 2005 (3) AWC 2133 (SC) · Supreme Court                                                                                                        |                 |                  |                                                                                                                                                                                      |
| <b>PROPOSITION</b> Under the Indian Electricity Act, 1910, the Electrical Inspector is the appropriate person to adjudicate a dispute regarding meter accuracy underlying a bill, functioning as a form of independent statutory arbitration. |                 |                  |                                                                                                                                                                                      |
| <b>CITED IN</b>                                                                                                                                                                                                                               | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                                   |
| <b>SCJ-083</b> Mohamdabad Cold Storage Private Ltd. (& Anr.) v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                                 | Petitioner      | Followed         | Applied by analogy to hold that s.162 of the Electricity Act, 2003 (Chief Electrical Inspector/Electrical Inspector) is the modern successor forum for such meter-accuracy disputes. |
| <b>SCJ-086</b> Mother India Refrigeration Industries (& Anr.) v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                                | Petitioner      | Followed         | Applied by analogy to hold that s.162 of the Electricity Act, 2003 is the modern successor forum for such meter-accuracy disputes (companion citation to SCJ-083).                   |

**Bombay Electricity Supply and Transport Undertaking v. Laffans (India) (P) Ltd.** (2005) 4 SCC 327 · Supreme Court

**PROPOSITION** Section 26(6) is attracted only when the meter is not correct; it does not apply to fraud/trick/tampering, and a licensee who removes the meter without a reference loses the material evidence and cannot revise the demand.

| CITED IN                                                                             | CITED BY   | TREATMENT | HOW TREATED                                                                                      |
|--------------------------------------------------------------------------------------|------------|-----------|--------------------------------------------------------------------------------------------------|
| <b>SCJ-262</b> I.G. Shoes Pvt. Ltd. v. Kanpur Electricity Supply Co. Ltd. and Others | Respondent | Followed  | Followed and applied to the near-identical situation of a removed meter and an unraised dispute. |

**Brahm Dutt v. Union of India** Supreme Court

**PROPOSITION** Where a body performs both advisory/regulatory and adjudicatory functions, it may be appropriate (though a matter for legislative wisdom) to create two separate bodies.

| CITED IN                                                                            | CITED BY | TREATMENT | HOW TREATED                                             |
|-------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------|
| <b>SCJ-130</b> State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors. | Court    | Referred  | Noted but left to legislative discretion; not directed. |

**BSES Ltd. v. Tata Power Co. Ltd.** (2004) 1 SCC 195 · Supreme Court

**PROPOSITION** An interim arrangement, based on a prima facie view without full examination, would be subject to final adjustment with interest where a matter (there, standby charges) was pending Commission determination and remained unpaid.

| CITED IN                                                                                     | CITED BY                             | TREATMENT     | HOW TREATED                                                                                                                                                                                                      |
|----------------------------------------------------------------------------------------------|--------------------------------------|---------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-073</b> M/S NTPC Ltd. v. M.P. State Electricity Board & Ors. (with connected appeals) | Appellate Tribunal (relied on below) | Distinguished | Distinguished “that case involved a dispute referred for determination and unpaid pending resolution, unlike the present case where the interim tariff was lawfully charged and paid per standing notifications. |

**Calcutta Discount Co. Ltd. v. Income Tax Officer, Companies Distt. I** AIR 1961 SC 372 · Supreme Court (Constitution Bench)

**PROPOSITION** Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition/certiorari notwithstanding the executive character of the act.

| CITED IN                                                                    | CITED BY | TREATMENT | HOW TREATED                                  |
|-----------------------------------------------------------------------------|----------|-----------|----------------------------------------------|
| <b>SCJ-153</b> Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors. | Court    | Referred  | Noticed within the quoted Whirlpool extract. |

**Canara Bank v. P.R.N. Upadhyaya & Others** (1998) 6 SCC 526 · Supreme Court

**PROPOSITION** A Banking Ombudsman (analogous statutory scheme) is bound by governing circulars/directions and cannot issue directions in ignorance of them.

| CITED IN                                                                                                                                                                     | CITED BY | TREATMENT | HOW TREATED                                                                                                |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------------------------------------|
| <b>SCJ-123</b> Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.) | Court    | Followed  | Applied by analogy to confirm the Electricity Ombudsman's award must conform to the governing Supply Code. |



|                                                                                                                                                                            |                 |                  |                                             |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------|
| <b>Carborundum Universal Ltd. v. CBDT</b> 1989 Supp (2) SCC 462 · Supreme Court                                                                                            |                 |                  |                                             |
| <b>PROPOSITION</b> Where a statutory provision does not exclude natural justice, an opportunity of being heard is to be assumed, especially in quasi-judicial proceedings. |                 |                  |                                             |
| <b>CITED IN</b>                                                                                                                                                            | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                          |
| <b>SCJ-032</b> Hazi Mohd. Yaseen v. P.V.V.N.L. & Another                                                                                                                   | Respondent      | Referred         | Referred in the natural-justice discussion. |

|                                                                                                                                                                              |                 |                  |                                                                                                                                                                               |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Cauvery Water Disputes Tribunal, In re</b> 1993 Supp (1) SCC 96(2) : AIR 1992 SC 22 · Supreme Court                                                                       |                 |                  |                                                                                                                                                                               |
| <b>PROPOSITION</b> A legislature may remove the basis of a court's decision but cannot direct the instrumentalities of the State to disobey or disregard a court's decision. |                 |                  |                                                                                                                                                                               |
| <b>CITED IN</b>                                                                                                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                            |
| <b>SCJ-255</b> M/s. Suvidha Engineers India Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                            | Petitioner      | Distinguished    | Distinguished: Clause 4.49 does not affect the consequence of the court's interim stay, the bank guarantee arising only from the consumer's own load-enhancement application. |

|                                                                                                                                                                                                   |                 |                  |                                                                                                                                                                                                                                                             |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Central GST Delhi-III v. Delhi International Airport Ltd.</b> Supreme Court                                                                                                                    |                 |                  |                                                                                                                                                                                                                                                             |
| <b>PROPOSITION</b> User Development Fee (UDF) is in the nature of a tax or cess collected to fund future projects, not consideration for a service, and is therefore not exigible to service tax. |                 |                  |                                                                                                                                                                                                                                                             |
| <b>CITED IN</b>                                                                                                                                                                                   | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                                                                                                          |
| <b>SCJ-002</b> Suman Engineering and Chemicals Pvt. Ltd. v. U.P.P.C.L. & 4 Others                                                                                                                 | Respondent      | Distinguished    | Cited by the respondents to characterise system-loading charges as a non-refundable exaction; distinguished “that case concerned only the leviability of service tax on UDF, collected from persons actually liable, and is of no help to the respondents.” |

|                                                                                                                                                                        |                 |                  |                                                                                   |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------|
| <b>Chairman, SBI v. M.J. James</b> Supreme Court                                                                                                                       |                 |                  |                                                                                   |
| <b>PROPOSITION</b> The court must consciously examine whether a party has sat over a matter and woken up to gain advantage; delay and laches are balanced accordingly. |                 |                  |                                                                                   |
| <b>CITED IN</b>                                                                                                                                                        | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                |
| <b>SCJ-001</b> Indian Oil Corporation Ltd. v. State of U.P. & 3 Others                                                                                                 | Court           | Relied on        | Quoted (¶ 55); relied on to weigh the licensee's sitting-over against its demand. |

|                                                                                                                                                         |                 |                  |                                                                                              |
|---------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------------------|
| <b>Chairman, West Bengal State Electricity Board &amp; Ors. v. Syed Mukbul Hossain &amp; Ors.</b> (2009) 2 SCC 727 · Supreme Court                      |                 |                  |                                                                                              |
| <b>PROPOSITION</b> In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127. |                 |                  |                                                                                              |
| <b>CITED IN</b>                                                                                                                                         | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                           |
| <b>SCJ-069</b> M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors.                                                                          | Petitioner      | Followed         | Followed as the leading authority for the s.126/s.127 characterisation of theft assessments. |
| <b>SCJ-111</b> Sandeep Kesarwani v. State of U.P. & 3 Others                                                                                            | Petitioner      | Followed         | Cited for the general availability of s.127 appeal in theft-adjacent assessment cases.       |

|                                                                                                                  |          |           |                                                               |
|------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------|
| <b>Chandavarkar Sita Ratna Rao v. Ashalata S. Guram</b> (1986) 4 SCC 447 · Supreme Court                         |          |           |                                                               |
| PROPOSITION A non obstante clause gives the enacting part overriding effect over the provisions mentioned in it. |          |           |                                                               |
| CITED IN                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                   |
| SCJ-009 Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. & Anr. v. Rahamatullah Khan alias Rahamjulla     | Court    | Relied on | Relied on to explain the non obstante clause opening s.56(2). |

|                                                                                                                                                                                                                                                       |          |           |                                                                              |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------|
| <b>Chandigarh Administration v. Jagjit Singh</b> 1995 (1) SCC 745; AIR 1995 SC 705 · Supreme Court                                                                                                                                                    |          |           |                                                                              |
| PROPOSITION The mere fact an authority passed a particular (possibly illegal) order for another similarly-situated person cannot found a discrimination-based claim to have that illegality repeated; Article 14 does not envisage negative equality. |          |           |                                                                              |
| CITED IN                                                                                                                                                                                                                                              | CITED BY | TREATMENT | HOW TREATED                                                                  |
| SCJ-123 Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.)                                                                                 | Court    | Followed  | Applied to reject the discrimination plea based on the Nitin Spat precedent. |

|                                                                                                                                  |            |           |                                                                                                                     |
|----------------------------------------------------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------------------------------------------------------------|
| <b>Chandra Kishore Jha v. Mahabir Prasad</b> JT 1999 (7) SC 256 · Supreme Court                                                  |            |           |                                                                                                                     |
| PROPOSITION Where a statute provides for a thing to be done in a particular manner, it must be done in that manner and no other. |            |           |                                                                                                                     |
| CITED IN                                                                                                                         | CITED BY   | TREATMENT | HOW TREATED                                                                                                         |
| SCJ-170 Heera Lal v. State of U.P. & Others                                                                                      | Petitioner | Referred  | Proposition accepted, but held to support relegating the objection to the electricity authority, not the Tehsildar. |

|                                                                                            |          |           |                               |
|--------------------------------------------------------------------------------------------|----------|-----------|-------------------------------|
| <b>Chandroji Rao v. CIT</b> 1970 (2) SCC 23 · Supreme Court                                |          |           |                               |
| PROPOSITION A marginal heading cannot control the interpretation of a statutory provision. |          |           |                               |
| CITED IN                                                                                   | CITED BY | TREATMENT | HOW TREATED                   |
| SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.                                               | Court    | Relied on | Relied on to the same effect. |

|                                                                                                                                                                                                                                  |          |           |                                                    |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------|
| <b>Chandu Khamaru v. Nayan Malik</b> (2011) 12 SCC 314 · Supreme Court                                                                                                                                                           |          |           |                                                    |
| PROPOSITION A tenant/occupier is entitled to an electricity connection and the owner's consent is not an indispensable precondition; the licensee's statutory duty to supply cannot be defeated for want of the owner's consent. |          |           |                                                    |
| CITED IN                                                                                                                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                        |
| SCJ-210 Radhe Shyam Singh v. State of U.P. & 2 Ors.                                                                                                                                                                              | Court    | Followed  | Followed as the governing Supreme Court authority. |

**Chandu Khamaru v. Smt. Nayan Malik** AIR 2011 SC 2897 · Supreme Court

**PROPOSITION** Under Section 43(1), a distribution licensee has a statutory duty to supply an owner or occupier who applies, and the occupier a corresponding statutory right; a family dispute does not deprive a person of a connection.

| CITED IN                                                    | CITED BY | TREATMENT | HOW TREATED                                                                                     |
|-------------------------------------------------------------|----------|-----------|-------------------------------------------------------------------------------------------------|
| <b>SCJ-027</b> Gaurav Sharma v. State of U.P. & 4 Others    | Court    | Relied on | Relied on (through Sushama Chowdhary) for the statutory right of an occupier.                   |
| <b>SCJ-033</b> Husna Bano v. State of U.P. & 9 Others       | Court    | Relied on | Relied on (through Sushama Chowdhary/Gaurav Sharma) for the occupier's statutory right.         |
| <b>SCJ-190</b> Dr. Mamta Tripathi v. State of U.P. & 6 Ors. | Court    | Relied on | Relied on (via Sushama Chowdhary) as the Supreme Court foundation for the indemnity-bond route. |

**CIT v. Dhadi Sahu** 1994 Supp (1) SCC 257 · Supreme Court

**PROPOSITION** A law changing the forum does not affect pending actions unless a contrary intention is clearly shown; the forum of appeal is a vested right, not pure procedure.

| CITED IN                                          | CITED BY | TREATMENT | HOW TREATED                            |
|---------------------------------------------------|----------|-----------|----------------------------------------|
| <b>SCJ-008</b> Aruna Bhargava v. PuVVNL & Another | Court    | Referred  | Referred (followed within Sharadamma). |

**CIT v. Monnet Ispat and Energy Ltd.** (2018) 18 SCC 786 · Supreme Court

**PROPOSITION** Follows Innoventive Industries on the overriding effect of IBC s.238.

| CITED IN                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                 |
|----------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------------------|
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Court    | Referred  | Referred as a further application of the Innoventive ratio. |

**CIT, Bangalore v. R. Sharadamma** (1996) 8 SCC 388 · Supreme Court

**PROPOSITION** Where an authority is validly seized of a matter on a reference, it does not lose jurisdiction on a later amendment; change of forum is not mere procedure but a vested right.

| CITED IN                                          | CITED BY | TREATMENT | HOW TREATED |
|---------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-008</b> Aruna Bhargava v. PuVVNL & Another | Court    | Relied on | Relied on.  |

**CoC of Essar Steel India Ltd. v. Satish Kumar Gupta** Supreme Court

**PROPOSITION** The successful resolution applicant takes over the corporate debtor on a clean slate, free from past liabilities except those specifically incorporated in the resolution plan.

| CITED IN                                                                                                                              | CITED BY   | TREATMENT | HOW TREATED                             |
|---------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------|
| <b>SCJ-157</b> South East U.P. Power Transmission Company Ltd. v. Prescribed Authority & Ors. (with Tata Steel Ltd. v. State of U.P.) | Petitioner | Followed  | Followed for the clean-slate principle. |

**Collector, Distt. Gwalior & Anr. v. Cine Exhibitors P. Ltd. & Anr.** AIR 2012 SC 1239 · Supreme Court**PROPOSITION** (Follows and applies S. Sethuraman on jurisdiction not being conferrable by consent.)

| CITED IN                                                                                    | CITED BY | TREATMENT | HOW TREATED                                                          |
|---------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------|
| <b>SCJ-049</b> M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr. | Court    | Referred  | Referred as the recent Supreme Court reaffirmation of S. Sethuraman. |

**Commissioner of Central Excise, Bhavnagar v. Saurashtra Chemicals Ltd.** (2007) 10 SCC 352 · Supreme Court**PROPOSITION** The expression 'subject to' denotes a limitation “governed or affected by”, 'provided that' “citing Ashok Leyland Ltd. v. State of T.N. and Black's Law Dictionary.

| CITED IN                                                                                                               | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                                                                                  |
|------------------------------------------------------------------------------------------------------------------------|------------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-053</b> M/S Dev Prayag Paper Mill (Pvt.) & Ors. v. State of U.P. & Ors. (batch of ~90 connected writ petitions) | Petitioner | Distinguished | Relied on by the petitioners for the proposition that s.47(5) overrides s.47(1)-(4); the Court accepted the dictionary meaning but held it supported the opposite conclusion “that s.47(1) is governed by s.47 as a whole, not subservient to s.47(5) alone. |

**Committee of Creditors of Essar Steel India Ltd. v. Satish Kumar Gupta & Ors.** 2019 (16) SCR 275 · Supreme Court**PROPOSITION** NCLT possesses no discretionary jurisdiction over initiation of liquidation proceedings once the statutory conditions under ss.30, 31(2), 60(5)(c) IBC are met.

| CITED IN                                                                                    | CITED BY | TREATMENT | HOW TREATED                                                                |
|---------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------|
| <b>SCJ-100</b> Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Limited & Ors. | Court    | Followed  | Cited alongside K. Shashidhar for the mandatory liquidation-trigger point. |

**Dakshin Haryana Bijli Vitran Nigam Ltd. v. Excel Buildcon Pvt. Ltd.** (2008) 10 SCC 720 · Supreme Court**PROPOSITION** Followed Paramount Polymers on recovery of arrears from a transferee where the conditions of supply so provide.

| CITED IN                                                                                  | CITED BY | TREATMENT | HOW TREATED                               |
|-------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------|
| <b>SCJ-031</b> Haryana State Electricity Board v. M/s Hanuman Rice Mills, Dhanauri & Ors. | Court    | Referred  | Referred as following Paramount Polymers. |

**Dakshin Haryana Bijli Vitran Nigam Ltd. v. M/s Paramount Polymers Pvt. Ltd.** AIR 2007 SC 2 · Supreme Court**PROPOSITION** Where the Terms and Conditions of Supply validly condition a fresh/reconnection on clearing a previous consumer's arrears on the premises, a purchaser cannot invoke Isha Marbles to obtain a fresh connection without clearing those arrears; but the arrears remain tied to the premises/reconnection process, with any transferee payment adjusted against (and refundable if later recovered from) the original defaulter.

| CITED IN                                                                                    | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                                               |
|---------------------------------------------------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-063</b> M/S Rayana Paper Board Industries Ltd. v. U.P. Power Corporation Ltd. & Ors. | Respondent | Distinguished | Relied on for the proposition that the licensee may withhold a fresh connection pending dues, but distinguished to the extent it does not authorise coercive recovery from the transferee outside the connection process. |

|                                                                                                                                                                                                                                                                               |                 |                  |                                                                                                                                        |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------------------------------------------------------------|
| <b>Dakshin Haryana Bijli Vitran Nigam Ltd. v. Paramount Polymers (P) Ltd.</b> (2006) 13 SCC 101 · Supreme Court                                                                                                                                                               |                 |                  |                                                                                                                                        |
| <b>PROPOSITION</b> Where the statutory terms and conditions of supply contain a clause (e.g. Clause 21A) requiring arrears to be cleared before reconnection/new connection, the arrears are recoverable from the transferee; Isha Marbles is distinguishable in such a case. |                 |                  |                                                                                                                                        |
| <b>CITED IN</b>                                                                                                                                                                                                                                                               | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                     |
| <b>SCJ-031</b> Haryana State Electricity Board v. M/s Hanuman Rice Mills, Dhanauri & Ors.                                                                                                                                                                                     | Appellant       | Distinguished    | Discussed and relied on by the appellant to distinguish Isha Marbles; held inapplicable here for want of a pleaded enabling condition. |

|                                                                                                       |                 |                  |                                                                 |
|-------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------|
| <b>Dehri Rohtas Light Railway Co. v. District Board, Bhojpur</b> Supreme Court                        |                 |                  |                                                                 |
| <b>PROPOSITION</b> Delay/laches: whether a party has chosen to sit over the matter to gain advantage. |                 |                  |                                                                 |
| <b>CITED IN</b>                                                                                       | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                              |
| <b>SCJ-001</b> Indian Oil Corporation Ltd. v. State of U.P. & 3 Others                                | Court           | Referred         | Noticed within the M.J. James extract and listed in the catena. |

|                                                                                                                                                                                                                                                             |                 |                  |                                                                                                                                                         |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Dilip (Dead) through LRs. v. Satish &amp; Others</b> 2022 LiveLaw (SC) 570 · Supreme Court                                                                                                                                                               |                 |                  |                                                                                                                                                         |
| <b>PROPOSITION</b> Electricity is a basic amenity of which a person cannot be deprived; it cannot be declined to a tenant for the landlord's failure/refusal to issue an NOC – all the supply authority examines is whether the applicant is in occupation. |                 |                  |                                                                                                                                                         |
| <b>CITED IN</b>                                                                                                                                                                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                      |
| <b>SCJ-021</b> Dr. Ashok Kumar Sharma & Another v. State of U.P. & 4 Others                                                                                                                                                                                 | Petitioner      | Distinguished    | Distinguished – it does not lay down that a connection must be granted to a tenant irrespective of all other facts (here, an unstayed eviction decree). |

|                                                                                                                                                         |                 |                  |                                           |
|---------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------|
| <b>Doburg Lager Breweries Pvt. Ltd. v. Dhariwal Bottle Trading Co.</b> (1986) 2 SCC 382 · Supreme Court                                                 |                 |                  |                                           |
| <b>PROPOSITION</b> A Relief Undertaking Act sub-serves the public interest and prevention of unemployment, so its provisions are liberally interpreted. |                 |                  |                                           |
| <b>CITED IN</b>                                                                                                                                         | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                        |
| <b>SCJ-038</b> Kanpur Electricity Supply Co. Ltd. & Anr. v. M/s L.M.L. Limited & Ors.                                                                   | Respondent      | Referred         | Referred (as the basis of Modern Syntax). |

|                                                                                                                                                |                 |                  |                                                                    |
|------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------|
| <b>Doypack Systems Pvt. Ltd. v. Union of India</b> (1988) 2 SCC 299 · Supreme Court                                                            |                 |                  |                                                                    |
| <b>PROPOSITION</b> Principles of statutory interpretation, including reading provisions in their context to give effect to legislative intent. |                 |                  |                                                                    |
| <b>CITED IN</b>                                                                                                                                | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                 |
| <b>SCJ-158</b> Ashok Kumar & Ors. v. State of U.P. & Ors.                                                                                      | Court           | Referred         | Referred on construction of the Companies Act / status provisions. |

**Dr. D.M. Surti v. State of Gujarat** AIR 1969 SC 63 · Supreme Court

**PROPOSITION** A professional activity, carried on by an individual through personal skill and intelligence, is fundamentally distinct from a commercial activity; associated words in a statutory list take their colour from one another (noscitur a sociis).

| CITED IN                                                                                                                            | CITED BY | TREATMENT | HOW TREATED                                                                     |
|-------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------------|
| <b>SCJ-133</b> Tehsil Bar Association, Sadar Tehsil Parisar, Gandhi Nagar, Ghaziabad v. U.P. Power Corporation Limited And 3 Others | Court    | Followed  | Followed as the foundational authority for the profession/commerce distinction. |

**Dr. Mahachandra Prasad Singh v. Chairman, Bihar Legislative Council & Ors.** (2004) 8 SCC 747 · Supreme Court

**PROPOSITION** A delegate's power under delegated legislation is strictly ancillary; it does not enable extension of the enactment's scope, and cannot be used to widen the Act's purposes or depart from its ends.

| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals) | Court    | Followed  | Followed.   |

**Dr. Meena Chaudhary @ Dr. Meena P.N. Singh v. BSES Rajdhani Power Ltd.** Writ Petition (Crl.) No. 103 of 2013 (SC, 25-06-2013) · Supreme Court

**PROPOSITION** Reaffirms that an occupier is entitled to a connection and the owner's consent is not an indispensable precondition.

| CITED IN                                                                       | CITED BY   | TREATMENT | HOW TREATED                                                                                                       |
|--------------------------------------------------------------------------------|------------|-----------|-------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-210</b> Radhe Shyam Singh v. State of U.P. & 2 Ors.                     | Court      | Followed  | Followed as reaffirming the same view.                                                                            |
| <b>SCJ-223</b> Virendra Kumar Mittal v. U.P. Power Corporation Ltd. & 2 Others | Petitioner | Relied on | Relied on to hold that the theft-assessment amount could not be demanded as a precondition to the new connection. |

**Duncans Industries Ltd. v. A.J. Agrochem** (2019) 9 SCC 725; AIR 2019 SC 5472 · Supreme Court

**PROPOSITION** Section 16G of the Tea Act, 1953 (requiring prior Central Government consent for winding-up proceedings) is overridden by the IBC.

| CITED IN                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                                                              |
|----------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------------------------------------|
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Court    | Referred  | Relied on as a further analogous instance of IBC s.238 overriding a sectoral consent/priority provision. |

**Duncans Industries Ltd. v. AJ Agrochem** (2019) 9 SCC 725 · Supreme Court

**PROPOSITION** A requirement of prior Central Government consent under s.16G of the Tea Act, 1953 for winding-up proceedings is overridden by the IBC.

| CITED IN                                                                                    | CITED BY | TREATMENT | HOW TREATED                                                                                   |
|---------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------------------|
| <b>SCJ-100</b> Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Limited & Ors. | Court    | Followed  | Cited as a parallel instance of IBC's overriding primacy over a specialised sectoral statute. |

**Duncans Industries Ltd. v. AJ Agrochem** (2019) 9 SCC 725 · Supreme Court

**PROPOSITION** A special enactment's requirement (there, s.16-G of the Tea Act, 1953, requiring prior Central Government consent for winding-up) is overridden by the IBC.

| CITED IN                                                                                                                              | CITED BY | TREATMENT | HOW TREATED                                                                                       |
|---------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------------------------------|
| <b>SCJ-157</b> South East U.P. Power Transmission Company Ltd. v. Prescribed Authority & Ors. (with Tata Steel Ltd. v. State of U.P.) | Court    | Referred  | Referred (within the Paschimanchal extract) as an instance of IBC primacy over a special statute. |
| <b>SCJ-160</b> Reliance Projects and Property Management Services Ltd. v. State of U.P. & Others                                      | Court    | Referred  | Referred (within the Paschimanchal extract) as an instance of IBC primacy.                        |

**Durga Enterprises (P) Ltd. v. Principal Secretary, Govt. of U.P.** (2004) 13 SCC 665 · Supreme Court

**PROPOSITION** Where the High Court has entertained a writ petition in which pleadings are complete, it ought to decide the case on merits rather than relegate the parties to the alternative remedy.

| CITED IN                                                                                                     | CITED BY   | TREATMENT | HOW TREATED                                                      |
|--------------------------------------------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------|
| <b>SCJ-164</b> Parmarth Steels & Alloys (Pvt.) Ltd. & Anr. v. U.P. Power Corporation Ltd. (Transco) & Others | Petitioner | Relied on | Relied on to decide the writ on merits despite the s.127 appeal. |

**Durga Hotel Complex v. Reserve Bank of India** (2007) 5 SCC 120 : AIR 2007 SC 1467 · Supreme Court

**PROPOSITION** On the nature and role of an Ombudsman and the scope of interference with its decisions.

| CITED IN                                                                                                                 | CITED BY | TREATMENT | HOW TREATED                                                                  |
|--------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------|
| <b>SCJ-258</b> Executive Engineer, Electricity Urban Distribution Division IInd v. Electricity Ombudsman, Lucknow & Ors. | Court    | Referred  | Referred in explaining the office and function of the Electricity Ombudsman. |
| <b>SCJ-260</b> Purvanchal Vidyut Vitran Nigam Ltd., Bhikaripur & Anr. v. Vidyut Lokpal (Electricity Ombudsman) & Anr.    | Court    | Referred  | Referred in explaining the office and function of the Electricity Ombudsman. |

**East Coast Railway & Anr. v. Mahadev Appa Rao & Ors.** 2010 (7) SCC 678 · Supreme Court

**PROPOSITION** Whether an enquiry/verification was necessary before an adverse order depends on the facts; the authority must be alive to the material on which it purports to decide, not act mechanically or under impulse.

| CITED IN                                                                                                            | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                  |
|---------------------------------------------------------------------------------------------------------------------|------------|---------------|------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-061</b> M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. | Petitioner | Distinguished | Held inapplicable “no ground or demonstration that the assessment was made mechanically or without considering the material. |

**Electronics Corporation of India Ltd. v. Secretary, Revenue Department, Govt of A.P.** (1999) 4 SCC 458 : AIR 1999 SC 1734 · Supreme Court (Constitution Bench)

**PROPOSITION** On the tests for treating a Government company/corporation as an instrumentality or 'State'.

| CITED IN                                                  | CITED BY | TREATMENT | HOW TREATED                                                                      |
|-----------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------------|
| <b>SCJ-158</b> Ashok Kumar & Ors. v. State of U.P. & Ors. | Court    | Relied on | Relied on in determining DVVNL's status as a Government company/instrumentality. |

**Energy Watchdog v. Central Electricity Regulatory Commission** (2017) 14 SCC 80 · Supreme Court

**PROPOSITION** Whenever generation or supply of electricity is inter-State, the Central Commission is the appropriate regulator; whenever intra-State, the State Commission is â€” jurisdiction turns on whether generation and sale occurs within one State or more than one State.

| CITED IN                                                                                             | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                             |
|------------------------------------------------------------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-110</b> Ramayana Ispat Pvt. Ltd. & Anr. v. State of Rajasthan & Ors. (with connected appeals) | Petitioner | Distinguished | Relied on by the appellants for CERC's exclusive inter-state jurisdiction, but distinguished/held not to displace RERC's jurisdiction over the intra-state delivery/consumption aspects of open access. |

**Executive Engineer, Electricity Distribution Division-II v. Chairman, Permanent Lok Adalat** (2015) 113 ALR 603 · Supreme Court

**PROPOSITION** On the jurisdiction of a Permanent Lok Adalat in electricity disputes.

| CITED IN                                                                                         | CITED BY   | TREATMENT | HOW TREATED                     |
|--------------------------------------------------------------------------------------------------|------------|-----------|---------------------------------|
| <b>SCJ-159</b> Pashchimanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat, Moradabad & Anr. | Respondent | Referred  | Cited by the respondent; noted. |

**Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill** (2012) 2 SCC 108 · Supreme Court (3-Judge)

**PROPOSITION** 'Unauthorised use of electricity' is not restricted to the Explanation's clauses but has a wider meaning covering all misuse/malpractice; excess load beyond the sanctioned/contracted load is unauthorised use under Explanation (b)(iv).

| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED                                                                                                                           |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-042</b> West Bengal State Electricity Distribution Co. Ltd. (WBSEDCL) v. M/s Orion Metal Pvt. Ltd.               | Court    | Followed  | Followed â€” theft held to be a subset of the wider 'unauthorised use' concept established in Seetaram Rice Mill.                     |
| <b>SCJ-061</b> M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr.     | Court    | Followed  | Applied as the governing precedent to dismiss the writ and relegate the petitioner to the s.127 appeal.                               |
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals) | Court    | Followed  | Extensively followed and applied as the controlling precedent; its paras 18, 37, 50, 61, 67, and 72 quoted and relied upon at length. |

**Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill** (2012) 2 SCC 108 · Supreme Court

**PROPOSITION** Only a final order of assessment under s.126(3) is appealable under s.127; a s.126(2) provisional assessment is not, and the High Court should normally decline to interfere with a provisional assessment under Article 226, entertaining it only on true jurisdictional grounds and then remitting the merits to the assessing authority.

| CITED IN                                                                 | CITED BY   | TREATMENT | HOW TREATED                                                                              |
|--------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------------------------------|
| <b>SCJ-163</b> Jai Laxmi Cement Company Ltd. v. State of U.P. & 3 Others | Petitioner | Relied on | Relied on and quoted (paras 79-82, 87) to decline interference at the provisional stage. |



|                                                                                                                 |            |           |                                                                                              |
|-----------------------------------------------------------------------------------------------------------------|------------|-----------|----------------------------------------------------------------------------------------------|
| <b>F.N. Roy v. Collector of Customs, Calcutta</b> AIR 1957 SC 648 · Supreme Court (Constitution Bench)          |            |           |                                                                                              |
| PROPOSITION There is no rule of natural justice that at every stage a person is entitled to a personal hearing. |            |           |                                                                                              |
| CITED IN                                                                                                        | CITED BY   | TREATMENT | HOW TREATED                                                                                  |
| SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another                                                               | Respondent | Referred  | Referred (respondent's line) but held not to displace the personal-hearing requirement here. |

|                                                                                                                                                                  |          |           |                               |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------|
| <b>Federation of Railway Officers Association v. Union of India</b> AIR 2003 SC 1344 · Supreme Court                                                             |          |           |                               |
| PROPOSITION Allegations of mala fide cannot be vaguely made and must be specific; the official said to be involved must be made a party to meet the allegations. |          |           |                               |
| CITED IN                                                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                   |
| SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                      | Court    | Relied on | Relied on to the same effect. |

|                                                                                                                                                                                                                             |            |           |                                                                                                           |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------------------------------------------------|
| <b>Ferro Alloys Corporation Limited v. A.P. State Electricity Board</b> 1993 Supp (4) SCC 136 · Supreme Court                                                                                                               |            |           |                                                                                                           |
| PROPOSITION The true nature of a security deposit is an advance payment of charges (a running current account); the relationship between consumer and licensee is that of depositor and depositee, not debtor and creditor. |            |           |                                                                                                           |
| CITED IN                                                                                                                                                                                                                    | CITED BY   | TREATMENT | HOW TREATED                                                                                               |
| SCJ-252 Tehri Girders Limited and another v. Paschimanchal Vidyut Vitran Nigam Limited and others (with R.A. Castings, Sikka Papers and connected petitions)                                                                | Petitioner | Relied on | Relied on for the nature of security as advance payment, supporting the conclusion that it is not 'dues'. |

|                                                                                                                                                                                                                                                                                 |          |           |                                      |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------|
| <b>Garikapati Veeraya v. N. Subbiah Choudhry</b> AIR 1957 SC 540 · Supreme Court                                                                                                                                                                                                |          |           |                                      |
| PROPOSITION Leading five-principle statement: the right of appeal is a vested substantive right governed by the law at the institution of the suit/proceeding, preserved through all appellate stages, and can be taken away only by express enactment or necessary intendment. |          |           |                                      |
| CITED IN                                                                                                                                                                                                                                                                        | CITED BY | TREATMENT | HOW TREATED                          |
| SCJ-008 Aruna Bhargava v. PuVVNL & Another                                                                                                                                                                                                                                      | Court    | Followed  | Followed as the governing authority. |

|                                                                                                                                                                                                                           |          |           |             |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>General Officer Commanding-in-Chief &amp; Anr. v. Dr. Subhash Chandra Yadav &amp; Anr.</b> (1988) 2 SCC 351 · Supreme Court                                                                                            |          |           |             |
| PROPOSITION For a rule to have statutory effect, it must (1) conform to the provisions of the statute under which it is framed, and (2) come within the scope of the rule-making power; failing either, the rule is void. |          |           |             |
| CITED IN                                                                                                                                                                                                                  | CITED BY | TREATMENT | HOW TREATED |
| SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                                                                                          | Court    | Followed  | Followed.   |

**Ghanashyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.** (2021) 9 SCC 657 · Supreme Court

**PROPOSITION** Once a resolution plan is approved under s.31(1), all claims not part of it stand extinguished and are frozen and binding on all stakeholders including governments and local authorities; the 2019 amendment to s.31 is clarificatory/declaratory and effective from the Code's inception.

| CITED IN                                                                                                                              | CITED BY   | TREATMENT | HOW TREATED                                                         |
|---------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------------|
| <b>SCJ-157</b> South East U.P. Power Transmission Company Ltd. v. Prescribed Authority & Ors. (with Tata Steel Ltd. v. State of U.P.) | Petitioner | Followed  | Followed and quoted for the extinguishment / clean-slate principle. |

**Ghanashyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.** (2021) 9 SCC 657 · Supreme Court

**PROPOSITION** On approval under s.31(1) all claims not part of the resolution plan stand extinguished and are binding on all stakeholders, including statutory authorities; the 2019 amendment to s.31 is clarificatory.

| CITED IN                                                                                         | CITED BY   | TREATMENT | HOW TREATED                                                            |
|--------------------------------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------------|
| <b>SCJ-160</b> Reliance Projects and Property Management Services Ltd. v. State of U.P. & Others | Petitioner | Followed  | Relied on and followed for the extinguishment / clean-slate principle. |

**Ghanashyam Mishra and Sons Pvt. Ltd. v. Edelweiss Asset Reconstruction Company Ltd.** (2021) 21 SCC 196 · Supreme Court

**PROPOSITION** Explains the legislative intent behind IBC s.238's overriding effect and the finality/clean-slate assurance given to a resolution applicant.

| CITED IN                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                    |
|----------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------|
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Court    | Referred  | Relied on to explain the policy rationale for s.238's primacy. |

**Global Energy Limited & Anr. v. Central Electricity Regulatory Commission** (2009) 15 SCC 570 · Supreme Court

**PROPOSITION** A general 'for carrying out the purpose of the Act' rule-making delegation cannot be exercised to bring into existence substantive rights, obligations or disabilities not contemplated by the parent Act.

| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED                                                            |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------|
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals) | Court    | Followed  | Followed as directly applicable in the electricity-regulatory context. |

**Grasim Industries Ltd. v. Collector of Customs** 2002 (4) SCC 297 · Supreme Court

**PROPOSITION** Statutory provisions must be interpreted in context, not in isolation; a construction leaving part of the statute without effect is normally rejected.

| CITED IN                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                                      |
|--------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------------|
| <b>SCJ-113</b> Satya Narayan v. U.P. Power Corporation Ltd. thru. its Managing Director & Others | Court    | Followed  | Applied among a catena of cases to support reading the Supply Code holistically. |

**Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd.** (2008) 4 SCC 755 · Supreme Court

**PROPOSITION** Section 86(1)(f) of the Electricity Act, 2003 is a special provision for adjudication of disputes between a licensee and a generating company and overrides the general Section 11 of the Arbitration and Conciliation Act, 1996; after the 2003 Act, such disputes can be resolved only by the State Commission or an arbitrator appointed by it.

| CITED IN                                                                                                           | CITED BY | TREATMENT | HOW TREATED                                                                                                                    |
|--------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-026</b> Executive Engineer, Electricity Urban Distribution Division v. The Electricity Ombudsman & 2 Others | Court    | Relied on | Relied on for the proposition that the special statutory dispute-resolution scheme overrides a contractual arbitration clause. |

**Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd. (GJ-I)** (2008) 4 SCC 755 · Supreme Court

**PROPOSITION** Interpreted s.86(1)(f)'s 'and' as 'or' regarding SERC's licensee-generator dispute-adjudication and arbitration-referral functions.

| CITED IN                                                                            | CITED BY | TREATMENT | HOW TREATED                                                                |
|-------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------|
| <b>SCJ-130</b> State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors. | Court    | Referred  | Cited in argument on the scope of adjudicatory functions under s.86(1)(f). |
| <b>SCJ-130</b> State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors. | Court    | Referred  | Cited in argument supporting a mandatory legal-Member reading.             |

**Gujarat Urja Vikas Nigam Ltd. v. Tarini Infrastructure Ltd.** (2016) 8 SCC 743 · Supreme Court

**PROPOSITION** Tariff incorporated in a power purchase agreement is not a pure act of volition alterable only by mutual consent.

| CITED IN                                                                           | CITED BY   | TREATMENT     | HOW TREATED                                                                               |
|------------------------------------------------------------------------------------|------------|---------------|-------------------------------------------------------------------------------------------|
| <b>SCJ-010</b> BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission | Respondent | Distinguished | Distinguished “â€” held not applicable to the present (non-contractual, truing-up) facts. |

**Guntaiah & Others v. Hambamma & Others** (2005) 6 SCC 228 · Supreme Court

**PROPOSITION** Titles/marginal notes have the effect of only marginal notes and are not a legitimate aid to construction of a section or rule.

| CITED IN                                            | CITED BY | TREATMENT | HOW TREATED                   |
|-----------------------------------------------------|----------|-----------|-------------------------------|
| <b>SCJ-059</b> M/S Modern Rice Mill v. MVVNL & Anr. | Court    | Relied on | Relied on to the same effect. |

**Gunwant Kaur v. Municipal Committee, Bhatinda** (1969) 3 SCC 769 · Supreme Court

**PROPOSITION** In a petition under Article 226 the High Court has jurisdiction to try issues both of fact and law.

| CITED IN                                                    | CITED BY | TREATMENT | HOW TREATED                  |
|-------------------------------------------------------------|----------|-----------|------------------------------|
| <b>SCJ-040</b> Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr. | Court    | Referred  | Referred (within New Okhla). |

| <b>Harbanslal Sahnia &amp; Another</b> Supreme Court                                              |          |           |                                                                                   |
|---------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------|
| <b>PROPOSITION</b> Reiterates the Whirlpool Corporation exceptions to the alternative-remedy bar. |          |           |                                                                                   |
| CITED IN                                                                                          | CITED BY | TREATMENT | HOW TREATED                                                                       |
| <b>SCJ-112</b> Sanjay Rizvi v. M.D. Kanpur Electricity Supply Co. & Others                        | Court    | Followed  | Followed as reinforcing authority.                                                |
| <b>SCJ-112</b> Sanjay Rizvi v. M.D. Kanpur Electricity Supply Co. & Others                        | Court    | Followed  | Cited for writ maintainability principles despite the presence of disputed facts. |

  

| <b>Haridwar Singh v. Bagun Sumbrui &amp; Ors.</b> (1973) 3 SCC 889 · Supreme Court                                                                                                 |          |               |                                                                               |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|---------------|-------------------------------------------------------------------------------|
| <b>PROPOSITION</b> Even a revenue-enhancing decision requires mandatory Finance Department consultation under Rules of Business if taken without the Chief Minister's involvement. |          |               |                                                                               |
| CITED IN                                                                                                                                                                           | CITED BY | TREATMENT     | HOW TREATED                                                                   |
| <b>SCJ-134</b> The State of Haryana & Ors. v. M/s Faridabad Gurgaon Minerals & Anr. (with M/s Ganpati Enterprises Slate Mines)                                                     | Court    | Distinguished | Distinguished on facts (no Chief Ministerial involvement there, unlike here). |

  

| <b>Haryana State Electricity Board v. Hanuman Rice Mills, Dhanauri</b> (2010) 9 SCC 145 : AIR 2010 SC 3835 · Supreme Court                                                                                                                                         |            |           |                                                                                                                                 |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------------------------------------------------------------------------|
| <b>PROPOSITION</b> Electricity arrears are not a charge on the property, but where statutory rules or statutory terms and conditions of supply authorise it, the supplier may demand the previous owner's arrears from a purchaser claiming a fresh/re-connection. |            |           |                                                                                                                                 |
| CITED IN                                                                                                                                                                                                                                                           | CITED BY   | TREATMENT | HOW TREATED                                                                                                                     |
| <b>SCJ-248</b> Kalawati Rana v. U.P. Power Corporation Ltd. Thru its M.D./Chairman and Another                                                                                                                                                                     | Respondent | Applied   | Applied; the U.P. Code (unlike the position in Haryana) contains express rules enabling recovery, so the refusal was justified. |

  

| <b>Haryana State Electricity Board v. Hanuman Rice Mills, Dhanauri &amp; Ors.</b> (2010) 9 SCC 145 · Supreme Court                                                                                                                                                                                                                                              |            |               |                                                                                                                                                                                                                                                                           |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>PROPOSITION</b> Electricity arrears do not constitute a charge over the property (following Isha Marbles); a transferee cannot be made liable for a predecessor's electricity dues absent a specific enabling clause (such as Clause 21A considered in Paramount Polymers) in the terms and conditions of supply authorising such recovery from a purchaser. |            |               |                                                                                                                                                                                                                                                                           |
| CITED IN                                                                                                                                                                                                                                                                                                                                                        | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                                                                                               |
| <b>SCJ-098</b> Palika Towns LLP v. State of U.P. & 2 Others                                                                                                                                                                                                                                                                                                     | Petitioner | Distinguished | Surveyed as part of the settled electricity-dues transferee-liability position; held of no assistance to the petitioner here since the lease deed did contain an express first-charge stipulation (unlike the absence of such a clause in the electricity context there). |
| <b>SCJ-125</b> Smt. Pawan Jha @ Priya Jha v. State of U.P. And Others                                                                                                                                                                                                                                                                                           | Court      | Followed      | Applied alongside DVS Steels as controlling authority.                                                                                                                                                                                                                    |
| <b>SCJ-127</b> Special Officer, Commerce, North Eastern Electricity Company of Orissa (NESCO) & Anr. v. M/s Raghunath Paper Mills Private Limited & Anr.                                                                                                                                                                                                        | Court      | Followed      | Followed as the summarising statement of law.                                                                                                                                                                                                                             |

**Hindustan Zinc Ltd. v. RERC** (2015) 12 SCC 611 · Supreme Court

**PROPOSITION** Subordinate legislation, including regulations framed under statutory authority, carries a presumption of constitutionality; the burden lies on the challenger to establish invalidity.

| CITED IN                                                                                             | CITED BY   | TREATMENT | HOW TREATED                                                                                                                           |
|------------------------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-110</b> Ramayana Ispat Pvt. Ltd. & Anr. v. State of Rajasthan & Ors. (with connected appeals) | Respondent | Followed  | Applied to place the burden on the appellants to demonstrate the Regulations of 2016 were invalid, a burden they failed to discharge. |

**HMT Ltd. v. Mudappa** JT 2007 (3) SC 112 · Supreme Court

**PROPOSITION** Malice in law doctrine applied to administrative/service action.

| CITED IN                                                     | CITED BY | TREATMENT | HOW TREATED                            |
|--------------------------------------------------------------|----------|-----------|----------------------------------------|
| <b>SCJ-126</b> Smt. Vimla Tiwari v. State of U.P. And Others | Court    | Followed  | Cited in the malice-in-law discussion. |

**HMT Watches Ltd. v. M.A. Habida** (2015) 11 SCC 776 · Supreme Court

**PROPOSITION** Whether a cheque was given as security or towards an outstanding liability is a factual question determinable only at trial, not in s.482 Cr.P.C. proceedings.

| CITED IN                                                    | CITED BY | TREATMENT | HOW TREATED |
|-------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-132</b> Sunil Todi & Ors. v. State of Gujarat & Anr. | Court    | Followed  | Followed.   |

**Hoosein Kasam Dada (India) Ltd. v. State of M.P.** AIR 1953 SC 221 · Supreme Court

**PROPOSITION** Unless the new Act expressly or by necessary implication is retrospective, the right of appeal crystallises on institution and a new deposit condition cannot be imposed.

| CITED IN                                          | CITED BY | TREATMENT | HOW TREATED                     |
|---------------------------------------------------|----------|-----------|---------------------------------|
| <b>SCJ-008</b> Aruna Bhargava v. PuVVNL & Another | Court    | Referred  | Referred (within Ramesh Singh). |

**Hyderabad Vanaspati Ltd. v. A.P. State Electricity Board** (1998) 2 SCR 620 · Supreme Court

**PROPOSITION** Terms and conditions of supply notified by an Electricity Board under Section 49 of the Electricity (Supply) Act are statutory, not contractual; a condition for recovery of dues from a transferee is not ex facie unauthorised or unreasonable.

| CITED IN                                                                                  | CITED BY | TREATMENT | HOW TREATED                                                                                   |
|-------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------------------|
| <b>SCJ-031</b> Haryana State Electricity Board v. M/s Hanuman Rice Mills, Dhanauri & Ors. | Court    | Referred  | Referred (within Paramount Polymers) for the statutory character of the conditions of supply. |

|                                                                                                                                                                                                                              |                 |                  |                                                                          |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------------|
| <b>I.C. Golak Nath and others v. State of Punjab</b> 1967 AIR 1643 · Supreme Court (Constitution Bench)                                                                                                                      |                 |                  |                                                                          |
| <b>PROPOSITION</b> Introduced the doctrine of prospective overruling into Indian constitutional jurisprudence, distinguishing the Blackstonian (purely retrospective) theory from Cardozo's prospective-overruling approach. |                 |                  |                                                                          |
| <b>CITED IN</b>                                                                                                                                                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                       |
| <b>SCJ-128</b> Sri Chandra Mohan Goyal v. U.P. Power Corporation Ltd. & Others                                                                                                                                               | Court           | Referred         | Cited as the foundational source of the prospective-overruling doctrine. |

|                                                                                                                                                                                               |                 |                  |                                                                        |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|------------------------------------------------------------------------|
| <b>In Re: Expeditious Trial of Cases under Section 138 of the N.I. Act 1881</b> Suo Motu Writ Petition (Crl) No. 2 of 2020, decided 16.4.2021 · Supreme Court (Constitution Bench)            |                 |                  |                                                                        |
| <b>PROPOSITION</b> s.145 NI Act dispenses with mandatory oral examination of witnesses on oath for the s.202 Cr.P.C. inquiry in s.138 complaints; complainant's evidence may be by affidavit. |                 |                  |                                                                        |
| <b>CITED IN</b>                                                                                                                                                                               | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                     |
| <b>SCJ-132</b> Sunil Todi & Ors. v. State of Gujarat & Anr.                                                                                                                                   | Court           | Followed         | Applied to hold the Magistrate's summoning process procedurally valid. |

|                                                                                                                                                                   |                 |                  |                                                                  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|------------------------------------------------------------------|
| <b>In re: Natural Resources Allocation, Special Reference No. 1 of 2012</b> (2012) 10 SCC 1 · Supreme Court (Constitution Bench)                                  |                 |                  |                                                                  |
| <b>PROPOSITION</b> Clarifies that the binding 'law declared' under Article 141 is the ratio decidendi culled from the judgment as a whole, not every observation. |                 |                  |                                                                  |
| <b>CITED IN</b>                                                                                                                                                   | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                               |
| <b>SCJ-130</b> State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.                                                                               | Court           | Referred         | Cited by counsel on how to read the Tamil Nadu Generation ratio. |

|                                                                                                                                                                                                                                                                                                                                                                                 |                 |                  |                                                                                  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------|
| <b>Indian Aluminium Co. v. Kerala State Electricity Board</b> (1975) 2 SCC 414 · Supreme Court                                                                                                                                                                                                                                                                                  |                 |                  |                                                                                  |
| <b>PROPOSITION</b> A stipulation entered into by a public authority in exercise of a statutory power, even if it fetters future exercise of the same or another statutory power, is valid and binding on the principle of harmonious construction “ but this applies only to express stipulations in exercise of statutory power, not silence in a private-contract-style term. |                 |                  |                                                                                  |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                               |
| <b>SCJ-134</b> The State of Haryana & Ors. v. M/s Faridabad Gurgaon Minerals & Anr. (with M/s Ganpati Enterprises Slate Mines)                                                                                                                                                                                                                                                  | Court           | Distinguished    | Distinguished “ no express fettering stipulation existed in the lease deed here. |

|                                                                                                                                                                                          |                 |                  |                                                                                                                                                |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Indian Aluminium Co. v. State of Kerala</b> (1996) 7 SCC 637 : AIR 1996 SC 1431 · Supreme Court                                                                                       |                 |                  |                                                                                                                                                |
| <b>PROPOSITION</b> The legislature cannot by mere declaration overrule a judicial decision, but may render it ineffective by validly altering the law fundamentally and retrospectively. |                 |                  |                                                                                                                                                |
| <b>CITED IN</b>                                                                                                                                                                          | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                             |
| <b>SCJ-255</b> M/s. Suvidha Engineers India Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                        | Petitioner      | Distinguished    | Distinguished: the tests for a validating act do not arise, Clause 4.49 being a protective provision unconnected with overriding any decision. |

**Indian Overseas Bank v. RCM Infrastructure Ltd.** AIR Online 2022 SC 736 · Supreme Court

**PROPOSITION** Once CIRP is initiated and a moratorium is ordered, SARFAESI Act proceedings against the Corporate Debtor cannot continue; IBC, being a later Parliamentary code, overrides inconsistent provisions of other laws under s.238.

| CITED IN                                                                                   | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                            |
|--------------------------------------------------------------------------------------------|------------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-090</b> Narendra Singh Panwar v. Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Petitioner | Distinguished | Relied on by the petitioner for the general overriding-effect proposition, but distinguished on facts “that case concerned action against the Corporate Debtor's own assets, not a personal guarantor. |

**Indira Sohanlal v. Custodian of Evacuee Property, Delhi** AIR 1956 SC 77 · Supreme Court

**PROPOSITION** Observed that the right of appeal in a pending action may be a substantive vesting right, but left the question open.

| CITED IN                                          | CITED BY | TREATMENT | HOW TREATED                                                  |
|---------------------------------------------------|----------|-----------|--------------------------------------------------------------|
| <b>SCJ-008</b> Aruna Bhargava v. PuVVNL & Another | Court    | Referred  | Referred; the open question was later settled in Garikapati. |

**Indus Airways Private Ltd. v. Magnum Aviation Private Ltd.** (2014) 12 SCC 539 · Supreme Court

**PROPOSITION** A cheque issued as advance payment for a purchase order later cancelled (with no goods ever supplied) does not secure a legally enforceable debt or liability; s.138 requires a subsisting debt/liability on the date of drawing.

| CITED IN                                                    | CITED BY | TREATMENT     | HOW TREATED                                                                                                                                |
|-------------------------------------------------------------|----------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-132</b> Sunil Todi & Ors. v. State of Gujarat & Anr. | Court    | Distinguished | Distinguished “here, unlike Indus Airways, the underlying commercial transaction (power supply) was actually performed and a debt accrued. |

**Innovative Industries Ltd. v. ICICI Bank** (2018) 1 SCC 407 · Supreme Court

**PROPOSITION** The IBC is a complete, self-contained code with overriding effect over inconsistent State/other laws.

| CITED IN                                                                                         | CITED BY   | TREATMENT | HOW TREATED                                                   |
|--------------------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------|
| <b>SCJ-160</b> Reliance Projects and Property Management Services Ltd. v. State of U.P. & Others | Petitioner | Referred  | Referred on the primacy and self-contained nature of the IBC. |

**Innovative Industries Ltd. v. ICICI Bank & Anr.** (2018) 1 SCC 407 · Supreme Court

**PROPOSITION** Section 238 of the IBC, containing the widest possible non-obstante clause, ensures that no right of the corporate debtor under any other law can come in the way of the Code.

| CITED IN                                                                                                                         | CITED BY   | TREATMENT | HOW TREATED                                                                        |
|----------------------------------------------------------------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------------------------|
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Petitioner | Followed  | Relied on for the general primacy of IBC s.238 over conflicting sectoral statutes. |

***Isha Marbles v. Bihar State Electricity Board*** (1995) 2 SCC 648 · Supreme Court

**PROPOSITION** Absent a charge over the property or a statutory rule authorising a demand for the previous occupant's dues, an auction-purchaser seeking a fresh connection cannot be required to clear the pre-sale arrears; such a purchaser is not a 'consumer' liable for the predecessor's contractual dues.

| CITED IN                                                                                  | CITED BY   | TREATMENT | HOW TREATED                                                                                                                                               |
|-------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-031</b> Haryana State Electricity Board v. M/s Hanuman Rice Mills, Dhanauri & Ors. | Respondent | Referred  | Explained and confined â€” its ratio applies where there is no enabling statutory rule/condition; it does not bar recovery where such a condition exists. |

***Isha Marbles v. Bihar State Electricity Board*** (1995) 2 SCC 648 · Supreme Court

**PROPOSITION** A fresh purchaser / auction-purchaser could not be saddled with the previous owner's electricity arrears in the absence of a statutory charge; the duty to supply could not be conditioned on clearing another's dues.

| CITED IN                                                                                           | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                                                                                              |
|----------------------------------------------------------------------------------------------------|------------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-037</b> K.C. Ninan v. Kerala State Electricity Board & Ors.                                 | Petitioner | Distinguished | Distinguished / substantially qualified â€” the Court recognised that a statutory charge can be created under the Supply Code (ss.50/181, and s.49 of the 1948 Act), so arrears are recoverable from a transferee where such a Condition of Supply exists.               |
| <b>SCJ-225</b> Raman Ispat (Pvt.) Ltd. & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.    | Petitioner | Distinguished | Cited by the petitioner for the proposition that past dues cannot be enforced against a subsequent purchaser; distinguished/limited in light of DUS Steels where a fresh connection/enhancement to the same premises is sought.                                          |
| <b>SCJ-229</b> Smt. Soni Dwivedi v. Madhyanchal Vidyut Vitran Nigam Ltd. thru. its Chairman & Ors. | Petitioner | Distinguished | Distinguished: it arose under the Electricity Act, 1910 r/w the Bihar and Orissa Public Demands Recovery Act, 1914 (auction-purchaser context), whereas the 2005 Code governs the present field and makes clearing prior dues a condition precedent to a new connection. |

***J.M.D. Alloys Ltd. v. Bihar State Electricity Board*** (2003) 5 SCC 226 : AIR 2003 SC 1354 · Supreme Court

**PROPOSITION** Where the period of unauthorised use cannot be established, the maximum (fallback) period may be taken for computing the assessment.

| CITED IN                                                                         | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                       |
|----------------------------------------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-211</b> Ram Bahadur v. State of U.P. & Others                             | Respondent | Distinguished | Distinguished: there the period could not be established; here it was ascertainable from the date of connection.                                                                                  |
| <b>SCJ-247</b> M/s. Citi Hotel v. Commissioner, Lucknow Division, Lucknow & Ors. | Respondent | Distinguished | Distinguished: here there was a full trial with oral and documentary evidence ending in acquittal, unlike the mere acceptance of a final report in J.M.D. Alloys, so it did not aid the licensee. |



**J.N. Banavalikar v. Municipal Corporation of Delhi** AIR 1996 SC 326 · Supreme Court**PROPOSITION** In the absence of impleadment of the person who allegedly passed a mala fide order, a contention of malice in fact should not be countenanced.

| CITED IN                                                                                           | CITED BY | TREATMENT | HOW TREATED                   |
|----------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------|
| <b>SCJ-051</b> M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors. | Court    | Relied on | Relied on to the same effect. |

**Jharkhand State Electricity Board v. Laxmi Business and Cement Company Pvt. Ltd.** (2014) 5 SCC 236 · Supreme Court**PROPOSITION** On minimum-guarantee charge.

| CITED IN                                                                                    | CITED BY   | TREATMENT     | HOW TREATED                                                     |
|---------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------------------------|
| <b>SCJ-035</b> Jharkhand State Electricity Board & Others v. M/s Ramkrishna Forging Limited | Respondent | Distinguished | Distinguished on facts as relating to minimum-guarantee charge. |

**K. Kishan v. Vijay Nirman Company Private Limited** (2018) 17 SCC 662 · Supreme Court**PROPOSITION** Upholds the primacy of IBC s.238 over the Arbitration and Conciliation Act, 1996.

| CITED IN                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                  |
|----------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------|
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Court    | Referred  | Referred as another instance of IBC primacy. |

**K. Shashidhar v. Indian Overseas Bank** 2019 (3) SCR 845 · Supreme Court**PROPOSITION** Once the conditions of s.33 IBC are met, the Adjudicating Authority must initiate liquidation as a matter of course, with no discretion to evaluate the CoC's commercial decision.

| CITED IN                                                                                    | CITED BY | TREATMENT | HOW TREATED                                                                             |
|---------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------------|
| <b>SCJ-100</b> Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Limited & Ors. | Court    | Followed  | Cited for the mandatory, non-discretionary nature of liquidation initiation under s.33. |

|                                                                                                                                                                                                                                                                          |                                                                         |                  |                                                                                                                                                                                 |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------|------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>K.C. Ninan v. Kerala State Electricity Board</b> (2023) 14 SCC 431 · Supreme Court                                                                                                                                                                                    |                                                                         |                  |                                                                                                                                                                                 |
| <b>PROPOSITION</b> Electricity utilities can, by subordinate legislation or statutory conditions of supply, create a charge enabling recovery of electricity arrears from a subsequent transferee; recoupment of arrears protects the public good of electricity supply. |                                                                         |                  |                                                                                                                                                                                 |
| <b>CITED IN</b>                                                                                                                                                                                                                                                          | <b>CITED BY</b>                                                         | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                              |
| <b>SCJ-005</b> Amir Ahmad v. State of U.P. & 4 Others                                                                                                                                                                                                                    | Respondent                                                              | Followed         | Followed and applied to hold the auction-purchaser liable to clear arrears before a new connection is released.                                                                 |
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others                                                                                                                                         | Petitioner and Respondent (both relied on it, for opposite conclusions) | Distinguished    | Distinguished/confined “ held applicable only outside the IBC framework; does not govern where the utility has itself participated in and lodged a claim in an IBC liquidation. |
| <b>SCJ-064</b> M/S Santosh Preservation Pvt. Ltd. & Anr. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Anr.                                                                                                                                                                | Court                                                                   | Referred         | Referred to support a purposive interpretation of Clause 5.6 that does not create an artificial independent-testing right in cases of patent, visible meter tampering.          |

|                                                                                 |                 |                  |                    |
|---------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>K.K. Bhalla v. State of U.P.</b> Supreme Court                               |                 |                  |                    |
| <b>PROPOSITION</b> Cited in the string of malice-in-law authorities at para 42. |                 |                  |                    |
| <b>CITED IN</b>                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-126</b> Smt. Vimla Tiwari v. State of U.P. And Others                    | Court           | Referred         | Cited in support.  |

|                                                                                                             |                 |                  |                    |
|-------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>K.V. Rajalakshmiah Setty v. State of Mysore</b> AIR 1961 SC 993 · Supreme Court                          |                 |                  |                    |
| <b>PROPOSITION</b> A mere representation is not an adequate explanation for delay in approaching the court. |                 |                  |                    |
| <b>CITED IN</b>                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-068</b> M/S Three Star Paper Mills Pvt. Ltd. v. State of U.P. & 5 Ors.                               | Court           | Relied on        | Relied on.         |

|                                                                                                                                                                            |                 |                  |                                                                                                                      |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------------------------------------------|
| <b>Kanpur Electricity Supply Co. Ltd. v. LML Ltd.</b> (2010) 6 SCC 165 · Supreme Court                                                                                     |                 |                  |                                                                                                                      |
| <b>PROPOSITION</b> Affirmed this judgment: the load reduction stood approved on the licensee's decision and the consumer was entitled to have its load treated as reduced. |                 |                  |                                                                                                                      |
| <b>CITED IN</b>                                                                                                                                                            | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                   |
| <b>SCJ-246</b> M/s L.M.L. Ltd. v. State of U.P. & Ors.                                                                                                                     | Court           | Affirmed         | Subsequent history - this High Court judgment was affirmed by the Supreme Court (recorded in the corpus as SCJ-038). |

|                                                                                                                                                |          |           |             |
|------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>Karnal Improvement Trust v. Prakashwanti</b> (1995) 5 SCC 159 · Supreme Court                                                               |          |           |             |
| PROPOSITION Acquiescence does not confer jurisdiction, and an erroneous interpretation should not be perpetuated defeating legislative intent. |          |           |             |
| CITED IN                                                                                                                                       | CITED BY | TREATMENT | HOW TREATED |
| SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.                                                           | Court    | Relied on | Relied on.  |

|                                                                                                              |                    |               |                                                                                                                                                                                                 |
|--------------------------------------------------------------------------------------------------------------|--------------------|---------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Kavita Trehan &amp; Anr. v. Balsara Hygiene Products Ltd.</b> (1994) 5 SCC 380 · Supreme Court            |                    |               |                                                                                                                                                                                                 |
| PROPOSITION The power to make restitution is inherent in every court, applying even outside Section 144 CPC. |                    |               |                                                                                                                                                                                                 |
| CITED IN                                                                                                     | CITED BY           | TREATMENT     | HOW TREATED                                                                                                                                                                                     |
| SCJ-073 M/S NTPC Ltd. v. M.P. State Electricity Board & Ors. (with connected appeals)                        | Electricity Boards | Distinguished | Distinguished â€” that case involved wrongful termination of a contract and an injunction in a civil suit, factually inapposite here; the Tribunal itself found no coercive extraction by NTPC. |

|                                                                                                                                         |            |           |                                                                                                                 |
|-----------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------------------------------------------------------|
| <b>Khem Chand v. Union of India</b> AIR 1958 SC 300 · Supreme Court                                                                     |            |           |                                                                                                                 |
| PROPOSITION A 'reasonable opportunity' of showing cause includes an opportunity of a personal hearing (in the service-inquiry context). |            |           |                                                                                                                 |
| CITED IN                                                                                                                                | CITED BY   | TREATMENT | HOW TREATED                                                                                                     |
| SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another                                                                                       | Petitioner | Referred  | Discussed and distinguished as a service matter, but its principle supported requiring a personal hearing here. |

|                                                                                                                               |          |           |                                                                                                                    |
|-------------------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------------|
| <b>Khem Chand v. Union of India &amp; Ors.</b> AIR 1958 SC 300 · Supreme Court                                                |          |           |                                                                                                                    |
| PROPOSITION Lays down the content and standard of 'reasonable opportunity' of hearing to be afforded before an adverse order. |          |           |                                                                                                                    |
| CITED IN                                                                                                                      | CITED BY | TREATMENT | HOW TREATED                                                                                                        |
| SCJ-047 Lalit Kumar Kapoor v. Kanpur Electricity Supply Company & Anr.                                                        | Court    | Relied on | Relied on to define the standard of reasonable opportunity applicable before a theft-based Section 126 assessment. |

|                                                                                                                                                                    |          |           |                                                 |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------|
| <b>Kihoto Hollohan v. Zachillhu</b> 1992 Supp (2) SCC 651 · Supreme Court (Constitution Bench)                                                                     |          |           |                                                 |
| PROPOSITION A body discharging judicial functions of far-reaching effect must have the essential 'trappings of the Court', including presence of judicial members. |          |           |                                                 |
| CITED IN                                                                                                                                                           | CITED BY | TREATMENT | HOW TREATED                                     |
| SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.                                                                                       | Court    | Followed  | Cited for the 'trappings of a court' principle. |

**Kiran Singh v. Chaman Paswan** AIR 1954 SC 340 · Supreme Court

**PROPOSITION** A defect of jurisdiction strikes at the very authority of the Court to pass any decree and cannot be cured even by consent of parties.

| CITED IN                                                                                    | CITED BY | TREATMENT | HOW TREATED                   |
|---------------------------------------------------------------------------------------------|----------|-----------|-------------------------------|
| <b>SCJ-049</b> M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr. | Court    | Relied on | Relied on to the same effect. |

**Kunj Behari Lal Butail & Ors. v. State of H.P. & Ors.** (2000) 3 SCC 40 · Supreme Court

**PROPOSITION** Where a general rule-making power is conferred, the object of the enactment must be found and the rules tested against whether they fall within its scope; where the delegation is not general, the rules must be protected by the limits prescribed by the parent Act.

| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals) | Court    | Followed  | Followed.   |

**Kusheshwar Prasad Singh v. State of Bihar** Supreme Court

**PROPOSITION** An authority cannot take undue advantage of its own default in discharging a statutory duty; a wrongdoer ought not to profit from his own wrong.

| CITED IN                                                               | CITED BY | TREATMENT | HOW TREATED                                                                                              |
|------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------------------------------------|
| <b>SCJ-001</b> Indian Oil Corporation Ltd. v. State of U.P. & 3 Others | Court    | Followed  | Quoted (¶ 54) and applied to the licensee's 7-year delay in disconnecting and 10-year delay in amending. |

**Kusumam Hotels (P) Ltd. v. Kerala State Electricity Board & Others** Civil Appeal No. 101 of 2007, decided 16.5.2008 · Supreme Court

**PROPOSITION** Section 56(2) of the Electricity Act, 2003 applies only after the Act came into force; the bar of limitation does not apply to liabilities of a consumer incurred prior to the Act's commencement, given s.6 of the General Clauses Act preserving accrued liabilities on repeal.

| CITED IN                                                                  | CITED BY | TREATMENT | HOW TREATED                                                                                                        |
|---------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-122</b> Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others | Court    | Followed  | Applied as the controlling authority to hold s.56(2) inapplicable to the pre-2003-Act peak-hour penalty liability. |

**Lalit Kumar Jain v. Union of India & Ors.** (2021) 9 SCC 321 · Supreme Court

**PROPOSITION** Approval of a resolution plan under s.31 IBC does not ipso facto discharge a personal guarantor of a Corporate Debtor of liability under the contract of guarantee; release of the principal borrower by an involuntary process (insolvency/liquidation) does not absolve the guarantor, whose liability arises from an independent contract.

| CITED IN                                                                                   | CITED BY   | TREATMENT | HOW TREATED                                                                                                                             |
|--------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-090</b> Narendra Singh Panwar v. Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Respondent | Followed  | Applied as the leading authority for rejecting the discharge argument; extent of liability held to depend on the guarantee's own terms. |

**Laxmi Pat Surana v. Union of India & Anr.** (2021) 8 SCC 481 · Supreme Court

**PROPOSITION** IBC is a complete, beneficiary code intended to rehabilitate the Corporate Debtor, not merely a money-recovery statute; a Corporate Debtor's guarantor liability is coextensive and coterminous with the principal borrower's obligation under s.128 of the Contract Act.

| CITED IN                                                                                   | CITED BY | TREATMENT | HOW TREATED                                                                                   |
|--------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------------------|
| <b>SCJ-090</b> Narendra Singh Panwar v. Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Court    | Followed  | Cited for the general character of the IBC and the coextensive nature of guarantor liability. |

**M. Rathinaswami & Ors. v. State of Tamil Nadu & Ors.** (2009) 5 SCC 625 · Supreme Court

**PROPOSITION** To save a statutory provision from unconstitutionality, a restricted or extended interpretation may sometimes be required.

| CITED IN                                                                                                     | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                |
|--------------------------------------------------------------------------------------------------------------|------------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-094</b> Northern Coalfield Ltd. v. Chairman and Managing Director, U.P. Power Corporation Ltd. & Ors. | Petitioner | Distinguished | Held inapplicable “the non obstante clause in Rule 8(3)-equivalent tariff language here was clear and unambiguous, raising no constitutionality concern requiring a saving interpretation. |

**M.K. Shah Engineers & Contractors v. State of M.P.** Supreme Court

**PROPOSITION** No one may take advantage of one's own wrong; a party whose conduct disables a preceding procedural step is deemed to have waived it.

| CITED IN                                                               | CITED BY | TREATMENT | HOW TREATED                                                                                                                             |
|------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-001</b> Indian Oil Corporation Ltd. v. State of U.P. & 3 Others | Court    | Followed  | Quoted (¶ 51) and applied: the prerequisite of amending the agreement deemed waived within a reasonable time of the consumer's request. |

**M.P. Electricity Board and Others v. Shiv Narayan and Another** (2005) 7 SCC 283 · Supreme Court

**PROPOSITION** An advocate's office cannot be charged additional (commercial) tariff, as the legal profession is not a commercial activity; 'non-domestic' and 'commercial' are not interchangeable terms.

| CITED IN                                                                                                                            | CITED BY | TREATMENT | HOW TREATED                       |
|-------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------|
| <b>SCJ-133</b> Tehsil Bar Association, Sadar Tehsil Parisar, Gandhi Nagar, Ghaziabad v. U.P. Power Corporation Limited And 3 Others | Court    | Followed  | Followed as directly controlling. |

**M.P. State Electricity Board v. Gras Industries Ltd.** AIR 2008 SC 433 · Supreme Court

**PROPOSITION** Cited on the distinction between security/additional security and dues/arrears.

| CITED IN                                                                                                                                                            | CITED BY   | TREATMENT | HOW TREATED                                                                    |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|--------------------------------------------------------------------------------|
| <b>SCJ-252</b> Tehri Girders Limited and another v. Paschimanchal Vidyut Vitran Nigam Limited and others (with R.A. Castings, Sikka Papers and connected petitions) | Petitioner | Referred  | Referred in support of the petitioners' distinction between security and dues. |

|                                                                                                                                                                                                                                                                                                                                               |                 |                  |                                                           |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------|
| <b>Madhya Pradesh Electricity Board &amp; Ors. v. Smt. Basantibai</b> (1988) 1 SCC 23 · Supreme Court                                                                                                                                                                                                                                         |                 |                  |                                                           |
| <b>PROPOSITION</b> A dispute over fraud in tampering with a meter, manipulating the supply line, or breaking the meter's body seal falls outside s.26(6) of the Indian Electricity Act, 1910; an Electrical Inspector has no jurisdiction over such fraud disputes, which are distinct from genuine meter-correctness/defectiveness disputes. |                 |                  |                                                           |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                                               | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                        |
| <b>SCJ-151</b> Western Electricity Supply Co. of Orissa Ltd. & Ors. v. M/s Baba Baijanath Roller and Flour Mill Pvt. Ltd.                                                                                                                                                                                                                     | Court           | Followed         | Followed as controlling on the s.26(6)/fraud distinction. |

|                                                                                                                                                                                                                                                                                                                                                                                       |                 |                  |                                                           |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------|
| <b>Madhya Pradesh Electricity Board v. Smt. Basantibai</b> (1988) 1 SCC 23 · Supreme Court                                                                                                                                                                                                                                                                                            |                 |                  |                                                           |
| <b>PROPOSITION</b> Where there is no allegation of tampering, a dispute whether a meter is correct or faulty falls under s.26(6) of the IEA 1910 and must be decided by the Electrical Inspector, who alone may estimate the energy consumed (not exceeding six months) and fix the amount; the Board cannot itself raise or enforce a supplementary bill pending that determination. |                 |                  |                                                           |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                                                                                       | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                        |
| <b>SCJ-167</b> U.P. Rajya Vidyut Parishad v. Panjab Corbohydrate                                                                                                                                                                                                                                                                                                                      | Court           | Followed         | Followed and quoted (para 13) as the governing authority. |
| <b>SCJ-262</b> I.G. Shoes Pvt. Ltd. v. Kanpur Electricity Supply Co. Ltd. and Others                                                                                                                                                                                                                                                                                                  | Court           | Followed         | Followed on the limits of s.26(6).                        |

|                                                                                                                                                                               |                 |                  |                                                                                       |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------------|
| <b>Madhya Pradesh Electricity Board v. Union of India &amp; Ors.</b> 2006 (9) SCALE 194 · Supreme Court                                                                       |                 |                  |                                                                                       |
| <b>PROPOSITION</b> The Electricity (Supply) Act, 1948 provides for the constitution and composition of State Electricity Boards, each State being enjoined to constitute one. |                 |                  |                                                                                       |
| <b>CITED IN</b>                                                                                                                                                               | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                    |
| <b>SCJ-091</b> Naresh Kumar Madan v. State of Madhya Pradesh                                                                                                                  | Court           | Followed         | Cited for the general statutory background on the constitution of Electricity Boards. |

|                                                                                                                           |                 |                  |                                               |
|---------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------|
| <b>Madhya Pradesh State Cooperative Dairy Federation Ltd. v. Rajnesh Kumar Jamindar</b> (2009) 15 SCC 221 · Supreme Court |                 |                  |                                               |
| <b>PROPOSITION</b> (Cited among the mala fide-doctrine authorities; held inapplicable on facts.)                          |                 |                  |                                               |
| <b>CITED IN</b>                                                                                                           | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                            |
| <b>SCJ-051</b> M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.                        | Petitioner      | Distinguished    | Held not applicable to the facts of the case. |

|                                                                                                                                                                                                              |                 |                  |                                                             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------|
| <b>Madras Bar Association v. Union of India &amp; Anr.</b> (2014) 10 SCC 1 · Supreme Court (Constitution Bench)                                                                                              |                 |                  |                                                             |
| <b>PROPOSITION</b> Held the National Tax Tribunal Act unconstitutional on grounds including inadequate provision for judicial members; separation of powers/judicial review are part of the basic structure. |                 |                  |                                                             |
| <b>CITED IN</b>                                                                                                                                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                          |
| <b>SCJ-130</b> State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.                                                                                                                          | Court           | Followed         | Relied upon for the basic-structure/legal-Member reasoning. |

|                                                                                                                                                                                                                                               |                 |                  |                                                                                  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------|
| <b>Mahabir Kishore v. State of M.P.</b> (1989) 4 SCC 1 · Supreme Court                                                                                                                                                                        |                 |                  |                                                                                  |
| <b>PROPOSITION</b> Under s.17(1)(c) of the Limitation Act, 1963, in a case of relief on the ground of mistake, limitation does not begin until the plaintiff has discovered, or could with reasonable diligence have discovered, the mistake. |                 |                  |                                                                                  |
| <b>CITED IN</b>                                                                                                                                                                                                                               | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                               |
| <b>SCJ-009</b> Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. & Anr. v. Rahamatullah Khan alias Rahamjulla                                                                                                                           | Court           | Relied on        | Relied on to fix the limitation start-point at discovery of the billing mistake. |

|                                                                                                                                                                         |                 |                  |                                                                                |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------------------|
| <b>Mahanta Moti Das v. S.P. Sahid</b> Supreme Court                                                                                                                     |                 |                  |                                                                                |
| <b>PROPOSITION</b> Where a question involves investigation of complicated facts and recording of evidence, the High Court may refuse to decide it in a writ proceeding. |                 |                  |                                                                                |
| <b>CITED IN</b>                                                                                                                                                         | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                             |
| <b>SCJ-040</b> Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.                                                                                                             | Court           | Referred         | Referred (within New Okhla) on declining writ jurisdiction over complex facts. |

|                                                                                                                                                                          |                 |                  |                                                                                                     |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------|
| <b>Maharashtra State Electricity Regulatory Commission v. Reliance Energy Ltd.</b> (2007) 8 SCC 381 : AIR 2008 SC 976 · Supreme Court                                    |                 |                  |                                                                                                     |
| <b>PROPOSITION</b> On the CGRF/Ombudsman redressal scheme, directing wide advertisement of the provisions for redressal through the forum and the Electricity Ombudsman. |                 |                  |                                                                                                     |
| <b>CITED IN</b>                                                                                                                                                          | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                  |
| <b>SCJ-260</b> Purvanchal Vidyut Vitran Nigam Ltd., Bhikaripur & Anr. v. Vidyut Lokpal (Electricity Ombudsman) & Anr.                                                    | Court           | Applied          | Referred and applied - similar directions issued to the UPERC to advertise the redressal mechanism. |

|                                                                                                                                                     |                 |                  |                                                                              |
|-----------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|------------------------------------------------------------------------------|
| <b>The Management of Hotel Imperial, New Delhi v. Hotel Workers' Union</b> AIR 1959 SC 1342 · Supreme Court                                         |                 |                  |                                                                              |
| <b>PROPOSITION</b> The power to suspend is a creature of statute or contract, to be exercised keeping in view the letter and spirit of the statute. |                 |                  |                                                                              |
| <b>CITED IN</b>                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                           |
| <b>SCJ-116</b> Shabih Haider v. State of U.P. thru. Prin. Secy., Housing & Urban Planning & Ors.                                                    | Court           | Followed         | Cited (via Dhirendra Kumar Rai) for the statutory basis of suspension power. |

|                                                                                 |                 |                  |                    |
|---------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>Manager, Government Branch Press v. D.B. Belliappa</b> Supreme Court         |                 |                  |                    |
| <b>PROPOSITION</b> Cited in the string of malice-in-law authorities at para 42. |                 |                  |                    |
| <b>CITED IN</b>                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-126</b> Smt. Vimla Tiwari v. State of U.P. And Others                    | Court           | Referred         | Cited in support.  |

|                                                                                                                                                                                  |          |           |                                                            |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------|
| <b>Managing Director (MIG), Hindustan Aeronautics Ltd. v. Ajit Prasad Tarway</b> AIR 1973 SC 76 · Supreme Court                                                                  |          |           |                                                            |
| PROPOSITION The High Court's supervisory jurisdiction under Article 227 is not to be exercised to interfere with concurrent findings/orders of the courts below as if in appeal. |          |           |                                                            |
| CITED IN                                                                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                |
| SCJ-018 Dipali Dey (Baxi) v. Mira Das                                                                                                                                            | Court    | Referred  | Referred in support of non-interference under Article 227. |

|                                                                                                                                             |          |           |                                                 |
|---------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------|
| <b>Managing Director, ECIL v. B. Karunakar</b> (1993) 4 SCC 727 · Supreme Court (Constitution Bench)                                        |          |           |                                                 |
| PROPOSITION Explains and limits the prospective application of Mohd. Ramzan Khan; law was 'unsettled' only until the date of that decision. |          |           |                                                 |
| CITED IN                                                                                                                                    | CITED BY | TREATMENT | HOW TREATED                                     |
| SCJ-128 Sri Chandra Mohan Goyal v. U.P. Power Corporation Ltd. & Others                                                                     | Court    | Referred  | Cited for the prospective-overruling framework. |

|                                                                                                                                                                                                                        |          |           |             |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>Manujendra Dutt v. Purnedu Prosad Roy Chowdhury</b> AIR 1967 SC 1419 · Supreme Court                                                                                                                                |          |           |             |
| PROPOSITION Deletion of a provision (there, s.29 of the Calcutta Thika Tenancy Act) does not divest the forum of jurisdiction over proceedings validly transferred and pending before it, absent a contrary provision. |          |           |             |
| CITED IN                                                                                                                                                                                                               | CITED BY | TREATMENT | HOW TREATED |
| SCJ-008 Aruna Bhargava v. PuVVNL & Another                                                                                                                                                                             | Court    | Relied on | Relied on.  |

|                                                                                                                                                                                                              |          |           |             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>Maria Cristina De Souza Sodder v. Amria Zurana Pereira Pinto</b> (1979) 1 SCC 92 · Supreme Court                                                                                                          |          |           |             |
| PROPOSITION The right of appeal is a substantive right that vests when the lis commences and is not affected by a repeal unless the repealing enactment expressly or by necessary implication takes it away. |          |           |             |
| CITED IN                                                                                                                                                                                                     | CITED BY | TREATMENT | HOW TREATED |
| SCJ-008 Aruna Bhargava v. PuVVNL & Another                                                                                                                                                                   | Court    | Relied on | Relied on.  |

|                                                                                                                                           |          |           |                                                                                                                            |
|-------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------------------------------------------------------|
| <b>Member, Board of Revenue v. Anthony Paul Benthall</b> (1955) 2 SCR 842 · Supreme Court                                                 |          |           |                                                                                                                            |
| PROPOSITION When a statute uses two different expressions in consecutive provisions, they cannot be construed as having the same meaning. |          |           |                                                                                                                            |
| CITED IN                                                                                                                                  | CITED BY | TREATMENT | HOW TREATED                                                                                                                |
| SCJ-100 Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Limited & Ors.                                                      | Court    | Followed  | Applied to hold 'secured creditor' dues and 'government dues' are distinct categories under s.53 IBC, not interchangeable. |

|                                                                                                                                                                                                                     |           |           |                                                                               |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|-----------|-------------------------------------------------------------------------------|
| <b>Midnapore People's Co-op. Bank v. Chunilal Nanda</b> (2006) 5 SCC 399 · Supreme Court                                                                                                                            |           |           |                                                                               |
| PROPOSITION Where a contempt court issues a direction in the nature of the exercise of writ-court powers, even beyond the scope of the writ court's order, a special appeal against that direction is maintainable. |           |           |                                                                               |
| CITED IN                                                                                                                                                                                                            | CITED BY  | TREATMENT | HOW TREATED                                                                   |
| SCJ-222 Daya Nand Sharma v. State of U.P. & Others                                                                                                                                                                  | Appellant | Followed  | Followed to hold the special appeal maintainable despite no punishment order. |



|                                                                                                                                                                                                                                |          |           |                                                                  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------|
| <b>Mineral Area Development Authority v. Steel Authority of India Ltd.</b> (2024) 10 SCC 1 · Supreme Court (Nine-Judge Bench)                                                                                                  |          |           |                                                                  |
| PROPOSITION The State acts as trustee for minerals held for public benefit and retains its constitutional regulatory and taxation powers over mineral rights notwithstanding inability to alter mining-lease clauses directly. |          |           |                                                                  |
| CITED IN                                                                                                                                                                                                                       | CITED BY | TREATMENT | HOW TREATED                                                      |
| SCJ-134 The State of Haryana & Ors. v. M/s Faridabad Gurgaon Minerals & Anr. (with M/s Ganpati Enterprises Slate Mines)                                                                                                        | Court    | Referred  | Cited in support of the State's continuing regulatory authority. |

|                                                                                                                                                                                                                                             |            |           |                                                                                                     |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------------------------------------------|
| <b>Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.</b> (1979) 2 SCC 409 : AIR 1979 SC 621 · Supreme Court                                                                                                                               |            |           |                                                                                                     |
| PROPOSITION Waiver means the intentional abandonment of a right and must be made with full knowledge of the right; there is no presumption that every person knows the law, so a right cannot be treated as waived without knowledge of it. |            |           |                                                                                                     |
| CITED IN                                                                                                                                                                                                                                    | CITED BY   | TREATMENT | HOW TREATED                                                                                         |
| SCJ-162 Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.                                                                                                                                                                    | Petitioner | Relied on | Relied on and quoted (para 6 of the SC judgment) to reject the plea of waiver against the consumer. |

|                                                                                                                                                                                                           |          |               |                                                                                                                   |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|---------------|-------------------------------------------------------------------------------------------------------------------|
| <b>MRF Limited v. Manohar Parrikar</b> (2010) 11 SCC 374 · Supreme Court                                                                                                                                  |          |               |                                                                                                                   |
| PROPOSITION Rules of Business framed under Article 166(3) are mandatory; a decision by an individual minister without the Chief Minister's knowledge, on a matter affecting State finances, is a nullity. |          |               |                                                                                                                   |
| CITED IN                                                                                                                                                                                                  | CITED BY | TREATMENT     | HOW TREATED                                                                                                       |
| SCJ-134 The State of Haryana & Ors. v. M/s Faridabad Gurgaon Minerals & Anr. (with M/s Ganpati Enterprises Slate Mines)                                                                                   | Court    | Distinguished | Distinguished – here the Chief Minister himself approved the decision, satisfying the constitutional requirement. |

|                                                                                                                     |          |           |                                                                                       |
|---------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------------------|
| <b>Mrutunjay Pani v. Narmada Bala Sasmal</b> AIR 1961 SC 1353 · Supreme Court                                       |          |           |                                                                                       |
| PROPOSITION Commodum ex injuria sua nemo habere debet – no one can be allowed to benefit from his own wrongful act. |          |           |                                                                                       |
| CITED IN                                                                                                            | CITED BY | TREATMENT | HOW TREATED                                                                           |
| SCJ-001 Indian Oil Corporation Ltd. v. State of U.P. & 3 Others                                                     | Court    | Followed  | Quoted (¶ 53) as the foundation of the maxim; applied against the licensee's default. |

|                                                                                                                                                        |            |           |                                                                                                                  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------------------------------------------------------|
| <b>MSEDCL v. JSW Steel Ltd.</b> Supreme Court                                                                                                          |            |           |                                                                                                                  |
| PROPOSITION Captive consumers bear no additional surcharge under s.42(4) even when not drawing from the licensee; such a levy would be discriminatory. |            |           |                                                                                                                  |
| CITED IN                                                                                                                                               | CITED BY   | TREATMENT | HOW TREATED                                                                                                      |
| SCJ-001 Indian Oil Corporation Ltd. v. State of U.P. & 3 Others                                                                                        | Petitioner | Referred  | Cited by the petitioner (¶ 27); noted, but the Court did not rest its decision on the captive/open-access point. |

**Mukesh Kumar Agrawal v. State of U.P.** JT 2009 (13) SC 643 · Supreme Court**PROPOSITION** Elaborates the malice-in-law doctrine as applicable to administrative/statutory action taken without just cause.

| CITED IN                                                     | CITED BY | TREATMENT | HOW TREATED                                                               |
|--------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------|
| <b>SCJ-126</b> Smt. Vimla Tiwari v. State of U.P. And Others | Court    | Followed  | Cited alongside S.R. Venkatraman in support of the malice-in-law finding. |

**Municipal Commissioner of Dum Dum Municipality v. Indian Tourism Development Corporation** 1995 (5) SCC 251 · Supreme Court**PROPOSITION** Statutory corporations (including Electricity Boards under the Electricity Supply Act, 1948) are distinct juristic entities with their own funds/properties, capable of contracting and being creditors/debtors independent of the Government even where government-owned.

| CITED IN                                                                                    | CITED BY | TREATMENT | HOW TREATED                                                                                  |
|---------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------------------------|
| <b>SCJ-100</b> Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Limited & Ors. | Court    | Followed  | Applied to hold PVVNL's dues are not 'government dues' merely because of state shareholding. |

**NESCO v. Raghunath Paper Mills (P) Ltd.** (2012) 13 SCC 479 · Supreme Court**PROPOSITION** An auction purchaser buying an official liquidator's sale 'as is where is, whatever there is' is not liable for the past owner's electricity arrears, and a request for a fresh connection cannot be rejected on that ground.

| CITED IN                                                                                                                         | CITED BY   | TREATMENT | HOW TREATED                                                                     |
|----------------------------------------------------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------------------------|
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Petitioner | Relied on | Relied on by the petitioner as a directly analogous liquidation-sale precedent. |

**New Bihar Biri Leaves Co. v. State of Bihar** (1981) 1 SCC 537 · Supreme Court**PROPOSITION** On the construction of commercial agreements and the ascertainment of price where the contract leaves it to be fixed.

| CITED IN                                                        | CITED BY | TREATMENT | HOW TREATED                                                         |
|-----------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------|
| <b>SCJ-156</b> Noida Power Company Ltd. v. State of U.P. & Anr. | Court    | Referred  | Cited on the construction of the agreement and price determination. |

**New Delhi Municipal Council v. Pan Singh & Others** JT 2007 (4) SC 253 · Supreme Court**PROPOSITION** A writ petition filed after a long time should not be entertained even if petitioners are similarly situated to those who obtained relief; delay and laches are relevant to exercise of equitable jurisdiction.

| CITED IN                                                                      | CITED BY | TREATMENT | HOW TREATED                                      |
|-------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------|
| <b>SCJ-068</b> M/S Three Star Paper Mills Pvt. Ltd. v. State of U.P. & 5 Ors. | Court    | Relied on | Relied on to dismiss the claim for delay/laches. |

|                                                                                                                                                                                                                                                           |                 |                  |                                                                                         |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------|
| <b><i>New Okhla Industrial Development Authority v. Kendriya Karmachari Sahkari Grih Nirman Samiti</i></b> 2006 (II) RJ 1365 · Supreme Court                                                                                                              |                 |                  |                                                                                         |
| <b>PROPOSITION</b> The High Court has jurisdiction under Article 226 to try issues of fact and law, but where the petition raises complex questions of fact requiring evidence, it should ordinarily decline and relegate the party to the normal remedy. |                 |                  |                                                                                         |
| <b>CITED IN</b>                                                                                                                                                                                                                                           | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                      |
| <b>SCJ-040</b> Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.                                                                                                                                                                                               | Petitioner      | Distinguished    | Applied against the petitioner: complex factual disputes are better left to the appeal. |

|                                                                                                                       |                 |                  |                                                      |
|-----------------------------------------------------------------------------------------------------------------------|-----------------|------------------|------------------------------------------------------|
| <b><i>Ningamma &amp; Anr. v. United India Insurance Co. Ltd.</i></b> Supreme Court                                    |                 |                  |                                                      |
| <b>PROPOSITION</b> A claimant is entitled to determination of just and reasonable compensation under different heads. |                 |                  |                                                      |
| <b>CITED IN</b>                                                                                                       | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                   |
| <b>SCJ-025</b> Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others                   | Court           | Applied          | Applied to uphold the heads of compensation awarded. |

|                                                                                                                   |                 |                  |                                       |
|-------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------|
| <b><i>Nirmala Anand v. Advent Corporation (Pvt.) Ltd.</i></b> Supreme Court                                       |                 |                  |                                       |
| <b>PROPOSITION</b> A party cannot take advantage of its own wrong; to permit it would confer an unfair advantage. |                 |                  |                                       |
| <b>CITED IN</b>                                                                                                   | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                    |
| <b>SCJ-001</b> Indian Oil Corporation Ltd. v. State of U.P. & 3 Others                                            | Court           | Relied on        | Cited (¶ 57) in support of the maxim. |

|                                                                                                                                                                                                                |                 |                  |                                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------|
| <b><i>Nizam's Institute of Medical Sciences v. Prasanth S. Dhananka &amp; Ors.</i></b> Supreme Court                                                                                                           |                 |                  |                                                                 |
| <b>PROPOSITION</b> In assessing compensation for grievous personal injury, the court strikes a balance and awards just compensation under different heads, taking guidance from Motor Vehicles Act principles. |                 |                  |                                                                 |
| <b>CITED IN</b>                                                                                                                                                                                                | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                              |
| <b>SCJ-025</b> Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others                                                                                                            | Court           | Referred         | Referred for the approach to assessing disability compensation. |

|                                                                                                                                              |                 |                  |                                                |
|----------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|------------------------------------------------|
| <b><i>Orissa State Electricity Board v. Indian Aluminium Co. Ltd.</i></b> (1975) · Supreme Court                                             |                 |                  |                                                |
| <b>PROPOSITION</b> On the power to fix and revise electricity tariff/charges and the scope of a supplier's entitlement in such arrangements. |                 |                  |                                                |
| <b>CITED IN</b>                                                                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                             |
| <b>SCJ-156</b> Noida Power Company Ltd. v. State of U.P. & Anr.                                                                              | Court           | Referred         | Cited in the tariff/power-purchase discussion. |

|                                                                                                     |            |               |                                                                                        |
|-----------------------------------------------------------------------------------------------------|------------|---------------|----------------------------------------------------------------------------------------|
| <b>Orissa State Electricity Board v. Orissa Tiles Limited</b> (1993) Supp 3 SCC 481 · Supreme Court |            |               |                                                                                        |
| PROPOSITION On minimum-guarantee charge (under the 1910 Act).                                       |            |               |                                                                                        |
| CITED IN                                                                                            | CITED BY   | TREATMENT     | HOW TREATED                                                                            |
| SCJ-035 Jharkhand State Electricity Board & Others v. M/s Ramkrishna Forging Limited                | Petitioner | Distinguished | Distinguished on facts as relating to minimum-guarantee charge under the old 1910 Act. |

|                                                                                                                                                                              |            |               |                                                                                                     |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------------------------------------------------------------|
| <b>Oryx Fisheries Pvt. Ltd. v. Union of India</b> (2010) 13 SCC 427 · Supreme Court                                                                                          |            |               |                                                                                                     |
| PROPOSITION A show-cause notice that pronounces the charge already 'proved beyond doubt' prejudices the issue and is bad; the noticee must not be met with a concluded mind. |            |               |                                                                                                     |
| CITED IN                                                                                                                                                                     | CITED BY   | TREATMENT     | HOW TREATED                                                                                         |
| SCJ-163 Jai Laxmi Cement Company Ltd. v. State of U.P. & 3 Others                                                                                                            | Petitioner | Distinguished | Distinguished on facts; the provisional assessment notice here did not express a concluded opinion. |

|                                                                          |          |           |                   |
|--------------------------------------------------------------------------|----------|-----------|-------------------|
| <b>P. Mohanan Pillai v. State of Kerala</b> Supreme Court                |          |           |                   |
| PROPOSITION Cited in the string of malice-in-law authorities at para 42. |          |           |                   |
| CITED IN                                                                 | CITED BY | TREATMENT | HOW TREATED       |
| SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others                    | Court    | Referred  | Cited in support. |

|                                                                                                                       |          |           |                               |
|-----------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------|
| <b>Padmaraje R. Kadambande v. CIT</b> 1992 (3) SCC 432 · Supreme Court                                                |          |           |                               |
| PROPOSITION A marginal heading (e.g. 'compensation') does not control the operation or interpretation of the section. |          |           |                               |
| CITED IN                                                                                                              | CITED BY | TREATMENT | HOW TREATED                   |
| SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.                                                                          | Court    | Relied on | Relied on to the same effect. |

|                                                                                                                                                             |          |           |                                                                                    |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------------|
| <b>Pareena Swarup v. Union of India</b> (2008) 14 SCC 107 · Supreme Court                                                                                   |          |           |                                                                                    |
| PROPOSITION Discussed in the context of tribunals created to exercise functions earlier performed by regular judicial forums (PMLA Adjudicating Authority). |          |           |                                                                                    |
| CITED IN                                                                                                                                                    | CITED BY | TREATMENT | HOW TREATED                                                                        |
| SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.                                                                                | Court    | Referred  | Distinguished on facts by counsel; addressed by the Court in its broader analysis. |

***Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*** (2009) 1 SCC 210 · Supreme Court

**PROPOSITION** Electricity dues are not a charge on the premises, but a distributor may stipulate, as a condition of a fresh connection, that the previous occupant's arrears be cleared; if statutory rules govern, they bind the purchaser. Provisions similar to Clause 4.3(g) and (h) of the Electricity Supply Code are necessary to safeguard the distributor.

| CITED IN                                                                                                                                                 | CITED BY | TREATMENT     | HOW TREATED                                                                                                                                                                                                     |
|----------------------------------------------------------------------------------------------------------------------------------------------------------|----------|---------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-031</b> Haryana State Electricity Board v. M/s Hanuman Rice Mills, Dhanauri & Ors.                                                                | Court    | Relied on     | Relied on and quoted for the arrears/transferee synthesis.                                                                                                                                                      |
| <b>SCJ-098</b> Palika Towns LLP v. State of U.P. & 2 Others                                                                                              | Court    | Followed      | Surveyed and applied by analogy to hold that a specific stipulation (here, the lease deed's first-charge clause) can validly bind a purchaser to a predecessor's arrears, even outside the electricity context. |
| <b>SCJ-125</b> Smt. Pawan Jha @ Priya Jha v. State of U.P. And Others                                                                                    | Court    | Followed      | Applied to extend the doctrine to an ADA statutory-allotment context.                                                                                                                                           |
| <b>SCJ-127</b> Special Officer, Commerce, North Eastern Electricity Company of Orissa (NESCO) & Anr. v. M/s Raghunath Paper Mills Private Limited & Anr. | Court    | Distinguished | Distinguished on the facts (no applicable authorising provision here) while affirming its general principle.                                                                                                    |

***Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*** (2009) 1 SCC 210 : AIR 2009 SC 647 · Supreme Court

**PROPOSITION** Past electricity dues are not a charge on the premises and cannot be recovered from a transferee as such, but when the purchaser seeks a fresh connection to the same premises the distributor may stipulate clearing the arrears as a condition of supply; such a stipulation is not unreasonable or arbitrary.

| CITED IN                                                                                       | CITED BY   | TREATMENT | HOW TREATED                                                                                                   |
|------------------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------------------------------------------------------|
| <b>SCJ-248</b> Kalawati Rana v. U.P. Power Corporation Ltd. Thru its M.D./Chairman and Another | Respondent | Applied   | Applied (via the coordinate-bench decision in Pawan Jha) to uphold the refusal pending a No-Dues Certificate. |

***Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat (P) Ltd.*** (2023) 10 SCC 60 · Supreme Court

**PROPOSITION** Section 238 IBC (non-obstante) overrides the Electricity Act, 2003; the s.53 waterfall places government dues below secured/operational creditors, and Rainbow Papers (which did not notice s.53 and arose in resolution, not liquidation) is distinguishable.

| CITED IN                                                                                                                              | CITED BY   | TREATMENT | HOW TREATED                                                                          |
|---------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|--------------------------------------------------------------------------------------|
| <b>SCJ-157</b> South East U.P. Power Transmission Company Ltd. v. Prescribed Authority & Ors. (with Tata Steel Ltd. v. State of U.P.) | Petitioner | Followed  | Followed as the governing authority on the primacy of the IBC over electricity dues. |
| <b>SCJ-160</b> Reliance Projects and Property Management Services Ltd. v. State of U.P. & Others                                      | Petitioner | Relied on | Relied on for the primacy of the IBC over electricity dues.                          |

***Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Ltd. & Ors.*** AIR 2023 SC 3501 · Supreme Court

**PROPOSITION** In an IBC liquidation, the electricity utility is a secured creditor whose claim for arrears (secured by the Supply Code's charge) must be classified and paid per the s.53 waterfall mechanism; IBC s.238 overrides the Electricity Act/Supply Code despite their own non-obstante provisions (ss.173-174).

| CITED IN                                                                                                                         | CITED BY   | TREATMENT | HOW TREATED                                                                      |
|----------------------------------------------------------------------------------------------------------------------------------|------------|-----------|----------------------------------------------------------------------------------|
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Petitioner | Followed  | Followed as the central authority for the IBC-overrides-Electricity-Act holding. |

**Pashchimanchal Vidyut Vitran Nigam Ltd. v. DUS Steels & Alloys Pvt. Ltd.** JT 2008 (12) SC 672 (decided 7.11.2008) · Supreme Court

**PROPOSITION** Supply of electricity is a sale of goods; a transferee/subsequent occupant with no privity cannot be asked to pay a predecessor's dues as the amount is not a charge on the premises, but when the purchaser seeks a fresh connection or enhanced load to the same premises the distributor may stipulate clearing of the past dues as a condition of supply, and such a stipulation is neither unreasonable nor arbitrary.

| CITED IN                                                                                        | CITED BY   | TREATMENT | HOW TREATED                                                                                                                                         |
|-------------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-225</b> Raman Ispat (Pvt.) Ltd. & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors. | Respondent | Relied on | Relied on to uphold the licensee's stipulation of clearing Sai Steels' arrears as a condition of enhancing Raman Ispat's load to the same premises. |

**Sripati Singh v. State of Jharkhand** 2021 SCC OnLine SC 1002 · Supreme Court

**PROPOSITION** A cheque issued as loan-repayment security matures for presentation once the loan is not repaid by the due date; a security cheque is not a 'worthless piece of paper' in all circumstances.

| CITED IN                                                    | CITED BY | TREATMENT | HOW TREATED |
|-------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-132</b> Sunil Todi & Ors. v. State of Gujarat & Anr. | Court    | Followed  | Followed.   |

**Petitioner's further catena on alternative remedy & disputed facts** Harbanslal Sahnia (2003) 2 SCC 107; Popcorn Entertainment (2007) 9 SCC 593; ABL International (2004) 3 SCC 553; Zonal Manager, Central Bank v. Devi Ispat (2010) 11 SCC 186; Gunwant Kaur (1969) 3 SCC 769; Century Spinning (1970) 1 SCC 582; Babubhai Muljibhai Patel (1974) 2 SCC 706; Arezzo Developers 2010 (6) ADJ 315; Oriental Bank of Commerce 2008 (3) ADJ 1; Ashok Kumar 2008 (6) ADJ 660; Himmatlal Harilal Mehta AIR 1954 SC 403; and, on levy requiring statutory authority, Ahmedabad Urban Development Authority (1992) 3 SCC 285, A.P. Pollution Board v. A.P. Rayons (1989) 1 SCC 44, Sri Niwas Budhaulia 2006 (1) AWC 930 · Supreme Court / Allahabad HC

**PROPOSITION** Cited by the petitioner for (a) alternative remedy being no bar and writ jurisdiction over disputed facts, and (b) a levy requiring specific statutory authority.

| CITED IN                                                 | CITED BY   | TREATMENT | HOW TREATED                                                                                                                                  |
|----------------------------------------------------------|------------|-----------|----------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-032</b> Hazi Mohd. Yaseen v. P.V.V.N.L. & Another | Petitioner | Referred  | Listed by the petitioner; not individually engaged – the Court decided on the personal-hearing point. Recorded for the table of authorities. |

**Popcorn Entertainment v. City Industrial Development Corporation** 2007 (4) JT (SC) 70 · Supreme Court

**PROPOSITION** On when a writ petition will be entertained despite the availability of an alternative statutory remedy.

| CITED IN                                                  | CITED BY | TREATMENT | HOW TREATED                                  |
|-----------------------------------------------------------|----------|-----------|----------------------------------------------|
| <b>SCJ-158</b> Ashok Kumar & Ors. v. State of U.P. & Ors. | Court    | Referred  | Referred on the alternative-remedy question. |

**Pratap Chandra Mehta v. State Bar Council of Madhya Pradesh & Ors.** (2011) 9 SCC 573 · Supreme Court

**PROPOSITION** Courts should give delegated-legislation provisions purposive construction to perpetuate the parent Act's object, while ensuring the rules remain within the field circumscribed by that Act.

| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals) | Court    | Followed  | Followed.   |

|                                                                                                                                                                  |          |           |                                                        |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------|
| <b>PTC India Ltd. v. Central Electricity Regulatory Commission</b> (2010) 4 SCC 603 · Supreme Court                                                              |          |           |                                                        |
| PROPOSITION The term 'tariff', though undefined in the Electricity Act, 2003, includes not only rate-fixation but also the rules and regulations relating to it. |          |           |                                                        |
| CITED IN                                                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                            |
| SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                                 | Court    | Referred  | Cited in support of a broad understanding of 'tariff'. |

|                                                                                                                                             |                    |           |                                                                                                                 |
|---------------------------------------------------------------------------------------------------------------------------------------------|--------------------|-----------|-----------------------------------------------------------------------------------------------------------------|
| <b>PTC India Ltd. v. CERC</b> Supreme Court (Constitution Bench)                                                                            |                    |           |                                                                                                                 |
| PROPOSITION Regulations, as part of the regulatory framework, intervene in and even override existing contracts between regulated entities. |                    |           |                                                                                                                 |
| CITED IN                                                                                                                                    | CITED BY           | TREATMENT | HOW TREATED                                                                                                     |
| SCJ-001 Indian Oil Corporation Ltd. v. State of U.P. & 3 Others                                                                             | Petitioner         | Referred  | Cited by the petitioner (¶ 28); noted, not made a basis of the decision.                                        |
| SCJ-010 BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission                                                                 | Court              | Relied on | Relied on for the quasi-judicial character of tariff determination.                                             |
| SCJ-073 M/S NTPC Ltd. v. M.P. State Electricity Board & Ors. (with connected appeals)                                                       | Electricity Boards | Referred  | Referred; the legislative/quasi-judicial characterisation was found not determinative of the interest question. |

|                                                                          |          |           |                   |
|--------------------------------------------------------------------------|----------|-----------|-------------------|
| <b>Punjab Electricity Board v. Zora Singh</b> Supreme Court              |          |           |                   |
| PROPOSITION Cited in the string of malice-in-law authorities at para 42. |          |           |                   |
| CITED IN                                                                 | CITED BY | TREATMENT | HOW TREATED       |
| SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others                    | Court    | Referred  | Cited in support. |

|                                                                                                                                                                                                                            |            |           |                                                                                              |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|----------------------------------------------------------------------------------------------|
| <b>Punjab State Electricity Board Ltd. v. Zora Singh &amp; Others</b> JT 2005 (7) SC 258 · Supreme Court                                                                                                                   |            |           |                                                                                              |
| PROPOSITION The Board must supply electrical energy to consumers within a reasonable period, in order of seniority of application, per its own circulars/regulations, and must notify applicants of reasons for any delay. |            |           |                                                                                              |
| CITED IN                                                                                                                                                                                                                   | CITED BY   | TREATMENT | HOW TREATED                                                                                  |
| SCJ-067 M/S Shri Parasnath Alloys (Pvt.) Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                             | Respondent | Relied on | Relied on by the successful respondent to reinforce the statutory duty to supply on request. |

|                                                                                                                                                                                                                                                                                                                           |          |           |                                                                                                  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------|
| <b>Punjab State Electricity Board v. Vishwa Caliber Builders Private Limited</b> (2010) 4 SCC 539 · Supreme Court                                                                                                                                                                                                         |          |           |                                                                                                  |
| PROPOSITION An Ombudsman commits jurisdictional error, absent statutory authorisation, by directing regularisation of unauthorised electricity use and refund of amounts properly charged for consumption in excess of sanctioned load, even where the licensee's own infrastructural delay contributed to the situation. |          |           |                                                                                                  |
| CITED IN                                                                                                                                                                                                                                                                                                                  | CITED BY | TREATMENT | HOW TREATED                                                                                      |
| SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                                                                                                                                                                                          | Court    | Followed  | Followed as illustrating that excess-load consumption is validly assessable as unauthorised use. |

|                                                                                                                                                                                                                                       |                    |                  |                                                                               |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|------------------|-------------------------------------------------------------------------------|
| <b>Punjab State Electricity Board v. Vishwa Calibere Builders Pvt. Ltd.</b> (2010) 4 SCC 539 · Supreme Court                                                                                                                          |                    |                  |                                                                               |
| <b>PROPOSITION</b> In the absence of a provision in the Act or Regulations, an Electricity Ombudsman commits jurisdictional error by directing regularisation of unauthorised use of electricity or refund of alleged excess charges. |                    |                  |                                                                               |
| <b>CITED IN</b>                                                                                                                                                                                                                       | <b>CITED BY</b>    | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                            |
| <b>SCJ-123</b> Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.)                                                          | Respondent (PVVNL) | Followed         | Applied as the controlling authority on the limits of Ombudsman jurisdiction. |

|                                                                                                                                  |                 |                  |                                                                                      |
|----------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------------------------|
| <b>R.C. Cooper v. Union of India</b> (1970) 1 SCC 248 : AIR 1970 SC 564 · Supreme Court                                          |                 |                  |                                                                                      |
| <b>PROPOSITION</b> A company registered under the Companies Act has a separate legal personality distinct from its shareholders. |                 |                  |                                                                                      |
| <b>CITED IN</b>                                                                                                                  | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                   |
| <b>SCJ-158</b> Ashok Kumar & Ors. v. State of U.P. & Ors.                                                                        | Court           | Referred         | Referred on the separate legal personality of a company in analysing DVVNL's status. |

|                                                                                                                                                                                                    |                 |                  |                                                                                                                                              |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------------------------------------------------------------------|
| <b>R.N. Gosain v. Yashpal Dhir</b> (1992) 4 SCC 683 · Supreme Court                                                                                                                                |                 |                  |                                                                                                                                              |
| <b>PROPOSITION</b> Law does not permit a person to both approbate and reprobate “ a party cannot accept an instrument as valid to obtain an advantage and then treat it as void to avoid a burden. |                 |                  |                                                                                                                                              |
| <b>CITED IN</b>                                                                                                                                                                                    | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                           |
| <b>SCJ-098</b> Palika Towns LLP v. State of U.P. & 2 Others                                                                                                                                        | Court           | Followed         | Applied to hold the petitioner, having accepted the Transfer Memorandum/Sale Certificate, could not disclaim the arrears-payment obligation. |

|                                                                                                                                                             |                 |                  |                                                                                                                                  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------------------------------------------------------|
| <b>R.N. Gosain v. Yashpal Dhir</b> (1992) 4 SCC 683 : AIR 1993 SC 352 · Supreme Court                                                                       |                 |                  |                                                                                                                                  |
| <b>PROPOSITION</b> A party cannot approbate and reprobate “ it cannot accept the part of a determination favourable to it and reject the unfavourable part. |                 |                  |                                                                                                                                  |
| <b>CITED IN</b>                                                                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                               |
| <b>SCJ-156</b> Noida Power Company Ltd. v. State of U.P. & Anr.                                                                                             | Court           | Relied on        | Relied on to hold that a party could not selectively accept and reject the Independent Authority's / Commission's determination. |

|                                                                                                                                                                          |                 |                  |                    |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>R.P. Kapur v. State of Punjab</b> AIR 1960 SC 866 · Supreme Court                                                                                                     |                 |                  |                    |
| <b>PROPOSITION</b> Sets out the settled categories of cases in which the High Court's inherent power under s.482 Cr.P.C. may be exercised to quash criminal proceedings. |                 |                  |                    |
| <b>CITED IN</b>                                                                                                                                                          | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-142</b> Vijay Kumar Sachan v. State of U.P. And Another                                                                                                           | Court           | Followed         | Applied.           |



**Raghunath Rai Bareja & Anr. v. Punjab National Bank & Ors.** Supreme Court

**PROPOSITION** The first and foremost rule of construction is the literal rule; where the provision is unambiguous, the court reads the statute as it is without adding words (approving Hiralal Ratanlal, Harshad S. Mehta and Patangrao Kadam).

| CITED IN                                                                                            | CITED BY | TREATMENT | HOW TREATED                                                                                                                           |
|-----------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-025</b> Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others | Court    | Relied on | Relied on to construe 'public utility service' literally â€” supply of power to the public, without importing a consumer requirement. |

**Ram Chandra Prasad Sharma & Others v. State of Bihar & Anr.** AIR 1967 SC 349 · Supreme Court

**PROPOSITION** In a criminal trial for theft of electrical energy under Section 39 of the Indian Electricity Act, 1910, mens rea is a relevant consideration.

| CITED IN                                                                                           | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                         |
|----------------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-051</b> M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors. | Petitioner | Distinguished | Distinguished â€” that case concerned criminal prosecution (mens rea relevant), unlike a Section 126 civil assessment where mens rea is irrelevant. |

**Ramakrishna Poultry (P) Ltd. v. R. Chellappan** (2009) 16 SCC 743 · Supreme Court

**PROPOSITION** Where a landowner purchased land after a transmission-line survey/routing process was already underway, the appropriate remedy is a practical accommodation (e.g. raising line height/clearance) rather than re-routing an established transmission line, especially given the larger public interest.

| CITED IN                                                                                                             | CITED BY | TREATMENT | HOW TREATED                                                                                                                                                                        |
|----------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-097</b> Orissa Power Transmission Corporation Ltd. & Ors. v. Asian School of Business Management Trust & Ors. | Court    | Followed  | Applied by analogy to hold that a purchaser with knowledge of an ongoing/prior transmission project cannot obtain re-routing to serve individual convenience over public interest. |

**Ramchandra Dagdu Sonavane v. Vithu Hira Mahar** (2009) 10 SCC 273 · Supreme Court

**PROPOSITION** The doctrine of res judicata (including constructive res judicata under Explanation IV, s.11 CPC) applies broadly, barring re-litigation of matters that were or ought to have been raised in an earlier proceeding.

| CITED IN                                                                                                             | CITED BY | TREATMENT | HOW TREATED                                                                                                                         |
|----------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-097</b> Orissa Power Transmission Corporation Ltd. & Ors. v. Asian School of Business Management Trust & Ors. | Court    | Followed  | Applied to hold that the second writ petition, seeking substantially the same relief as the first (dismissed) petition, was barred. |

**Ramesh Singh v. Cinta Devi** (1996) 3 SCC 142 · Supreme Court

**PROPOSITION** A vested right of appeal under the old Motor Vehicles Act is not dislodged by the new Act; the appellant may appeal without the pre-deposit required by the proviso to s.173 of the new Act.

| CITED IN                                          | CITED BY | TREATMENT | HOW TREATED                         |
|---------------------------------------------------|----------|-----------|-------------------------------------|
| <b>SCJ-008</b> Aruna Bhargava v. PuVVNL & Another | Court    | Followed  | Followed as the most apt authority. |

|                                                                                                                                                                                                                                        |                 |                  |                                                                                                                                   |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| <b><i>Rana Girders Ltd. (excise dues case)</i></b> Supreme Court                                                                                                                                                                       |                 |                  |                                                                                                                                   |
| <b>PROPOSITION</b> A purchaser's statutory-liability undertaking limited to liabilities 'arising out of the land/building/machinery' does not extend to excise dues, which arise from manufacturing activity, not the property itself. |                 |                  |                                                                                                                                   |
| <b>CITED IN</b>                                                                                                                                                                                                                        | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                |
| <b>SCJ-098</b> Palika Towns LLP v. State of U.P. & 2 Others                                                                                                                                                                            | Petitioner      | Distinguished    | Distinguished â€” held inapplicable since lease rent (unlike excise duty) does arise directly from the leasehold property itself. |

  

|                                                                                                                                                                                                                                                                                                 |                 |                  |                                                                                                        |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------------------------------------------|
| <b><i>Raymond Ltd. &amp; Anr. v. M.P. Electricity Board &amp; Ors.</i></b> (2001) 1 SCC 534 · Supreme Court                                                                                                                                                                                     |                 |                  |                                                                                                        |
| <b>PROPOSITION</b> Where the consumer has not committed to a fixed minimum-guarantee sum, the licensee can enforce minimum-guarantee charges only by ensuring the minimum guaranteed supply; if the licensee fails to supply, the consumer is exonerated from paying minimum-guarantee charges. |                 |                  |                                                                                                        |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                     |
| <b>SCJ-030</b> Harihar Cold Storage v. P.V.V.N.L. & Another                                                                                                                                                                                                                                     | Court           | Followed         | Applied to hold minimum-guarantee charges not recoverable where supply failed by the licensee's fault. |

  

|                                                                                                                                          |                 |                  |                                                                                                                                                     |
|------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|
| <b><i>Raymond Ltd. v. State of Chhattisgarh &amp; Ors.</i></b> (2007) 3 SCALE 341 · Supreme Court                                        |                 |                  |                                                                                                                                                     |
| <b>PROPOSITION</b> Interpretation of a term in one statute cannot be done with reference to its definition contained in another statute. |                 |                  |                                                                                                                                                     |
| <b>CITED IN</b>                                                                                                                          | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                  |
| <b>SCJ-091</b> Naresh Kumar Madan v. State of Madhya Pradesh                                                                             | Court           | Followed         | Applied as the governing interpretive principle to reject reliance on s.81 of the 1948 Act to limit the 1988 Act's own 'public servant' definition. |

  

|                                                                                                                           |                 |                  |                                                                       |
|---------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------|
| <b><i>Raymonds Ltd. v. M.P. State Electricity Board</i></b> (2001) 1 SCC · Supreme Court                                  |                 |                  |                                                                       |
| <b>PROPOSITION</b> On tariff/charges payable to an electricity board and the interpretation of the governing arrangement. |                 |                  |                                                                       |
| <b>CITED IN</b>                                                                                                           | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                    |
| <b>SCJ-156</b> Noida Power Company Ltd. v. State of U.P. & Anr.                                                           | Court           | Referred         | Cited in the discussion on determination of the power-purchase price. |

  

|                                                                                                                                                                                                 |                 |                  |                                                                                                  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------------------------------------|
| <b><i>Reliance Infrastructure v. State of Maharashtra</i></b> (2019) 3 SCC 352 · Supreme Court                                                                                                  |                 |                  |                                                                                                  |
| <b>PROPOSITION</b> Regulatory decisions of expert bodies should be accorded deference unless shown to be wholly irrational, ultra vires the parent statute, or violative of fundamental rights. |                 |                  |                                                                                                  |
| <b>CITED IN</b>                                                                                                                                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                               |
| <b>SCJ-110</b> Ramayana Ispat Pvt. Ltd. & Anr. v. State of Rajasthan & Ors. (with connected appeals)                                                                                            | Respondent      | Followed         | Applied as the governing standard of judicial restraint in reviewing RERC's Regulations of 2016. |

**Roop Singh Negi v. Punjab National Bank** (2009) 2 SCC 570 · Supreme Court**PROPOSITION** A finding of misconduct cannot rest on mere allegations/complaints unsupported by legal evidence; the charge must be proved.

| CITED IN                                                             | CITED BY | TREATMENT | HOW TREATED                                              |
|----------------------------------------------------------------------|----------|-----------|----------------------------------------------------------|
| <b>SCJ-017</b> Dhirendra Kumar Chaudhary v. State of U.P. & 5 Others | Court    | Relied on | Relied on: mere complaints are not proof of the charges. |

**RPJ Mineral Pvt. Ltd. v. S.K. Saxena, Official Liquidator** SLP (Civil) No. 19132 of 2006 · Supreme Court**PROPOSITION** Interim order (9-2-2007) that no money be disbursed during the pendency of the special leave petition arising out of these liquidation proceedings.

| CITED IN                                                                  | CITED BY | TREATMENT | HOW TREATED                                                                                                                                            |
|---------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-152</b> U.P. State Cement Corporation Ltd. (In Liquidation), In re | Court    | Referred  | Noted as binding on disbursement; the OL may adjudicate the proofs of debt per this judgment but must not disburse pending the Supreme Court's orders. |

**Ruchi Soya Industries Ltd. v. Union of India** (2022) 6 SCC 343 · Supreme Court**PROPOSITION** A claim not lodged after the public announcements under ss.13 and 15 IBC does not survive; on approval of the plan all claims stand frozen and any claim not part of the plan cannot survive.

| CITED IN                                                                                                                              | CITED BY   | TREATMENT | HOW TREATED                                     |
|---------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-------------------------------------------------|
| <b>SCJ-157</b> South East U.P. Power Transmission Company Ltd. v. Prescribed Authority & Ors. (with Tata Steel Ltd. v. State of U.P.) | Petitioner | Relied on | Relied on and quoted.                           |
| <b>SCJ-160</b> Reliance Projects and Property Management Services Ltd. v. State of U.P. & Others                                      | Petitioner | Relied on | Relied on for extinguishment of unfiled claims. |

**S. Sethuraman v. R. Venkataraman & Ors.** AIR 2007 SC 2499 · Supreme Court**PROPOSITION** If jurisdiction cannot be conferred by consent, consent equally cannot clothe an authority to exercise jurisdiction in an illegal manner.

| CITED IN                                                                                    | CITED BY | TREATMENT | HOW TREATED |
|---------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-049</b> M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr. | Court    | Relied on | Relied on.  |

**S.J.S. Business Enterprises (P) Ltd. v. State of Bihar** (2004) 7 SCC 166 · Supreme Court**PROPOSITION** A writ petition is not automatically barred merely because a parallel civil suit was filed and later withdrawn; the court may call upon the party to elect between remedies rather than dismissing outright.

| CITED IN                                                                                                             | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                                                                                         |
|----------------------------------------------------------------------------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-097</b> Orissa Power Transmission Corporation Ltd. & Ors. v. Asian School of Business Management Trust & Ors. | Respondent | Distinguished | Distinguished â€” there the suit was withdrawn within two weeks of filing (an early election), whereas here the suit was kept pending through two rounds of writ litigation and withdrawn only once the writ appeal was entertained, amounting to abuse of process. |

**S.N. Pandey v. Union of India** (2012) 8 SCC 261 · Supreme Court

**PROPOSITION** Upholds the validity of the Permanent Lok Adalat mechanism for deciding disputes involving public utility services as an alternative dispute-resolution forum.

| CITED IN                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                         |
|--------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------|
| <b>SCJ-019</b> Divisional Engineer, Electricity Distribution Division-I v. Raman Singh & Another | Court    | Relied on | Relied on in support of the Lok Adalat's adjudicatory jurisdiction. |

**S.R. Venkatraman v. Union of India** AIR 1979 SC 49 · Supreme Court

**PROPOSITION** Malice in law means an act done wrongfully and without reasonable/probable cause, though not necessarily with ill-will; an order founded on non-existent or misrepresented facts is vitiated by malice in law.

| CITED IN                                                     | CITED BY | TREATMENT | HOW TREATED                                                                       |
|--------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------|
| <b>SCJ-126</b> Smt. Vimla Tiwari v. State of U.P. And Others | Court    | Followed  | Applied as the foundational authority on malice in law to vitiate the assessment. |

**S.S. Balu & Another v. State of Kerala & Others** 2009 (2) SCC 479 · Supreme Court

**PROPOSITION** Delay defeats equity.

| CITED IN                                                                      | CITED BY | TREATMENT | HOW TREATED |
|-------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-068</b> M/S Three Star Paper Mills Pvt. Ltd. v. State of U.P. & 5 Ors. | Court    | Relied on | Relied on.  |

**S.S. Bola v. B.D. Sardana** (1997) 8 SCC 522 : AIR 1997 SC 3127 · Supreme Court

**PROPOSITION** A legislature cannot directly override a judicial decision but, under its plenary powers, may enact a law fundamentally altering the provisions that were the basis of the decision; judicial review is a basic feature.

| CITED IN                                                                                          | CITED BY   | TREATMENT     | HOW TREATED                                                                             |
|---------------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------------------------------------------------|
| <b>SCJ-255</b> M/s. Suvidha Engineers India Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors. | Petitioner | Distinguished | Distinguished: no provision here affects the interim order or abridges judicial review. |

**Sampelly Satyanarayana Rao v. Indian Renewable Energy Development Agency Ltd.** (2016) 10 SCC 458 · Supreme Court

**PROPOSITION** A post-dated cheque given as security for loan-installment repayment matures into an instrument for a legally enforceable debt once the installment falls due and remains unpaid; the true test is whether an enforceable debt exists or has matured, not the 'security' label.

| CITED IN                                                    | CITED BY | TREATMENT | HOW TREATED                                                                |
|-------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------|
| <b>SCJ-132</b> Sunil Todi & Ors. v. State of Gujarat & Anr. | Court    | Followed  | Followed as the controlling test, applied to the electricity-dues context. |

|                                                                                                                                                                                    |            |           |                                                                                                                                      |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|--------------------------------------------------------------------------------------------------------------------------------------|
| <b>Seth Banarsi Dass (dead) by LRs v. District Magistrate and Collector, Meerut</b> (1996) 2 SCC 689 · Supreme Court                                                               |            |           |                                                                                                                                      |
| PROPOSITION Recovery proceedings are equivalent to execution proceedings under the CPC; an auction sale without deciding objections is a material irregularity vitiating the sale. |            |           |                                                                                                                                      |
| CITED IN                                                                                                                                                                           | CITED BY   | TREATMENT | HOW TREATED                                                                                                                          |
| SCJ-170 Heera Lal v. State of U.P. & Others                                                                                                                                        | Petitioner | Referred  | Cited by the petitioner; the Court held the executing authority is confined to the decree and cannot decide objections that vary it. |

|                                                                                                                                               |          |           |                                              |
|-----------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------|
| <b>Shankar Ramchandra Abhyankar v. Krishnaji Dattatraya Bapat</b> (1970) 1 SCR 322 · Supreme Court                                            |          |           |                                              |
| PROPOSITION The expression 'appeal', used in the context of revisional jurisdiction, is one mode of exercising a statutorily conferred power. |          |           |                                              |
| CITED IN                                                                                                                                      | CITED BY | TREATMENT | HOW TREATED                                  |
| SCJ-138 U.P. Power Corporation Limited Thru' Executive Engineer v. Electricity Ombudsman & Ors. (M/S Suresh Automobiles)                      | Court    | Referred  | Cited in the survey of 'appeal' definitions. |

|                                                                                                                                                                                                                              |          |           |                                                                                          |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------------------|
| <b>Sharma Transport v. Government of A.P.</b> (2002) 2 SCC 188 : AIR 2002 SC 322 · Supreme Court                                                                                                                             |          |           |                                                                                          |
| PROPOSITION There can be no promissory estoppel against a statute; a concession, even for a fixed period, can be withdrawn in public interest, and the doctrine requires a clear, positive foundation laid in the pleadings. |          |           |                                                                                          |
| CITED IN                                                                                                                                                                                                                     | CITED BY | TREATMENT | HOW TREATED                                                                              |
| SCJ-155 M/s Saini Alloys Pvt. Ltd. v. U.P. Power Corporation, Lucknow & Ors.                                                                                                                                                 | Court    | Applied   | Applied to reject the plea of promissory estoppel against Section 24 of the Reforms Act. |

|                                                                                  |          |           |             |
|----------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>Shiv Dass v. Union of India &amp; Others</b> AIR 2007 SC 1330 · Supreme Court |          |           |             |
| PROPOSITION Reiterates the same delay/laches principle.                          |          |           |             |
| CITED IN                                                                         | CITED BY | TREATMENT | HOW TREATED |
| SCJ-068 M/S Three Star Paper Mills Pvt. Ltd. v. State of U.P. & 5 Ors.           | Court    | Relied on | Relied on.  |

|                                                                                                                                                                                                 |          |           |                                                                           |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------|
| <b>Shiv Shakti Coop. Housing Society, Nagpur v. Swaraj Developers</b> (2003) 6 SCC 659 · Supreme Court                                                                                          |          |           |                                                                           |
| PROPOSITION An appeal is a continuation of the original proceedings; the right of appeal is statutory and, once conferred, a vested substantive right, distinct from the inherent right to sue. |          |           |                                                                           |
| CITED IN                                                                                                                                                                                        | CITED BY | TREATMENT | HOW TREATED                                                               |
| SCJ-008 Aruna Bhargava v. PuVVNL & Another                                                                                                                                                      | Court    | Relied on | Relied on.                                                                |
| SCJ-138 U.P. Power Corporation Limited Thru' Executive Engineer v. Electricity Ombudsman & Ors. (M/S Suresh Automobiles)                                                                        | Court    | Followed  | Followed as the definitional touchstone for what constitutes an 'appeal'. |

|                                                                                                                                                                                                      |            |               |                                                                                                                                       |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------|
| <b>Shreyas Papers (P) Ltd. (Karnataka Sales Tax Act charge/notice case)</b> Supreme Court                                                                                                            |            |               |                                                                                                                                       |
| PROPOSITION A statutory charge is unenforceable against a transferee without actual or constructive notice of the charge; here the purchaser had no notice of sales-tax arrears at the time of sale. |            |               |                                                                                                                                       |
| CITED IN                                                                                                                                                                                             | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                           |
| SCJ-098 Palika Towns LLP v. State of U.P. & 2 Others                                                                                                                                                 | Petitioner | Distinguished | Distinguished – the petitioner here had clear notice of the lease-rent charge via the lease deed and Transfer Memorandum it accepted. |

|                                                                                                                                                                                                  |          |           |                                                                     |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------|
| <b>Sir Chunilal V. Mehta &amp; Sons Ltd. v. Century Spg. &amp; Mfg. Co. Ltd.</b> AIR 1962 SC 1314 · Supreme Court (Constitution Bench)                                                           |          |           |                                                                     |
| PROPOSITION Test for a 'substantial question of law': one of general public importance or directly and substantially affecting the parties' rights, not finally settled or free from difficulty. |          |           |                                                                     |
| CITED IN                                                                                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                         |
| SCJ-010 BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission                                                                                                                      | Court    | Relied on | Relied on to frame the s.125 substantial-question-of-law threshold. |

|                                                                                                                                                                                                              |          |           |             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SMS Pharmaceuticals Ltd. v. Neeta Bhalla</b> (2005) 8 SCC 89 · Supreme Court (Three-Judge Bench)                                                                                                          |          |           |             |
| PROPOSITION A Managing Director/Joint Managing Director is presumed responsible for a company's conduct of business under s.141(1) unless shown otherwise; the proviso defence must be established at trial. |          |           |             |
| CITED IN                                                                                                                                                                                                     | CITED BY | TREATMENT | HOW TREATED |
| SCJ-132 Sunil Todi & Ors. v. State of Gujarat & Anr.                                                                                                                                                         | Court    | Followed  | Followed.   |

|                                                                                                                                                                                                                    |          |           |             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>Snehadeep Structures Pvt. Ltd. v. Maharashtra Small-Scale Industries Development Corporation Ltd.</b> (2010) 3 SCC 34 · Supreme Court                                                                           |          |           |             |
| PROPOSITION Almost all definitions of 'appeal' involve removal of a cause from an inferior to a superior court; an arbitrator deriving authority from private agreement does not fit the ordinary court hierarchy. |          |           |             |
| CITED IN                                                                                                                                                                                                           | CITED BY | TREATMENT | HOW TREATED |
| SCJ-138 U.P. Power Corporation Limited Thru' Executive Engineer v. Electricity Ombudsman & Ors. (M/S Suresh Automobiles)                                                                                           | Court    | Followed  | Followed.   |

|                                                                                                                                               |          |           |                                        |
|-----------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------|
| <b>Somesh Tiwari v. Union of India</b> (2009) 2 SCC 592 · Supreme Court                                                                       |          |           |                                        |
| PROPOSITION Malice in law/fact distinction and its application to vitiate administrative action taken on an improper or misrepresented basis. |          |           |                                        |
| CITED IN                                                                                                                                      | CITED BY | TREATMENT | HOW TREATED                            |
| SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others                                                                                         | Court    | Followed  | Cited in the malice-in-law discussion. |

**South Eastern Coalfields Ltd. v. State of M.P. & Ors.** (2003) 8 SCC 648 · Supreme Court

**PROPOSITION** A party finally entitled to a monetary relief is entitled to be compensated by interest, payable even in equity/restitution (Section 144 CPC principle).

| CITED IN                                                                                     | CITED BY           | TREATMENT     | HOW TREATED                                                                                                                                                                    |
|----------------------------------------------------------------------------------------------|--------------------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-073</b> M/S NTPC Ltd. v. M.P. State Electricity Board & Ors. (with connected appeals) | Electricity Boards | Distinguished | Distinguished â€” that claim was statutorily covered under Section 61 of the Sale of Goods Act with a crystallized liability, unlike the present tariff-determination context. |

**Southern Power Distribution Company of Telangana Ltd. v. Gopal Agarwal & Ors.** Civil Appeal No. 1918 of 2016 · Supreme Court

**PROPOSITION** An auction purchaser (per Isha Marbles) cannot be called upon to clear a past owner's arrears as a precondition for a power connection.

| CITED IN                                                                                                                         | CITED BY   | TREATMENT | HOW TREATED                                                            |
|----------------------------------------------------------------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------------|
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Petitioner | Followed  | Relied on for the auction-purchaser protection, alongside Raman Ispat. |

**St. John's Teachers Training Institute v. Regional Director, National Council for Teacher Education & Anr.** (2003) 3 SCC 321 · Supreme Court

**PROPOSITION** Delegated legislation may supplement, but not supplant, the parent enabling Act; what is permitted is delegation of ancillary/subordinate legislative functions or filling up of details.

| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals) | Court    | Followed  | Followed.   |

**State Bank of India v. V. Ramakrishnan & Anr.** (2018) 17 SCC 394 · Supreme Court

**PROPOSITION** The s.14 IBC moratorium applies only to the Corporate Debtor and its own assets/proceedings, not to a personal guarantor of the Corporate Debtor; a plain reading of s.14 conspicuously omits any mention of the personal guarantor.

| CITED IN                                                                                   | CITED BY   | TREATMENT | HOW TREATED                                                                                                               |
|--------------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-090</b> Narendra Singh Panwar v. Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Respondent | Followed  | Applied as the governing precedent to hold that the s.14 moratorium does not shield the Director-guarantor from recovery. |

**State of A.P. v. National Thermal Power Corporation Ltd.** (2002) 5 SCC 203 · Supreme Court (Constitution Bench)

**PROPOSITION** Electricity is 'goods'; a purchaser is liable to pay for it, the quantum and time of payment being ascertained post facto by agreement or statute.

| CITED IN                                                                                                            | CITED BY | TREATMENT | HOW TREATED                                                 |
|---------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------------------|
| <b>SCJ-009</b> Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. & Anr. v. Rahamatullah Khan alias Rahamjulla | Court    | Referred  | Referred to characterise the nature of electricity charges. |

|                                                                                                                                                                                                           |            |               |                                                                                                                    |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|---------------|--------------------------------------------------------------------------------------------------------------------|
| <b>State of Bihar &amp; Others v. Subhash Singh</b> 1997 (4) SCC 430 · Supreme Court                                                                                                                      |            |               |                                                                                                                    |
| PROPOSITION State action must be carried out in accordance with the Constitution and within legal limits; judicial review can examine constitutionality and procedural legality of administrative action. |            |               |                                                                                                                    |
| CITED IN                                                                                                                                                                                                  | CITED BY   | TREATMENT     | HOW TREATED                                                                                                        |
| SCJ-061 M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr.                                                                                              | Petitioner | Distinguished | Held inapplicable “the assessing authority’s decision was not shown to be dehors the law or established procedure. |

|                                                                                                                                                                                                   |          |           |                                                                       |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------|
| <b>State of Bihar v. P.P. Sharma</b> 1992 Supp (1) SCC 222 · Supreme Court                                                                                                                        |          |           |                                                                       |
| PROPOSITION A person against whom mala fides or bias is imputed must be impleaded eo nomine and given an opportunity to meet the allegation; absent this, no enquiry into mala fides can be made. |          |           |                                                                       |
| CITED IN                                                                                                                                                                                          | CITED BY | TREATMENT | HOW TREATED                                                           |
| SCJ-051 M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                       | Court    | Relied on | Relied on for dismissing the petitioner's unimpleaded mala fide plea. |
| SCJ-142 Vijay Kumar Sachan v. State of U.P. And Another                                                                                                                                           | Court    | Followed  | Applied.                                                              |

|                                                                                               |          |           |                                 |
|-----------------------------------------------------------------------------------------------|----------|-----------|---------------------------------|
| <b>State of Bombay v. Supreme General Films Exchange Ltd.</b> AIR 1960 SC 980 · Supreme Court |          |           |                                 |
| PROPOSITION To the same effect on the vested right of appeal.                                 |          |           |                                 |
| CITED IN                                                                                      | CITED BY | TREATMENT | HOW TREATED                     |
| SCJ-008 Aruna Bhargava v. PuVVNL & Another                                                    | Court    | Referred  | Referred (within Ramesh Singh). |

|                                                                                                                                                                                                                      |          |           |                                                                                                        |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------|
| <b>State of Haryana v. Bhajan Lal</b> AIR 1992 SC 604 · Supreme Court                                                                                                                                                |          |           |                                                                                                        |
| PROPOSITION Courts should not interfere with investigation or quash an FIR unless no cognizable offence is ex-facie discernible from the allegations, or a statutory restriction bars the police from investigating. |          |           |                                                                                                        |
| CITED IN                                                                                                                                                                                                             | CITED BY | TREATMENT | HOW TREATED                                                                                            |
| SCJ-102 Pawan Kumar Laur v. State of U.P. & Others                                                                                                                                                                   | Court    | Followed  | Applied (via Ajit Singh @ Muraha and Satya Pal) as the governing standard to decline quashing the FIR. |

|                                                                                                                                                                                                     |          |           |             |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>State of Karnataka &amp; Anr. v. H. Ganesh Kamath &amp; Ors.</b> (1983) 2 SCC 402 · Supreme Court                                                                                                |          |           |             |
| PROPOSITION It is a well-settled principle that conferment of rule-making power does not enable the rule-making authority to make a rule travelling beyond, or inconsistent with, the enabling Act. |          |           |             |
| CITED IN                                                                                                                                                                                            | CITED BY | TREATMENT | HOW TREATED |
| SCJ-147 Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                                                                    | Court    | Followed  | Followed.   |



**State of Kerala v. V.R. Kallianikutty** (1999) 3 SCC 657 · Supreme Court**PROPOSITION** On the meaning and scope of 'dues' / amounts recoverable.

| CITED IN                                                                                                                                                            | CITED BY   | TREATMENT | HOW TREATED                                                     |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-----------------------------------------------------------------|
| <b>SCJ-252</b> Tehri Girders Limited and another v. Paschimanchal Vidyut Vitran Nigam Limited and others (with R.A. Castings, Sikka Papers and connected petitions) | Petitioner | Referred  | Referred in support of the petitioners' construction of 'dues'. |

**State of Maharashtra v. Laljit Rajashi Shah & Ors.** AIR 2000 SC 937 · Supreme Court**PROPOSITION** A person deemed a public servant under an analogous 'deemed to be public servant' provision for Maharashtra Cooperative Societies employees was not a public servant for purposes of the (former) Prevention of Corruption Act, 1947.

| CITED IN                                                     | CITED BY                           | TREATMENT     | HOW TREATED                                                                                                                                                          |
|--------------------------------------------------------------|------------------------------------|---------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-091</b> Naresh Kumar Madan v. State of Madhya Pradesh | Petitioner (via Bimal Kumar Gupta) | Distinguished | Distinguished – that case concerned a cooperative-society member, not an employee of a statutory corporation, and did not address the 1988 Act's broader definition. |

**State of Orissa v. Bimal Kumar Mohanty** AIR 1994 SC 2296 · Supreme Court**PROPOSITION** Suspension should not be passed as an administrative routine or mechanically; it requires consideration of the gravity of alleged misconduct and the evidence, applying the disciplinary authority's mind.

| CITED IN                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                      |
|--------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------|
| <b>SCJ-116</b> Shabih Haider v. State of U.P. thru. Prin. Secy., Housing & Urban Planning & Ors. | Court    | Followed  | Applied as the governing standard to quash the suspension order. |

**The State of Orissa v. Madan Gopal Rungta** Supreme Court (Constitution Bench)**PROPOSITION** Article 226 cannot be used to grant interim relief as the only and final relief; interim relief is available only as ancillary to a final relief obtainable in a proceeding actually pending and to be decided on merits before that court.

| CITED IN                                                                                     | CITED BY | TREATMENT | HOW TREATED                                                                                                                         |
|----------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-095</b> Om Prakash s/o Gauri Shankar v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors. | Court    | Followed  | Applied as the controlling authority to reject the petitioner's request for interim protection after withdrawing the writ petition. |

**State of Orissa v. Mamata Mohanty** (2011) 3 SCC 436 · Supreme Court**PROPOSITION** Article 14 is not meant to perpetuate illegality and does not envisage negative equality; an inadvertent benefit granted to others does not confer a right to the same relief.

| CITED IN                                                                                                                                                                     | CITED BY | TREATMENT | HOW TREATED                                                                                             |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------------------------------------|
| <b>SCJ-123</b> Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.) | Court    | Followed  | Applied alongside Chandigarh Administration and Dabasish Mukherjee for the negative-equality principle. |

|                                                                                                                          |                 |                  |                    |
|--------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>State of Orissa v. Pyari Mohan Samantaray &amp; Others</b> AIR 1976 SC 2617 · Supreme Court                           |                 |                  |                    |
| <b>PROPOSITION</b> Reiterates that unexplained delay disentitles a petitioner to discretionary relief under Article 226. |                 |                  |                    |
| <b>CITED IN</b>                                                                                                          | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-068</b> M/S Three Star Paper Mills Pvt. Ltd. v. State of U.P. & 5 Ors.                                            | Court           | Relied on        | Relied on.         |

|                                                                                                                                                                                                                                                           |                 |                  |                                                                                                           |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------------|
| <b>State of Rajasthan v. J.K. Synthetics Ltd.</b> 2011 (12) SCC 518 · Supreme Court                                                                                                                                                                       |                 |                  |                                                                                                           |
| <b>PROPOSITION</b> Where a mining rule prescribing interest on delayed royalty is amended, any lease-deed term prescribing a lower rate must yield to the amended rule from the date of amendment, since the rule prevails over contractual stipulations. |                 |                  |                                                                                                           |
| <b>CITED IN</b>                                                                                                                                                                                                                                           | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                        |
| <b>SCJ-134</b> The State of Haryana & Ors. v. M/s Faridabad Gurgaon Minerals & Anr. (with M/s Ganpati Enterprises Slate Mines)                                                                                                                            | Court           | Followed         | Followed as establishing that statutory rules governing a mining lease prevail over contrary lease terms. |

|                                                                                                                                                                                                                                                                                                                    |                 |                  |                                                                                      |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------------------------|
| <b>State of T.N. &amp; Anr. v. P. Krishnamurthy &amp; Ors.</b> (2006) 4 SCC 517 · Supreme Court                                                                                                                                                                                                                    |                 |                  |                                                                                      |
| <b>PROPOSITION</b> Courts must consider the nature, object and scheme of the enabling Act when assessing subordinate legislation's validity; where inconsistency is not with a specific provision but with the object/scheme of the parent Act, the court should proceed with caution before declaring invalidity. |                 |                  |                                                                                      |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                    | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                   |
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                                                                                                                                                                            | Court           | Followed         | Followed, though the Court ultimately found the inconsistency here direct and clear. |

|                                                                                                                                                                                                                                 |                 |                  |                                                                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------------------------|
| <b>State of U.P. v. Mohd. Nooh</b> AIR 1958 SC 86 · Supreme Court                                                                                                                                                               |                 |                  |                                                                                                   |
| <b>PROPOSITION</b> The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite the availability of other adequate legal remedies. |                 |                  |                                                                                                   |
| <b>CITED IN</b>                                                                                                                                                                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                |
| <b>SCJ-153</b> Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                                                     | Court           | Referred         | Noticed within the quoted Whirlpool extract as part of the catena on the alternative-remedy rule. |
| <b>SCJ-165</b> Kamil v. State of U.P. & Others                                                                                                                                                                                  | Court           | Referred         | Noticed within the quoted Whirlpool extract.                                                      |

|                                                                                                                                                                                                |                 |                  |                                                                         |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------|
| <b>State of U.P. v. Saroj Kumar Sinha</b> (2010) 2 SCC 772 · Supreme Court                                                                                                                     |                 |                  |                                                                         |
| <b>PROPOSITION</b> In a departmental inquiry the Establishment must prove the charges by leading evidence; an inquiry officer is not to act as a prosecutor, and charges are not self-proving. |                 |                  |                                                                         |
| <b>CITED IN</b>                                                                                                                                                                                | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                      |
| <b>SCJ-017</b> Dharendra Kumar Chaudhary v. State of U.P. & 5 Others                                                                                                                           | Court           | Relied on        | Relied on for the burden-of-proof principle in major-penalty inquiries. |

|                                                                                                                                           |                 |                  |                                            |
|-------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------|
| <b>State of Uttaranchal v. Kharak Singh</b> (2008) 8 SCC 236 · Supreme Court                                                              |                 |                  |                                            |
| <b>PROPOSITION</b> Natural justice in disciplinary inquiries requires evidence to be led and the delinquent given opportunity to meet it. |                 |                  |                                            |
| <b>CITED IN</b>                                                                                                                           | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                         |
| <b>SCJ-017</b> Dharendra Kumar Chaudhary v. State of U.P. & 5 Others                                                                      | Court           | Relied on        | Relied on within the natural-justice line. |

|                                                                                                                                                                                                                                                                                                                                                |                 |                  |                    |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>State of W.B. v. Rupa Ice Factory (P) Ltd.</b> (2004) 10 SCC 635 · Supreme Court                                                                                                                                                                                                                                                            |                 |                  |                    |
| <b>PROPOSITION</b> Where the finding is that a consumer tapped electric energy directly bypassing the meter circuit, s.26(6)'s reference-to-Electrical-Inspector procedure has no application; following M.P. Electricity Board v. Basantibai and JMD Alloys v. Bihar SEB, tampering/theft/pilferage cases fall outside s.26's scope entirely. |                 |                  |                    |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                                                | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-151</b> Western Electricity Supply Co. of Orissa Ltd. & Ors. v. M/s Baba Baijanath Roller and Flour Mill Pvt. Ltd.                                                                                                                                                                                                                      | Court           | Followed         | Followed.          |

|                                                                                                                                                                                                     |                 |                  |                                              |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------|
| <b>State of West Bengal v. Dabasish Mukherjee</b> (2011) 14 SCC 187 · Supreme Court                                                                                                                 |                 |                  |                                              |
| <b>PROPOSITION</b> Equality before law is a positive concept, not enforceable negatively; an inadvertent illegal benefit to one person does not confer a legal right on others to the same benefit. |                 |                  |                                              |
| <b>CITED IN</b>                                                                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                           |
| <b>SCJ-123</b> Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.)                        | Court           | Followed         | Applied for the negative-equality principle. |

|                                                                                                                                              |                 |                  |                                                                                                                                                                                                                   |
|----------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>State Tax Officer (1) v. Rainbow Papers Ltd.</b> (2023) 9 SCC 545 · Supreme Court                                                         |                 |                  |                                                                                                                                                                                                                   |
| <b>PROPOSITION</b> Certain statutory dues may partake of the character of secured debts under the relevant statute's first-charge provision. |                 |                  |                                                                                                                                                                                                                   |
| <b>CITED IN</b>                                                                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                                                                |
| <b>SCJ-157</b> South East U.P. Power Transmission Company Ltd. v. Prescribed Authority & Ors. (with Tata Steel Ltd. v. State of U.P.)        | Respondent      | Distinguished    | Distinguished as arising in a different factual matrix (resolution, not liquidation) and as not having noticed the s.53 waterfall; held not to detract from the binding effect of an implemented resolution plan. |
| <b>SCJ-160</b> Reliance Projects and Property Management Services Ltd. v. State of U.P. & Others                                             | Respondent      | Distinguished    | Distinguished (as in Paschimanchal) as arising on different facts and not noticing the s.53 waterfall.                                                                                                            |

|                                                                                                                                                                                                                                                                                                                      |                    |               |                                                                                                                                                                                                                                                                                   |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|---------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>State Tax Officer v. Rainbow Papers Ltd.</b> 2022 (13) SCR 808 · Supreme Court                                                                                                                                                                                                                                    |                    |               |                                                                                                                                                                                                                                                                                   |
| <b>PROPOSITION</b> A statutory first-charge provision (s.48, Gujarat VAT Act) makes the State a 'secured creditor' under the IBC, since the definition of 'secured creditor' does not exclude government/statutory charges; a resolution plan excluding such dues is not IBC-compliant and not binding on the State. |                    |               |                                                                                                                                                                                                                                                                                   |
| CITED IN                                                                                                                                                                                                                                                                                                             | CITED BY           | TREATMENT     | HOW TREATED                                                                                                                                                                                                                                                                       |
| <b>SCJ-100</b> Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Limited & Ors.                                                                                                                                                                                                                          | Petitioner (PVVNL) | Distinguished | Distinguished and confined to its facts “ did not consider or apply the s.53 waterfall mechanism, arose in a resolution-plan (not liquidation) context, and cannot be extended to give government/quasi-government dues priority over the deliberately structured s.53 hierarchy. |

|                                                                                                                           |          |           |             |
|---------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>Sub-Divisional Officer (P), UHBVNL v. Dharam Pal</b> (2006) 12 SCC 222 · Supreme Court                                 |          |           |             |
| <b>PROPOSITION</b> In cases of meter tampering, there is no scope for reference to an Electrical Inspector under s.26(6). |          |           |             |
| CITED IN                                                                                                                  | CITED BY | TREATMENT | HOW TREATED |
| <b>SCJ-151</b> Western Electricity Supply Co. of Orissa Ltd. & Ors. v. M/s Baba Baijanath Roller and Flour Mill Pvt. Ltd. | Court    | Followed  | Followed.   |

|                                                                                                                                                      |          |           |                   |
|------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------|
| <b>Sudha v. President, Advocates Association, Chennai and Ors.</b> (2010) 14 SCC 114 · Supreme Court                                                 |          |           |                   |
| <b>PROPOSITION</b> The legal profession is a solemn, noble calling distinct from other occupations, given its role in the administration of justice. |          |           |                   |
| CITED IN                                                                                                                                             | CITED BY | TREATMENT | HOW TREATED       |
| <b>SCJ-133</b> Tehsil Bar Association, Sadar Tehsil Parisar, Gandhi Nagar, Ghaziabad v. U.P. Power Corporation Limited And 3 Others                  | Court    | Referred  | Cited in support. |

|                                                                                                                                                                                                                                         |          |           |                                                                            |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------|
| <b>Sukhdev Singh &amp; Ors. v. Bhagatram Sardar Singh Raghuvanshi &amp; Anr.</b> (1975) 1 SCC 421 · Supreme Court (Constitution Bench)                                                                                                  |          |           |                                                                            |
| <b>PROPOSITION</b> Statutory bodies cannot use rule/regulation-making power to enlarge their powers beyond the scope intended by the legislature; delegated rules/regulations establish patterns of conduct subordinate to the statute. |          |           |                                                                            |
| CITED IN                                                                                                                                                                                                                                | CITED BY | TREATMENT | HOW TREATED                                                                |
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                                                                                                 | Court    | Followed  | Followed as foundational authority on the limits of delegated legislation. |

|                                                                                                                                                                                                       |                 |                  |                                                                                                                                       |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------------------------------------------------------------|
| <b>Sundaresh Bhatt, Liquidator of ABG Shipyard v. Central Board of Indirect Taxes and Customs</b> 2022 SCC OnLine SC 1101 · Supreme Court                                                             |                 |                  |                                                                                                                                       |
| <b>PROPOSITION</b> IBC prevails over the Customs Act, 1962 once moratorium is imposed; the customs authority retains only a limited jurisdiction to assess duty, not to recover by sale/confiscation. |                 |                  |                                                                                                                                       |
| <b>CITED IN</b>                                                                                                                                                                                       | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                    |
| <b>SCJ-054</b> M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others                                                                      | Court           | Referred         | Relied on (via Raman Ispat) as an analogous application of s.238 primacy over a sectoral statute with its own first-charge provision. |
| <b>SCJ-100</b> Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Private Limited & Ors.                                                                                                           | Court           | Followed         | Applied by analogy to hold IBC s.238 similarly overrides the Electricity Act's ss.173/174 independent-recovery mechanism.             |

|                                                                                                                                                                                                             |                 |                  |                                                                   |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------|
| <b>Sunil Bharati Mittal v. CBI</b> (2015) 4 SCC 609 · Supreme Court (Three-Judge Bench)                                                                                                                     |                 |                  |                                                                   |
| <b>PROPOSITION</b> Corporate criminal liability generally cannot be imputed to individual directors absent active personal role or an express statutory vicarious-liability provision such as s.141 NI Act. |                 |                  |                                                                   |
| <b>CITED IN</b>                                                                                                                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                |
| <b>SCJ-132</b> Sunil Todi & Ors. v. State of Gujarat & Anr.                                                                                                                                                 | Court           | Referred         | Cited for the framework governing director liability under s.141. |

|                                                                                                                                                                                                                                            |                 |                  |                                                                                                                                                   |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Supreme Court Bar Association v. Union of India</b> (1998) 4 SCC 409 · Supreme Court                                                                                                                                                    |                 |                  |                                                                                                                                                   |
| <b>PROPOSITION</b> The Supreme Court's power under Article 142 cannot be used to ignore substantive statutory provisions; it is a residuary power, supplementary and complementary to powers conferred by statute, to do complete justice. |                 |                  |                                                                                                                                                   |
| <b>CITED IN</b>                                                                                                                                                                                                                            | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                |
| <b>SCJ-152</b> U.P. State Cement Corporation Ltd. (In Liquidation), In re                                                                                                                                                                  | Court           | Referred         | Relied on within the Textile Labour Association extract to reject the contention that a mandamus prevails over the statutory distribution scheme. |

|                                                                                                     |                 |                  |                    |
|-----------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>Sushila Aggarwal v. State (NCT of Delhi)</b> Supreme Court                                       |                 |                  |                    |
| <b>PROPOSITION</b> Governing law on the grant and duration of anticipatory bail under s.438 Cr.P.C. |                 |                  |                    |
| <b>CITED IN</b>                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-131</b> Sunil Kumar v. State of U.P. And Another                                             | Court           | Followed         | Applied.           |

|                                                                                                                  |                 |                  |                    |
|------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>Swarn Singh Chand v. Punjab State Electricity Board</b> Supreme Court                                         |                 |                  |                    |
| <b>PROPOSITION</b> Cited in the string of malice-in-law authorities at para 42, in an electricity-board context. |                 |                  |                    |
| <b>CITED IN</b>                                                                                                  | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-126</b> Smt. Vimla Tiwari v. State of U.P. And Others                                                     | Court           | Referred         | Cited in support.  |

|                                                                                                                                  |          |           |                                                                              |
|----------------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------|
| <b>Swastic Industries v. Maharashtra State Electricity Board</b> (1997) 9 SCC 465 · Supreme Court                                |          |           |                                                                              |
| PROPOSITION Under s.24 of the 1910 Act, the right to recover charges and the right to discontinue supply are two distinct parts. |          |           |                                                                              |
| CITED IN                                                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                                  |
| SCJ-009 Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. & Anr. v. Rahamatullah Khan alias Rahamjulla                     | Court    | Relied on | Relied on to separate the right to recover from the remedy of disconnection. |

|                                                                                                                                                                                                             |          |           |                                                 |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------|
| <b>Tamil Nadu Generation and Distribution Corporation Ltd. v. PPN Power Generating Company Pvt. Ltd.</b> (2014) 11 SCC 53 · Supreme Court                                                                   |          |           |                                                 |
| PROPOSITION Adjudicatory functions ought not to be conducted by a State Commission in the absence of a judicial Member, at least for disputes not fairly relative to tariff fixation or advisory functions. |          |           |                                                 |
| CITED IN                                                                                                                                                                                                    | CITED BY | TREATMENT | HOW TREATED                                     |
| SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.                                                                                                                                | Court    | Followed  | Followed and extended into the present holding. |

|                                                                                                     |            |           |                                     |
|-----------------------------------------------------------------------------------------------------|------------|-----------|-------------------------------------|
| <b>Tata Hydro-Electric Power Supply Co. Ltd. v. Union of India</b> (2003) 4 SCC 172 · Supreme Court |            |           |                                     |
| PROPOSITION On the interpretation of the statutory/tariff basis for levying electricity charges.    |            |           |                                     |
| CITED IN                                                                                            | CITED BY   | TREATMENT | HOW TREATED                         |
| SCJ-202 Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd. & Others                        | Petitioner | Referred  | Cited by the petitioner in support. |

|                                                                                                                             |          |           |                                                           |
|-----------------------------------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------|
| <b>Tata Power Co. Ltd. v. Reliance Energy Ltd.</b> (2008) 10 SCC 321 · Supreme Court                                        |          |           |                                                           |
| PROPOSITION The Electricity Act, 2003 is a consumer-friendly statute enacted as a self-contained comprehensive legislation. |          |           |                                                           |
| CITED IN                                                                                                                    | CITED BY | TREATMENT | HOW TREATED                                               |
| SCJ-009 Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. & Anr. v. Rahamatullah Khan alias Rahamjulla                | Court    | Referred  | Referred for the statute's consumer-protective character. |

|                                                                                                                                                                                                                                                                          |            |           |                                                                      |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|----------------------------------------------------------------------|
| <b>Tata Power Western Odisha Distribution Ltd. v. Jagannath Sponge Private Ltd.</b> Civil Appeal No. 5556 of 2023 · Supreme Court                                                                                                                                        |            |           |                                                                      |
| PROPOSITION Following Raman Ispat, a power distribution company cannot insist on payment of the corporate debtor's arrears (to be paid per the IBC waterfall mechanism) as a precondition for granting an electricity connection to the successful resolution applicant. |            |           |                                                                      |
| CITED IN                                                                                                                                                                                                                                                                 | CITED BY   | TREATMENT | HOW TREATED                                                          |
| SCJ-054 M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others                                                                                                                                                | Petitioner | Relied on | Relied on by the petitioner as a further application of Raman Ispat. |

**Telangana State Southern Power Distribution Co. Ltd.** Supreme Court

**PROPOSITION** Relied on by the respondents for the proposition that electricity dues cannot be extinguished.

| CITED IN                                                                                                                              | CITED BY   | TREATMENT     | HOW TREATED                                                                                 |
|---------------------------------------------------------------------------------------------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------|
| <b>SCJ-157</b> South East U.P. Power Transmission Company Ltd. v. Prescribed Authority & Ors. (with Tata Steel Ltd. v. State of U.P.) | Respondent | Distinguished | Distinguished on facts; held not to detract from the binding effect of the resolution plan. |

**Telangana State Southern Power Distribution Company Ltd. v. ...** Supreme Court

**PROPOSITION** Electricity dues, where statutory in character under the Electricity Act and the terms/conditions of supply, cannot be waived (s.56, Electricity Act 2003 / pari materia s.24, 1910 Act); where an e-auction notice specifically flags existing electricity dues as a purchaser liability on an 'AS IS WHERE IS, WITHOUT RECOURSE' basis, the purchaser is liable to pay them.

| CITED IN                                                    | CITED BY | TREATMENT | HOW TREATED                                                                                                                                                                                |
|-------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-098</b> Palika Towns LLP v. State of U.P. & 2 Others | Court    | Followed  | Applied by analogy “ held to support (not assist) GNIDA’s position, since the lease deed/Transfer Memorandum here similarly and specifically flagged the arrears as a purchaser liability. |

**Textile Labour Association v. Official Liquidator** (2004) 9 SCC 741 · Supreme Court

**PROPOSITION** By operation of ss.529 and 529-A, workmen become secured creditors (or unsecured preferential creditors, absent a contractual secured creditor) and their dues rank pari passu with secured creditors, overriding s.530 and all other claims; a mandamus (or Article 142 power) cannot ignore substantive statutory provisions, so a supplier's dues must still be worked out under ss.529/529-A.

| CITED IN                                                                  | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                                                                        |
|---------------------------------------------------------------------------|------------|---------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-152</b> U.P. State Cement Corporation Ltd. (In Liquidation), In re | Respondent | Distinguished | Distinguished on facts (there, gas supply was ordered before winding up and ONGC was an unsecured creditor) but its ratio on ss.529/529-A applied to hold that the U.P. Power Corporation's claim cannot rank above workmen and secured creditors. |

**Tinsukhia Electricity Supply Co. Ltd. v. State of Assam & Ors.** (1989) 3 SCC 709 · Supreme Court (Constitution Bench)

**PROPOSITION** A statute must be construed so as to make it effective and operative ('ut res magis valeat quam pereat'); courts should avoid interpretations reducing a provision to futility.

| CITED IN                                                     | CITED BY | TREATMENT | HOW TREATED                                                                                                                                                       |
|--------------------------------------------------------------|----------|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-111</b> Sandeep Kesarwani v. State of U.P. & 3 Others | Court    | Followed  | Applied to support a harmonious, purposive reading of ss.126 and 135 that gives effect to both provisions rather than rendering s.126 inoperative in theft cases. |

**Tirupati Balaji Developers (P) Ltd. v. State of Bihar** (2004) 5 SCC 1 · Supreme Court

**PROPOSITION** Appeal implies removal of a cause to a superior forum having jurisdiction to reverse, confirm, annul or modify the lower forum's decree/order, with corrective directions binding on the forum below.

| CITED IN                                                                                                                        | CITED BY | TREATMENT | HOW TREATED |
|---------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-138</b> U.P. Power Corporation Limited Thru' Executive Engineer v. Electricity Ombudsman & Ors. (M/S Suresh Automobiles) | Court    | Followed  | Followed.   |

|                                                                                                                                                                                                                                 |                 |                  |                                                                                                          |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------------------------------|
| <b>Transmission Corpn. of A.P. Ltd. v. Sri Rama Krishna Rice Mill</b> (2006) 3 SCC 74 · Supreme Court                                                                                                                           |                 |                  |                                                                                                          |
| <b>PROPOSITION</b> In an electricity assessment dispute, merely taking note of the objections filed is not compliance with the relevant rules; natural justice is not a straitjacket formula and varies with the circumstances. |                 |                  |                                                                                                          |
| <b>CITED IN</b>                                                                                                                                                                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                       |
| <b>SCJ-032</b> Hazi Mohd. Yaseen v. P.V.V.N.L. & Another                                                                                                                                                                        | Petitioner      | Relied on        | Relied on / discussed for the content of the opportunity of hearing in the consumer-electricity context. |

|                                                                                                                            |                 |                  |                                                                                                                                                            |
|----------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Transmission Corporation of A.P. Ltd. &amp; Ors. v. Sri Rama Krishna Rice Mill</b> (2006) 3 SCC 74 · Supreme Court      |                 |                  |                                                                                                                                                            |
| <b>PROPOSITION</b> Explains the standard of reasonable opportunity of hearing in the context of an electricity assessment. |                 |                  |                                                                                                                                                            |
| <b>CITED IN</b>                                                                                                            | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                         |
| <b>SCJ-047</b> Lalit Kumar Kapoor v. Kanpur Electricity Supply Company & Anr.                                              | Court           | Relied on        | Relied on to the same effect as Khem Chand.                                                                                                                |
| <b>SCJ-051</b> M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.                         | Petitioner      | Distinguished    | Held inapplicable “the petitioner failed to show inadequate opportunity, and his objections were in fact considered and discussed in the assessment order. |

|                                                                                                                                                                                                                                                                                          |                 |                  |                                                                                                                                   |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| <b>U.P. Power Corporation Ltd. &amp; Ors. v. Anis Ahmad</b> (2013) 8 SCC 491 · Supreme Court                                                                                                                                                                                             |                 |                  |                                                                                                                                   |
| <b>PROPOSITION</b> The Electricity Supply Code under s.50 need not provide, and does not relate to, assessment of charges for 'unauthorised use of electricity' under Section 126 or offences under Sections 135-140; these fall within Section 126/127's own separate statutory scheme. |                 |                  |                                                                                                                                   |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                          | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                |
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                                                                                                                                                  | Court           | Followed         | Followed and applied to hold that a Supply Code Regulation purporting to create an exemption from s.126 liability is ultra vires. |

|                                                                                                                                                                                                                               |                 |                  |                                                                                             |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------------------|
| <b>U.P. Power Corporation Ltd. and another v. Lohia Brass (P) Ltd. and others</b> (2006) 7 SCC 220 · Supreme Court                                                                                                            |                 |                  |                                                                                             |
| <b>PROPOSITION</b> Each Meter Reading Inspection Report violation of peak-hour consumption restrictions attracts separate penalty; the Allahabad High Court's contrary interpretation (one penalty per report) was incorrect. |                 |                  |                                                                                             |
| <b>CITED IN</b>                                                                                                                                                                                                               | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                          |
| <b>SCJ-128</b> Sri Chandra Mohan Goyal v. U.P. Power Corporation Ltd. & Others                                                                                                                                                | Court           | Followed         | Followed as controlling; held to apply retrospectively to the petitioner's pending dispute. |

|                                                                                                                      |                 |                  |                                 |
|----------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------|
| <b>U.P. Power Corporation Ltd. and others v. Bonds and Beyonds (India) (P) Ltd.</b> (2007) 7 SCC 779 · Supreme Court |                 |                  |                                 |
| <b>PROPOSITION</b> Reaffirms Lohia Brass: each peak-hour-restriction violation attracts separate penalty.            |                 |                  |                                 |
| <b>CITED IN</b>                                                                                                      | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>              |
| <b>SCJ-128</b> Sri Chandra Mohan Goyal v. U.P. Power Corporation Ltd. & Others                                       | Court           | Followed         | Followed alongside Lohia Brass. |



|                                                                                                                                                                                                     |                 |                  |                                                                                 |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------|
| <b>U.P. Power Corporation Ltd. v. M/s Lohia Brass Pvt. Ltd. &amp; Others</b> Decided 25.7.2006 · Supreme Court                                                                                      |                 |                  |                                                                                 |
| <b>PROPOSITION</b> Peak-hour-restriction violation penalty is to be imposed per inspection report (first violation and subsequently for every violation), settling the correct computation formula. |                 |                  |                                                                                 |
| <b>CITED IN</b>                                                                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                              |
| <b>SCJ-122</b> Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others                                                                                                                           | Court           | Followed         | Applied as establishing the formula on which the corrected 2009 bill was based. |

|                                                                                                              |                 |                  |                               |
|--------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------|
| <b>U.P. Rajkiya Nirman Nigam Ltd. v. Indure Pvt. Ltd.</b> AIR 1996 SC 1373 · Supreme Court                   |                 |                  |                               |
| <b>PROPOSITION</b> (Same principle as Karnal Improvement Trust “ acquiescence does not confer jurisdiction.) |                 |                  |                               |
| <b>CITED IN</b>                                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>            |
| <b>SCJ-049</b> M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.                  | Court           | Relied on        | Relied on to the same effect. |

|                                                                                                                          |                 |                  |                                                                                                             |
|--------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------------------|
| <b>UCO Bank v. Official Liquidator</b> Supreme Court                                                                     |                 |                  |                                                                                                             |
| <b>PROPOSITION</b> Section 529-A overrides all other claims of creditors even where a decree has been passed by a court. |                 |                  |                                                                                                             |
| <b>CITED IN</b>                                                                                                          | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                          |
| <b>SCJ-152</b> U.P. State Cement Corporation Ltd. (In Liquidation), In re                                                | Court           | Referred         | Noticed within the Textile Labour Association extract as authority that s.529-A prevails over other claims. |

|                                                                                                                                                                                                                                        |                 |                  |                                                                                                             |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------------------|
| <b>Uma Nath Pandey &amp; Ors. v. State of U.P. &amp; Anr.</b> (2009) 12 SCC 40 · Supreme Court                                                                                                                                         |                 |                  |                                                                                                             |
| <b>PROPOSITION</b> Natural justice is another name for common-sense justice; adherence to its principles is of supreme importance whenever a quasi-judicial body or an administrative action involving civil consequences is in issue. |                 |                  |                                                                                                             |
| <b>CITED IN</b>                                                                                                                                                                                                                        | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                          |
| <b>SCJ-092</b> Navi Hasan v. U.P. Power Corporation & Another                                                                                                                                                                          | Court           | Followed         | Applied as the governing authority on the audi alteram partem principle to quash the impugned demand order. |

|                                                                                                                                                                        |                 |                  |                                                                                    |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|------------------------------------------------------------------------------------|
| <b>Union of India v. Jyoti Prakash Mitter</b> AIR 1971 SC 1093 · Supreme Court (Constitution Bench)                                                                    |                 |                  |                                                                                    |
| <b>PROPOSITION</b> Article 217(3) does not guarantee a right of personal hearing; a mere denial of an oral representation does not, without more, vitiate proceedings. |                 |                  |                                                                                    |
| <b>CITED IN</b>                                                                                                                                                        | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                 |
| <b>SCJ-032</b> Hazi Mohd. Yaseen v. P.V.V.N.L. & Another                                                                                                               | Respondent      | Referred         | Referred (respondent's line); distinguished as not a consumer-electricity context. |

|                                                                                                                                                                                                                                                   |                 |                  |                                                                                                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------------------------------------|
| <b>Union of India v. Madras Bar Association</b> (2010) 11 SCC 1 · Supreme Court (Constitution Bench)                                                                                                                                              |                 |                  |                                                                                                                                   |
| <b>PROPOSITION</b> Tribunals substituting for court jurisdiction should possess the same independence/security/capacity as the courts they replace; members discharging judicial functions must be drawn from sources possessing legal expertise. |                 |                  |                                                                                                                                   |
| <b>CITED IN</b>                                                                                                                                                                                                                                   | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                |
| <b>SCJ-130</b> State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.                                                                                                                                                               | Court           | Followed         | Applied (with qualification, since no jurisdiction transfer from courts was involved here) to require a legally-qualified Member. |

|                                                                                                                                                                                                                            |                 |                  |                                                                                                                           |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------------------------------------------------|
| <b>Union of India v. Mohd. Ramzan Khan</b> 1991 (1) SCC 588 · Supreme Court                                                                                                                                                |                 |                  |                                                                                                                           |
| <b>PROPOSITION</b> A ruling requiring furnishing of an inquiry report to a delinquent employee was expressly made prospective; illustrates that prospective overruling requires an express direction by the Supreme Court. |                 |                  |                                                                                                                           |
| <b>CITED IN</b>                                                                                                                                                                                                            | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                        |
| <b>SCJ-128</b> Sri Chandra Mohan Goyal v. U.P. Power Corporation Ltd. & Others                                                                                                                                             | Court           | Distinguished    | Distinguished/cited to illustrate that prospective overruling is exceptional and requires express direction, absent here. |

|                                                                                                                                                                                                                                                                                                                                                           |                 |                  |                                                                       |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------|
| <b>Union of India v. Prakash P. Hinduja &amp; Another</b> AIR 2003 SC 2612 · Supreme Court                                                                                                                                                                                                                                                                |                 |                  |                                                                       |
| <b>PROPOSITION</b> Section 482 Cr.P.C. power to quash criminal proceedings may be exercised (sparingly, with circumspection) where the FIR/complaint even taken at face value discloses no offence, or the uncontroverted allegations/evidence do not disclose commission of any offence, or there is an express legal bar to continuance of proceedings. |                 |                  |                                                                       |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                                                           | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                    |
| <b>SCJ-114</b> Saurabh Agrawal & Another v. State of U.P. & Others                                                                                                                                                                                                                                                                                        | Court           | Followed         | Applied as the governing standard for quashing the s.135 prosecution. |

|                                                                                                                                                                                                                                                                                                                       |                 |                  |                                                                         |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------|
| <b>Union of India v. R. Gandhi, President, Madras Bar Association</b> JT 2010 (5) SC 553 · Supreme Court                                                                                                                                                                                                              |                 |                  |                                                                         |
| <b>PROPOSITION</b> Enumerates the distinguishing features of Courts versus Tribunals: Tribunals are statutorily created to adjudicate disputes of a specified nature and may combine judicial and technical members, unlike Courts which are exclusively manned by Judges and governed by CPC/Evidence Act procedure. |                 |                  |                                                                         |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                       | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                      |
| <b>SCJ-138</b> U.P. Power Corporation Limited Thru' Executive Engineer v. Electricity Ombudsman & Ors. (M/S Suresh Automobiles)                                                                                                                                                                                       | Court           | Followed         | Applied to determine that the Ombudsman lacks Tribunal characteristics. |

|                                                                                                                                                                                             |                 |                  |                                                                            |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------|
| <b>Union of India v. Rallia Ram</b> AIR 1963 SC 1685 · Supreme Court                                                                                                                        |                 |                  |                                                                            |
| <b>PROPOSITION</b> Interest is payable in equity only where circumstances attract equitable jurisdiction, or under the Interest Act, or where an agreement/statute/trade usage so provides. |                 |                  |                                                                            |
| <b>CITED IN</b>                                                                                                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                         |
| <b>SCJ-073</b> M/S NTPC Ltd. v. M.P. State Electricity Board & Ors. (with connected appeals)                                                                                                | Court           | Relied on        | Relied on to reject the equity-based interest claim absent any such basis. |

|                                                                                                                                                                                           |          |           |                               |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------|
| <b>Union of India v. Watkins Mayor and Co.</b> AIR 1966 SC 275 · Supreme Court                                                                                                            |          |           |                               |
| PROPOSITION Interest is claimable only where there is an agreement, trade usage having force of law, or a substantive statutory provision; equity alone cannot justify an interest claim. |          |           |                               |
| CITED IN                                                                                                                                                                                  | CITED BY | TREATMENT | HOW TREATED                   |
| SCJ-073 M/S NTPC Ltd. v. M.P. State Electricity Board & Ors. (with connected appeals)                                                                                                     | Court    | Relied on | Relied on to the same effect. |

|                                                                                                                              |          |           |                                                         |
|------------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------|
| <b>United Commercial Bank Ltd. v. Their Workmen</b> AIR 1951 SC 230 · Supreme Court                                          |          |           |                                                         |
| PROPOSITION No acquiescence or consent can give a jurisdiction to a court of limited jurisdiction which it does not possess. |          |           |                                                         |
| CITED IN                                                                                                                     | CITED BY | TREATMENT | HOW TREATED                                             |
| SCJ-049 M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.                                         | Court    | Relied on | Relied on for the no-jurisdiction-by-consent principle. |

|                                                                                                                                                                           |          |           |                                                                       |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------|
| <b>United India Insurance Co. Ltd. v. Ajay Sinha</b> Supreme Court                                                                                                        |          |           |                                                                       |
| PROPOSITION A Permanent Lok Adalat does not act merely as an arbitrator whose award may be challenged; Parliament has given it an adjudicatory role to decide the matter. |          |           |                                                                       |
| CITED IN                                                                                                                                                                  | CITED BY | TREATMENT | HOW TREATED                                                           |
| SCJ-025 Executive Engineer, Electricity Distribution Division-II v. State of U.P. & 2 Others                                                                              | Court    | Relied on | Relied on for the adjudicatory character of the Permanent Lok Adalat. |

|                                                                                                                 |            |               |                                                                                              |
|-----------------------------------------------------------------------------------------------------------------|------------|---------------|----------------------------------------------------------------------------------------------|
| <b>United India Insurance Co. Ltd. v. Lehu &amp; Ors.</b> (2003) 3 SCC 338 · Supreme Court                      |            |               |                                                                                              |
| PROPOSITION (Cited alongside Saurashtra Chemicals in support of the petitioners' 'subject to' argument.)        |            |               |                                                                                              |
| CITED IN                                                                                                        | CITED BY   | TREATMENT     | HOW TREATED                                                                                  |
| SCJ-053 M/S Dev Prayag Paper Mill (Pvt.) & Ors. v. State of U.P. & Ors. (batch of ~90 connected writ petitions) | Petitioner | Distinguished | Relied on by the petitioners; rejected along with Saurashtra Chemicals for the same reasons. |

|                                                                                                                                                                          |          |           |                                                                                                                    |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------------|
| <b>Uttar Pradesh Power Corporation Ltd. v. National Thermal Power Corporation Ltd. &amp; Ors.</b> (2011) 12 SCC 400 · Supreme Court                                      |          |           |                                                                                                                    |
| PROPOSITION The Central Electricity Regulatory Commission is an expert body for tariff determination; courts should ordinarily not interfere with tariff determinations. |          |           |                                                                                                                    |
| CITED IN                                                                                                                                                                 | CITED BY | TREATMENT | HOW TREATED                                                                                                        |
| SCJ-130 State of Gujarat & Ors. v. Utility Users' Welfare Association & Ors.                                                                                             | Court    | Referred  | Cited by counsel to emphasise the primarily technical/expert (non-adjudicatory) character of Commission functions. |

|                                                                                                                                                                                                   |                 |                  |                    |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>V. Sasidharan v. M/s Peter and Karunakar</b> AIR 1984 SC 1700 / (1984) 4 SCC 230 · Supreme Court                                                                                               |                 |                  |                    |
| <b>PROPOSITION</b> The office of a lawyer or firm of lawyers is not a 'commercial establishment' since lawyers traditionally do not carry on trade or business or render services to 'customers'. |                 |                  |                    |
| <b>CITED IN</b>                                                                                                                                                                                   | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-133</b> Tehsil Bar Association, Sadar Tehsil Parisar, Gandhi Nagar, Ghaziabad v. U.P. Power Corporation Limited And 3 Others                                                               | Court           | Followed         | Followed.          |

|                                                                                                                                                                                                                             |                 |                  |                                                          |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------|
| <b>V.S. Achuthanandan v. R. Balakrishna Pillai &amp; Ors.</b> (1994) 4 SCC 299 · Supreme Court                                                                                                                              |                 |                  |                                                          |
| <b>PROPOSITION</b> Earlier round of the same litigation: set aside a High Court order permitting withdrawal of prosecution against a co-accused (A5), restoring the Special Judge's order declining consent for withdrawal. |                 |                  |                                                          |
| <b>CITED IN</b>                                                                                                                                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                       |
| <b>SCJ-141</b> V.S. Achuthanandan v. R. Balakrishna Pillai & Ors.                                                                                                                                                           | Court           | Referred         | Referenced as prior procedural history in the same case. |

|                                                                                                                     |                 |                  |                                                                            |
|---------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------|
| <b>Vice-Chancellor, Banaras Hindu University v. Shrikant</b> (2006) 11 SCC 42 · Supreme Court                       |                 |                  |                                                                            |
| <b>PROPOSITION</b> (Cited among the mala fide-doctrine authorities; held inapplicable on facts.)                    |                 |                  |                                                                            |
| <b>CITED IN</b>                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                         |
| <b>SCJ-051</b> M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.                  | Petitioner      | Distinguished    | Held not applicable to the facts of the case.                              |
| <b>SCJ-061</b> M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. | Petitioner      | Distinguished    | Held inapplicable â€” no violation or unfairness in procedure was alleged. |

|                                                                                                       |                 |                  |                    |
|-------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>Virender Chaudhary v. Bharat Petroleum Corporation &amp; Ors.</b> 2009 (1) SCC 297 · Supreme Court |                 |                  |                    |
| <b>PROPOSITION</b> Follows the same delay/laches principle.                                           |                 |                  |                    |
| <b>CITED IN</b>                                                                                       | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-068</b> M/S Three Star Paper Mills Pvt. Ltd. v. State of U.P. & 5 Ors.                         | Court           | Referred         | Referred.          |

|                                                                            |                 |                  |                                 |
|----------------------------------------------------------------------------|-----------------|------------------|---------------------------------|
| <b>Vitthalbhai Narangbhai Patel v. CST</b> AIR 1967 SC 344 · Supreme Court |                 |                  |                                 |
| <b>PROPOSITION</b> To the same effect on the vested right of appeal.       |                 |                  |                                 |
| <b>CITED IN</b>                                                            | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>              |
| <b>SCJ-008</b> Aruna Bhargava v. PuVVNL & Another                          | Court           | Referred         | Referred (within Ramesh Singh). |

|                                                                                                                                                                                                                                                                                     |                 |                  |                                                                                                                                                                          |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Waman Rao v. Union of India</b> 1981 (2) SCC 362 · Supreme Court                                                                                                                                                                                                                 |                 |                  |                                                                                                                                                                          |
| <b>PROPOSITION</b> Applied prospective overruling to statutes declared ultra vires.                                                                                                                                                                                                 |                 |                  |                                                                                                                                                                          |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                       |
| <b>SCJ-128</b> Sri Chandra Mohan Goyal v. U.P. Power Corporation Ltd. & Others                                                                                                                                                                                                      | Court           | Referred         | Cited in the doctrinal survey.                                                                                                                                           |
| <b>Western Electricity Supply Co. of Orissa Ltd. v. Baba Baijanath Roller and Flour Mill (P) Ltd.</b> (2014) 105 ALR 762 (SC) · Supreme Court                                                                                                                                       |                 |                  |                                                                                                                                                                          |
| <b>PROPOSITION</b> Section 26 is relevant only to a dispute about the correctness of a meter; a question of fraud/tampering falls outside it.                                                                                                                                       |                 |                  |                                                                                                                                                                          |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                       |
| <b>SCJ-262</b> I.G. Shoes Pvt. Ltd. v. Kanpur Electricity Supply Co. Ltd. and Others                                                                                                                                                                                                | Court           | Followed         | Followed as the recent authority applying the s.26(6) line of cases.                                                                                                     |
| <b>Whirlpool Corporation (established exceptions to alternative remedy)</b> Supreme Court                                                                                                                                                                                           |                 |                  |                                                                                                                                                                          |
| <b>PROPOSITION</b> The alternative-remedy rule does not operate as an absolute bar where the writ petition seeks enforcement of a fundamental right, alleges violation of natural justice, or challenges an order/proceeding as wholly without jurisdiction or the vires of an Act. |                 |                  |                                                                                                                                                                          |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                       |
| <b>SCJ-112</b> Sanjay Rizvi v. M.D. Kanpur Electricity Supply Co. & Others                                                                                                                                                                                                          | Court           | Followed         | Applied as the governing exceptions framework, though the Court ultimately relegated the petitioner to the departmental process for the factual/technical determination. |
| <b>Whirlpool Corporation v. Registrar of Trade Marks, Mumbai</b> (1998) 8 SCC 1 · Supreme Court                                                                                                                                                                                     |                 |                  |                                                                                                                                                                          |
| <b>PROPOSITION</b> The availability of an alternative remedy is no bar to a writ petition where there is a breach of natural justice or an excess of jurisdiction.                                                                                                                  |                 |                  |                                                                                                                                                                          |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                       |
| <b>SCJ-032</b> Hazi Mohd. Yaseen v. P.V.V.N.L. & Another                                                                                                                                                                                                                            | Petitioner      | Referred         | Referred (petitioner's line on maintainability despite the s.127 appeal).                                                                                                |
| <b>SCJ-153</b> Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                                                                                                         | Court           | Relied on        | Relied on and quoted (paras 15-21) to entertain the writ despite the s.127 appeal, the order being challenged for breach of natural justice.                             |
| <b>SCJ-163</b> Jai Laxmi Cement Company Ltd. v. State of U.P. & 3 Others                                                                                                                                                                                                            | Court           | Relied on        | Applied: the case did not fall within any of the Whirlpool exceptions, so the writ was not entertained at the provisional stage.                                         |
| <b>SCJ-165</b> Kamil v. State of U.P. & Others                                                                                                                                                                                                                                      | Court           | Relied on        | Relied on and quoted (paras 15-21) to entertain the writ despite the s.127 appeal.                                                                                       |
| <b>Yunus v. State of Maharashtra &amp; Others</b> 2009 (3) SCC 281 · Supreme Court                                                                                                                                                                                                  |                 |                  |                                                                                                                                                                          |
| <b>PROPOSITION</b> Explains the doctrine of laches (per Lindsay Petroleum Co. v. Hurd): where it would be practically unjust to give a remedy because of conduct amounting to waiver, or where delay has changed the other party's position, lapse of time is material.             |                 |                  |                                                                                                                                                                          |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                       |
| <b>SCJ-068</b> M/S Three Star Paper Mills Pvt. Ltd. v. State of U.P. & 5 Ors.                                                                                                                                                                                                       | Court           | Relied on        | Relied on for the classical formulation of laches applied to bar the claim.                                                                                              |

**Zameer Ahmed Latifur Rehman Sheikh v. State of Maharashtra** (2010) 5 SCC 246 · Supreme Court**PROPOSITION** Same interpretive principle “statutory provisions read as a whole, not piecemeal.

| CITED IN                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                                       |
|--------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------|
| <b>SCJ-113</b> Satya Narayan v. U.P. Power Corporation Ltd. thru. its Managing Director & Others | Court    | Followed  | Cited among the catena of authorities supporting holistic statutory construction. |

**Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haq** 2005 SCC (Cri) 283 · Supreme Court**PROPOSITION** At the quashing stage, only a prima facie case is to be examined; disputed factual questions must go to trial.

| CITED IN                                                       | CITED BY | TREATMENT | HOW TREATED |
|----------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-142</b> Vijay Kumar Sachan v. State of U.P. And Another | Court    | Followed  | Applied.    |

**Allahabad High Court** 84 authorities · 120 citations**Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.** 2009 (1) ADJ 430 · Allahabad High Court (DB)**PROPOSITION** Clause 5.6(c)(iii) requires the consumer's agreement for the choice of testing laboratory (licensee's/independent/Electrical Inspector); this being a harsh provision against the consumer must be construed strictly, and failure to apprise the consumer of this right renders the meter-sealing/testing proceedings irregular and illegal.

| CITED IN                                                           | CITED BY | TREATMENT | HOW TREATED                                                                                                                          |
|--------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-114</b> Saurabh Agrawal & Another v. State of U.P. & Others | Court    | Followed  | Applied (quoting para 6) to reinforce that non-compliance with the meter-testing consumer-rights procedure vitiates the proceedings. |
| <b>SCJ-126</b> Smt. Vimla Tiwari v. State of U.P. And Others       | Court    | Followed  | Followed as part of this corpus's Clause 5.6 meter-testing line.                                                                     |

**Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.** 2009 (1) ADJ 430 · Allahabad High Court (Division Bench)**PROPOSITION** Clause 5.6(c)(iii) requires the licensee to apprise the consumer of, and obtain his agreement to, the testing venue (licensee's lab / independent lab / Electrical Inspector) before a sealed meter is tested; the clause operates harshly and is construed strictly, and failure to give a bold, printed notice of the option renders the proceedings illegal.

| CITED IN                                                                            | CITED BY   | TREATMENT | HOW TREATED                                                                                                                                                                                                                                        |
|-------------------------------------------------------------------------------------|------------|-----------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-153</b> Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.         | Petitioner | Followed  | Followed and applied; the Court held the law it lays down fully supports the petitioner. Noted that the licensee's SLP against Amrawati Devi was dismissed by the Supreme Court on 3/8/2009. (Amrawati Devi is digested in the corpus as SCJ-162.) |
| <b>SCJ-161</b> Rituraj v. State of U.P. & Others                                    | Petitioner | Followed  | Followed and quoted at length. (Digested in the corpus as SCJ-162.)                                                                                                                                                                                |
| <b>SCJ-167</b> U.P. Rajya Vidyut Parishad v. Panjab Corbohydrate                    | Court      | Referred  | Referred as the analogous position under the Code 2005. (Digested in the corpus as SCJ-162.)                                                                                                                                                       |
| <b>SCJ-202</b> Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd. & Others | Petitioner | Referred  | Cited by the petitioner in support. (Digested in the corpus as SCJ-162.)                                                                                                                                                                           |

**Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.** (DB) · Allahabad High Court (DB)

**PROPOSITION** Clause 5.6(c) requires the consumer's agreement for testing at the licensee's lab or an independent lab; failure to apprise the consumer of the right to independent testing (where tampering was found only via a subsequent lab test) renders the sealing/assessment proceedings irregular and illegal.

| CITED IN                                                                                                  | CITED BY   | TREATMENT     | HOW TREATED                                                                                               |
|-----------------------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------------------------------------------------------------------|
| <b>SCJ-064</b> M/S Santosh Preservation Pvt. Ltd. & Anr. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Anr. | Petitioner | Distinguished | Distinguished on the same ground as Mohd. Sagir.                                                          |
| <b>SCJ-071</b> M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors.                  | Court      | Followed      | Followed as now-final law (SLP dismissed), applied to invalidate the manufacturer's ex parte test report. |

**Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd.** 2005 (2) AWC 1269 · Allahabad High Court

**PROPOSITION** On use of the maximum period where the actual period of unauthorised use cannot be established.

| CITED IN                                             | CITED BY   | TREATMENT     | HOW TREATED                      |
|------------------------------------------------------|------------|---------------|----------------------------------|
| <b>SCJ-211</b> Ram Bahadur v. State of U.P. & Others | Respondent | Distinguished | Distinguished on the same basis. |

**Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd. & Ors.** 2005 All. C.J. 977 · Allahabad High Court (Single Judge)

**PROPOSITION** Held (in the petitioner's submission) that the pre-2007 rate of one-and-half times the tariff under Section 126(5)/(6) applies where the cause of action (theft) arose before the amendment.

| CITED IN                                                                                 | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                         |
|------------------------------------------------------------------------------------------|------------|---------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-047</b> Lalit Kumar Kapoor v. Kanpur Electricity Supply Company & Anr.            | Petitioner | Distinguished | Given only persuasive value; not followed "the Court held that the law as of the date of the FINAL assessment (not the date the cause of action arose) governs the applicable rate. |
| <b>SCJ-071</b> M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors. | Court      | Followed      | Followed (via Modern Rice Mill).                                                                                                                                                    |

**Smt. Chandrawati v. U.P. State Electricity Board** 1986 All LJ 1451 · Allahabad High Court (Division Bench)

**PROPOSITION** Where no notice of demand was admittedly served, the consumer is entitled to a mandamus restraining recovery under the demand and recovery certificates.

| CITED IN                                           | CITED BY   | TREATMENT     | HOW TREATED                                                                                                         |
|----------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-170</b> Heera Lal v. State of U.P. & Others | Petitioner | Distinguished | Distinguished as factually different "there the non-service was admitted, whereas here there was no such admission. |

**Smt. Karuna Jaiswal v. State of U.P.** 2018 (9) ADJ 107 (DB) (LB) · Allahabad High Court (DB)

**PROPOSITION** Same principle on natural justice in disciplinary inquiries.

| CITED IN                                                             | CITED BY | TREATMENT | HOW TREATED                 |
|----------------------------------------------------------------------|----------|-----------|-----------------------------|
| <b>SCJ-017</b> Dharendra Kumar Chaudhary v. State of U.P. & 5 Others | Court    | Referred  | Referred within the catena. |

|                                                                                                                                                                                                                                                                                                      |                 |                  |                                                                                                                                                                                         |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>M/s Kesarwani Sheetalaya &amp; Others v. Purvanchal Vidyut Vitran Nigam Ltd. &amp; Others</b> Civil Misc. Writ Petition No. 2309 of 2009, decided 9.10.2009 · Allahabad High Court (DB)                                                                                                           |                 |                  |                                                                                                                                                                                         |
| <b>PROPOSITION</b> Where a tapping consumer had itself obtained the original consumer's consent and shared the feeder's construction cost, it stands at par with the original consumer, and a further connection through tapping to another consumer without ITS consent violates Clause 3.4(d)(ii). |                 |                  |                                                                                                                                                                                         |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                      | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                                      |
| <b>SCJ-067</b> M/S Shri Parasnath Alloys (Pvt.) Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                                                                                                | Petitioner      | Distinguished    | Distinguished – the petitioner here had not obtained the true original consumer's consent or shared the feeder's own construction cost, unlike the petitioners in Kesarwani Sheetalaya. |

|                                                                                                                                                         |                 |                  |                                      |
|---------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------|
| <b>M/s Meekin Transmission Ltd., Kanpur and another</b> Writ Tax No. 749 of 2003, decided 14.02.2008 · Allahabad High Court                             |                 |                  |                                      |
| <b>PROPOSITION</b> Same principle: absent personal guarantee/undertaking, directors are not personally liable for a defaulting consumer-company's dues. |                 |                  |                                      |
| <b>CITED IN</b>                                                                                                                                         | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                   |
| <b>SCJ-129</b> Sri Piyush Kumar v. State of U.P. Thru' Secretary Lucknow And Others                                                                     | Court           | Followed         | Followed alongside Adesh Kumar Jain. |

|                                                                                                                                                                                                                                                                                                                |                 |                  |                                                                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------|
| <b>M/s Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd. &amp; Another</b> 2012 (1) ADJ 296 · Allahabad High Court                                                                                                                                                                                      |                 |                  |                                                                                                 |
| <b>PROPOSITION</b> Clause 5.6(d) mandates a specific procedure before meter testing – information to the consumer of the proposed testing date, an opportunity to be present (personally or through a representative), obtaining signature if present, and a right to dispute the testing under Clause 5.6(c). |                 |                  |                                                                                                 |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                              |
| <b>SCJ-114</b> Saurabh Agrawal & Another v. State of U.P. & Others                                                                                                                                                                                                                                             | Court           | Followed         | Applied to hold the meter-testing procedure was not followed, undermining the theft allegation. |
| <b>SCJ-126</b> Smt. Vimla Tiwari v. State of U.P. And Others                                                                                                                                                                                                                                                   | Court           | Followed         | Followed alongside Amrawati Devi.                                                               |

|                                                                                                                                                                                                                                                           |                 |                  |                                |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------|
| <b>M/s Modern Rice Mill v. MVVNL &amp; Anr.</b> 2012 (1) ADJ 296 · Allahabad High Court                                                                                                                                                                   |                 |                  |                                |
| <b>PROPOSITION</b> A meter manufacturer's own lab cannot be an 'independent laboratory'; testing by the manufacturer amounts to making a person judge in his own cause, given its commercial interest in defending its product's tamper-proof reputation. |                 |                  |                                |
| <b>CITED IN</b>                                                                                                                                                                                                                                           | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>             |
| <b>SCJ-071</b> M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors.                                                                                                                                                                  | Court           | Followed         | Followed and quoted at length. |



**M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors.** 2011 (9) ADJ 239 · Allahabad High Court**PROPOSITION** Mens rea is not a requirement for a Section 126 civil assessment, as distinct from a Section 135 criminal prosecution.

| CITED IN                                                                                           | CITED BY   | TREATMENT | HOW TREATED                                                                                                             |
|----------------------------------------------------------------------------------------------------|------------|-----------|-------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-051</b> M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors. | Court      | Followed  | Agreed with and followed on the s.126/s.135 mens rea distinction.                                                       |
| <b>SCJ-059</b> M/S Modern Rice Mill v. MVVNL & Anr.                                                | Court      | Followed  | Relied on (a companion judgment by the same Judge, five days earlier) for the technical background of the Secure Meter. |
| <b>SCJ-069</b> M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors.                     | Petitioner | Followed  | Followed/referred.                                                                                                      |
| <b>SCJ-121</b> Shri Kunwar Sarvesh Kumar Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.    | Court      | Followed  | Followed as the controlling precedent on which Supply Code procedure governs theft assessment.                          |

**M/s Paliwal Alloys (Pvt.) Ltd. v. U.P. Power Corporation Ltd. & Others** 2009 (7) ADJ 455 (DB) · Allahabad High Court (DB)**PROPOSITION** Assessment under Section 126 is also to be made in theft cases, and the consumer has a right of appeal.

| CITED IN                                                                       | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                                                                           |
|--------------------------------------------------------------------------------|------------|---------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-069</b> M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors. | Petitioner | Followed      | Followed.                                                                                                                                                                                                                                             |
| <b>SCJ-111</b> Sandeep Kesarwani v. State of U.P. & 3 Others                   | Petitioner | Distinguished | Distinguished from the petitioner's reading â€” clarified that the 'different fields' holding does not mean s.126 assessment is barred wherever s.135 also applies; rather, both provisions can and do operate concurrently on overlapping conduct.   |
| <b>SCJ-111</b> Sandeep Kesarwani v. State of U.P. & 3 Others                   | Respondent | Followed      | Followed as the controlling Division Bench precedent (with one member common to the present Bench).                                                                                                                                                   |
| <b>SCJ-111</b> Sandeep Kesarwani v. State of U.P. & 3 Others                   | Respondent | Followed      | Followed for the overlapping-but-parallel operation of ss.126 and 135.                                                                                                                                                                                |
| <b>SCJ-122</b> Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others      | Court      | Distinguished | Distinguished as having been decided without the benefit of the later Kusumam Hotels ruling (16.5.2008), which was not brought to that Division Bench's attention; its correctness on the broader s.56(2) scope question left open for a future case. |

**Smt. Pawan Jha @ Priya Jha v. State of U.P.** (2011) 5 All WC 5176 · Allahabad High Court (Division Bench)**PROPOSITION** There is no basic difference between a private sale and a development-authority allotment for arrears purposes; applying DVS Steels and Hanuman Rice Mills, the licensee may insist on clearance of the premises' arrears before a fresh connection.

| CITED IN                                                                                       | CITED BY | TREATMENT | HOW TREATED                                                                 |
|------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------|
| <b>SCJ-248</b> Kalawati Rana v. U.P. Power Corporation Ltd. Thru its M.D./Chairman and Another | Court    | Followed  | Followed as a binding coordinate-bench interpretation of Clause 4.1/4.3(f). |

|                                                                                                                                              |                 |                  |                                                                                     |
|----------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------|
| <b>Smt. R.S. Khan v. State of U.P. &amp; Ors.</b> 2005 All. C.J. 985 · Allahabad High Court (DB)                                             |                 |                  |                                                                                     |
| <b>PROPOSITION</b> Cited by the petitioner regarding the 2004 assessment proceedings and subsequent orders in the connected writ litigation. |                 |                  |                                                                                     |
| <b>CITED IN</b>                                                                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                  |
| <b>SCJ-047</b> Lalit Kumar Kapoor v. Kanpur Electricity Supply Company & Anr.                                                                | Petitioner      | Referred         | Noted as part of the petitioner's procedural history/background; not determinative. |

|                                                                                                                                                                                                                                                                                                              |                 |                  |                                                                                                                                                                   |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>M/s Shiv Flour and Rice Mills v. State of U.P. &amp; Others</b> Civil Misc. Writ Petition No. 32927 of 2003 · Allahabad High Court                                                                                                                                                                        |                 |                  |                                                                                                                                                                   |
| <b>PROPOSITION</b> Distinguishes 'service line' (Para 2.2(bb)) from 'independent feeder' (Para 2.2(ff)); without fulfilling Clause 3.4(d)'s conditions, the licensee cannot allow tapping of an independent feeder to supply another consumer running an arc/induction furnace, rolling mill or steel plant. |                 |                  |                                                                                                                                                                   |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                |
| <b>SCJ-067</b> M/S Shri Parasnath Alloys (Pvt.) Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                                                                                                        | Petitioner      | Referred         | Cited alongside Kesarwani Sheetalaya for the general Clause 3.4/consent framework; the petitioner's reliance nonetheless failed on the 'original consumer' facts. |

|                                                                                                                                                                                                                                                                                       |                 |                  |                                                                |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------|
| <b>Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd.</b> Misc. Bench No. 9588 of 2014 (Allahabad HC, 24-09-2014) · Allahabad High Court (Division Bench)                                                                                                                          |                 |                  |                                                                |
| <b>PROPOSITION</b> Clause 4.4 of the Code is in aid of the s.43 duty to supply; an occupier unable to produce the owner's consent (owner-occupier dispute) may obtain a connection on an Indemnity Bond (Annexure 4.2), and a denial merely citing Clause 4.4 without reasons is bad. |                 |                  |                                                                |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                       | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                             |
| <b>SCJ-190</b> Dr. Mamta Tripathi v. State of U.P. & 6 Ors.                                                                                                                                                                                                                           | Court           | Followed         | Followed and quoted as the governing Division Bench authority. |

|                                                                                                                                                                                                                                                      |                 |                  |                                                                                                             |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------------------|
| <b>Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd. &amp; 4 Others</b> Misc. Bench No. 9588 of 2014 (Allahabad HC, DB) · Allahabad High Court (DB)                                                                                              |                 |                  |                                                                                                             |
| <b>PROPOSITION</b> Section 43(1) casts an affirmative obligation on the licensee to supply an owner or occupier; Clause 4.4 is in aid of that duty, and an occupier who cannot get the owner's consent may furnish an indemnity bond (Annexure 4.2). |                 |                  |                                                                                                             |
| <b>CITED IN</b>                                                                                                                                                                                                                                      | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                          |
| <b>SCJ-027</b> Gaurav Sharma v. State of U.P. & 4 Others                                                                                                                                                                                             | Court           | Relied on        | Relied on and quoted for the s.43(1) obligation and the indemnity-bond route.                               |
| <b>SCJ-033</b> Husna Bano v. State of U.P. & 9 Others                                                                                                                                                                                                | Court           | Relied on        | Relied on (through Gaurav Sharma) for the s.43(1) obligation.                                               |
| <b>SCJ-067</b> M/S Shri Parasnath Alloys (Pvt.) Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                                                                                                | Respondent      | Relied on        | Relied on by the successful respondent to support the statutory right to obtain a fresh connection/tapping. |

|                                                                                                                                                                               |                 |                  |                                                                                                                                         |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------------------------------------------|
| <b>Abdul Gani &amp; Anr. v. State of U.P. &amp; Ors.</b> Civil Misc. Writ Petition No. 15498 of 2008 · Allahabad High Court (DB)                                              |                 |                  |                                                                                                                                         |
| <b>PROPOSITION</b> An assessment made only on the allegation of a tampered meter seal, without any evidence of how the seal was tampered or theft was effected, cannot stand. |                 |                  |                                                                                                                                         |
| <b>CITED IN</b>                                                                                                                                                               | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                      |
| <b>SCJ-051</b> M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.                                                                            | Petitioner      | Distinguished    | Distinguished on facts “unlike Abdul Gani, here there was affirmative evidence (naked conductor, MRI anomalies) of the manner of theft. |

|                                                                                                                               |            |           |                               |
|-------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-------------------------------|
| <b>Abdus Salam @ A. Salam v. Election Commission of India</b> 2004 (55) ALR 12 · Allahabad High Court (DB)                    |            |           |                               |
| PROPOSITION There is nothing rigid about natural justice; the duty to hear does not always mean affording a personal hearing. |            |           |                               |
| CITED IN                                                                                                                      | CITED BY   | TREATMENT | HOW TREATED                   |
| SCJ-032 Hazi Mohd. Yaseen v. P.V.V.N.L. & Another                                                                             | Respondent | Referred  | Referred (respondent's line). |

|                                                                                                                                                                                                              |          |           |             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>Adesh Kumar Jain v. U.P. State Electricity Board</b> 1998 LBESR-1-677 · Allahabad High Court                                                                                                              |          |           |             |
| PROPOSITION Directors of a company cannot be made personally liable for the company's electricity dues unless the director gives an undertaking or personal guarantee for recovery from his personal assets. |          |           |             |
| CITED IN                                                                                                                                                                                                     | CITED BY | TREATMENT | HOW TREATED |
| SCJ-129 Sri Piyush Kumar v. State of U.P. Thru' Secretary Lucknow And Others                                                                                                                                 | Court    | Followed  | Followed.   |

|                                                                                                                                                                                                                     |          |           |                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------|
| <b>Ajit Singh @ Muraha v. State of U.P. &amp; Others</b> 2006 (56) ACC 433 · Allahabad High Court (Full Bench)                                                                                                      |          |           |                                                   |
| PROPOSITION Reiterates the Bhajan Lal/Satya Pal standard that FIR quashing/stay of arrest is warranted only where no cognizable offence is ex-facie discernible or a statutory restriction on investigation exists. |          |           |                                                   |
| CITED IN                                                                                                                                                                                                            | CITED BY | TREATMENT | HOW TREATED                                       |
| SCJ-102 Pawan Kumar Laur v. State of U.P. & Others                                                                                                                                                                  | Court    | Followed  | Followed as the controlling Full Bench authority. |

|                                                                                                                                   |          |           |                                                            |
|-----------------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------|
| <b>Allahabad Inter Prises v. State of U.P.</b> Writ-C No. 2788 of 2013 (Allahabad HC, DB) · Allahabad High Court (DB)             |          |           |                                                            |
| PROPOSITION A 'Protective Load' charge cannot be raised in the absence of any option exercised by the consumer for that facility. |          |           |                                                            |
| CITED IN                                                                                                                          | CITED BY | TREATMENT | HOW TREATED                                                |
| SCJ-026 Executive Engineer, Electricity Urban Distribution Division v. The Electricity Ombudsman & 2 Others                       | Court    | Followed  | Followed to hold the protective-load demand unsustainable. |

|                                                                                                                                                                                                                    |            |               |                                                                                                                                                   |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Anand Kumar v. State of U.P.</b> 2023 (3) ADJ 668 (DB) · Allahabad High Court (DB)                                                                                                                              |            |               |                                                                                                                                                   |
| PROPOSITION A tenant, being an 'occupier' under Clause 2(oo), has a statutory right to apply for and obtain a connection on fulfilling the Code's conditions (mainly an indemnity bond). [SCJ-006 in this corpus.] |            |               |                                                                                                                                                   |
| CITED IN                                                                                                                                                                                                           | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                       |
| SCJ-021 Dr. Ashok Kumar Sharma & Another v. State of U.P. & 4 Others                                                                                                                                               | Petitioner | Distinguished | Distinguished â€” ratio held not squarely applicable, since it presupposes authorised occupation, absent here given the unstayed eviction decree. |

|                                                                                                                          |          |           |             |
|--------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>Ankit Bharti v. State of U.P.</b> Allahabad High Court (Constitution Bench)                                           |          |           |             |
| PROPOSITION Affirms Vinod Kumar's special-circumstances framework for direct High Court applications under s.438 Cr.P.C. |          |           |             |
| CITED IN                                                                                                                 | CITED BY | TREATMENT | HOW TREATED |
| SCJ-131 Sunil Kumar v. State of U.P. And Another                                                                         | Court    | Followed  | Applied.    |

**Ashok Kumar & Others v. State of U.P.** 2008 (6) ADJ 660 (DB) · Allahabad High Court (DB)

**PROPOSITION** Where the challenge to a Section 126 assessment involves purely legal/jurisdictional issues (including the vires of a notification), which the assessing officer or the s.127 appellate authority cannot decide, the writ petition is entertained without relegating the party to the alternative remedy.

| CITED IN                                                                                                            | CITED BY     | TREATMENT     | HOW TREATED                                                                                                                                                                                                                           |
|---------------------------------------------------------------------------------------------------------------------|--------------|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-040</b> Kapil Gupta v. U.P. Power Corpn. Ltd. & Anr.                                                         | Petitioner   | Distinguished | Distinguished â€” inapplicable to a pure factual challenge with no vires/jurisdictional issue.                                                                                                                                        |
| <b>SCJ-048</b> Latif v. State of U.P. & Ors.                                                                        | Court        | Followed      | Followed and applied in full â€” the impugned bill-cum-notice and demand notice were set aside for non-compliance with the Clause 6.8 procedure as laid down in Ashok Kumar.                                                          |
| <b>SCJ-051</b> M/S Beeco Electrical India & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.                  | Petitioner   | Distinguished | Distinguished on facts â€” the requirement was held satisfied since the checking report itself disclosed the manner (naked conductor at LT mains bracket); the consumer's failure to explain it defeated his reliance on Ashok Kumar. |
| <b>SCJ-057</b> M/S Kissan Chilling Udyog & Anr. v. State of U.P. & Ors.                                             | Court        | Followed      | Followed and applied; the impugned orders were quashed for non-compliance and misreading of the underlying checking report.                                                                                                           |
| <b>SCJ-059</b> M/S Modern Rice Mill v. MVVNL & Anr.                                                                 | Court        | Followed      | Followed and extensively relied on for both the Clause 6.8 procedure and the Secure Meter technical background.                                                                                                                       |
| <b>SCJ-061</b> M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. | Petitioner   | Distinguished | Distinguished â€” no jurisdictional/vires issue was raised here, only a factual challenge to the assessment already considered by the authority.                                                                                      |
| <b>SCJ-069</b> M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors.                                      | Petitioner   | Followed      | Followed.                                                                                                                                                                                                                             |
| <b>SCJ-070</b> M/S Urmila Oil Industries v. U.P. Dakshinanchal Vidyut Vitran Nigam & Ors.                           | Petitioner   | Followed      | Followed and applied to quash an assessment resting on mere 'possibility' of theft without Clause 6.8 compliance.                                                                                                                     |
| <b>SCJ-071</b> M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors.                            | Court        | Followed      | Followed; the assessment procedure was found not to have been complied with in this case either.                                                                                                                                      |
| <b>SCJ-111</b> Sandeep Kesarwani v. State of U.P. & 3 Others                                                        | Court        | Followed      | Followed for the genus/species relationship between ss.126 and 135 and the natural-justice requirement.                                                                                                                               |
| <b>SCJ-112</b> Sanjay Rizvi v. M.D. Kanpur Electricity Supply Co. & Others                                          | Both parties | Followed      | Relied on by the licensee to justify its compliance with directions in that case; also relied on by the petitioner to support writ maintainability.                                                                                   |
| <b>SCJ-117</b> Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another                                     | Court        | Followed      | Followed as supporting authority for the natural-justice requirement.                                                                                                                                                                 |
| <b>SCJ-121</b> Shri Kunwar Sarvesh Kumar Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.                     | Court        | Followed      | Cited (via the pari materia Clause 6.8 analogy) for the content-sufficiency requirement of a show-cause notice.                                                                                                                       |

|                                                                                                                                                                 |                 |                  |                                                                                                                                                                                                                                         |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Ashok Kumar v. State of U.P.</b> (2008) 6 ADJ 660 · Allahabad High Court                                                                                     |                 |                  |                                                                                                                                                                                                                                         |
| <b>PROPOSITION</b> Lays down the requirement that an assessing authority pass a proper reasoned order in electricity assessment matters in accordance with law. |                 |                  |                                                                                                                                                                                                                                         |
| <b>CITED IN</b>                                                                                                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                                                                                      |
| <b>SCJ-154</b> Arup Kumar Mitra v. State of U.P. & Others                                                                                                       | Court           | Referred         | Referred; the officer undertook to make compliance by passing a reasoned order 'in accordance with law laid down by this Court in various cases, including Ashok Kumar', on the basis of which the Court declined to initiate contempt. |
| <b>SCJ-159</b> Pashchimanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat, Moradabad & Anr.                                                                | Respondent      | Referred         | Cited by the respondent (paras 59-61); noted. (This is the case digested in the corpus as SCJ-158.)                                                                                                                                     |
| <b>SCJ-165</b> Kamil v. State of U.P. & Others                                                                                                                  | Court           | Relied on        | Relied on as directly supporting the view taken. (Digested in the corpus as SCJ-158.)                                                                                                                                                   |
| <b>SCJ-176</b> Rakesh v. State of U.P. & 3 Others                                                                                                               | Court           | Followed         | Followed; the fresh assessment was directed to conform to it. (Digested in the corpus as SCJ-158.)                                                                                                                                      |
| <b>SCJ-189</b> Shri Krishna Kumar Bhargava v. State of U.P. & 4 Others                                                                                          | Petitioner      | Referred         | Cited by the petitioner as violated (demand notice predating the final assessment); a prima facie case found and recovery stayed. (Digested in the corpus as SCJ-158.)                                                                  |
| <b>SCJ-192</b> Ram Prakash Yadav v. State of U.P. & 3 Others                                                                                                    | Court           | Followed         | Followed; the fresh assessment was directed to conform to it. (Digested in the corpus as SCJ-158.)                                                                                                                                      |
| <b>SCJ-193</b> Yogendra Singh v. Dakshinanchal Vidyut Vitaran Nigam Ltd. & 3 Others                                                                             | Court           | Followed         | Followed; the fresh assessment was directed to conform to it. (Digested in the corpus as SCJ-158.)                                                                                                                                      |

|                                                                                                                                                                                                                |                 |                  |                                                                               |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------|
| <b>Benarsi Silk Palace v. Commr. of Income Tax</b> [1964] 52 ITR 220 (All) · Allahabad High Court                                                                                                              |                 |                  |                                                                               |
| <b>PROPOSITION</b> Jurisdiction can be conferred only by statute, not by consent or acquiescence – an assessee cannot confer jurisdiction on the Income Tax Officer by waiving a statutory notice requirement. |                 |                  |                                                                               |
| <b>CITED IN</b>                                                                                                                                                                                                | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                            |
| <b>SCJ-049</b> M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.                                                                                                                    | Court           | Relied on        | Relied on for the no-jurisdiction-by-consent principle in a taxation analogy. |

|                                                                                                                                                                                                   |                 |                  |                                                                                                                                                                                                                               |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Chandra Kumar Shah &amp; Anr. v. The District Judge &amp; Ors.</b> AIR 1976 All 328 · Allahabad High Court (FB)                                                                                |                 |                  |                                                                                                                                                                                                                               |
| <b>PROPOSITION</b> The power to frame regulations/rules cannot be read as a source of authority to enact independent legislation or impose obligations not otherwise envisaged by the parent Act. |                 |                  |                                                                                                                                                                                                                               |
| <b>CITED IN</b>                                                                                                                                                                                   | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                                                                            |
| <b>SCJ-053</b> M/S Dev Prayag Paper Mill (Pvt.) & Ors. v. State of U.P. & Ors. (batch of ~90 connected writ petitions)                                                                            | Petitioner      | Referred         | Cited by the petitioners in support of a contention (that Clause 4.20 exceeds the s.181 regulation-making power) which the Court declined to examine in detail as it was not pleaded and was raised only in oral submissions. |

|                                                                                              |                 |                  |                    |
|----------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>Chunvad Pandey v. State of U.P. &amp; Others</b> 2008 (4) ESC 2423 · Allahabad High Court |                 |                  |                    |
| <b>PROPOSITION</b> Follows the Supreme Court authorities on delay and laches.                |                 |                  |                    |
| <b>CITED IN</b>                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-068</b> M/S Three Star Paper Mills Pvt. Ltd. v. State of U.P. & 5 Ors.                | Court           | Referred         | Referred.          |

|                                                                                                                                                                                                                                 |                 |                  |                                                                                  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------|
| <b>Committee of Management &amp; Anr. v. Regional Deputy Director of Education, Agra &amp; Ors.</b> 2005 (23) LCD 441 · Allahabad High Court (Full Bench, five Judges)                                                          |                 |                  |                                                                                  |
| <b>PROPOSITION</b> An authority lacking power to compel witness attendance/examine on oath, not sitting in public, and whose decisions carry no finality, does not act as a Tribunal notwithstanding its adjudicatory function. |                 |                  |                                                                                  |
| <b>CITED IN</b>                                                                                                                                                                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                               |
| <b>SCJ-138</b> U.P. Power Corporation Limited Thru' Executive Engineer v. Electricity Ombudsman & Ors. (M/S Suresh Automobiles)                                                                                                 | Court           | Followed         | Followed as directly analogous, applied to hold the Ombudsman is not a Tribunal. |

|                                                                                                                                                                          |                 |                  |                                                                                             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------------------|
| <b>Dakshinanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal, Lucknow</b> Writ Petition No. 4237 (MS) of 2008 · Allahabad High Court (Single Judge)                        |                 |                  |                                                                                             |
| <b>PROPOSITION</b> (One of the two conflicting Single-Judge decisions that prompted the reference; view consistent with confining the Ombudsman remedy to the consumer.) |                 |                  |                                                                                             |
| <b>CITED IN</b>                                                                                                                                                          | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                          |
| <b>SCJ-043</b> Kisan Cold Storage & Ice Factory v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors. (Full Bench reference)                                                  | Court           | Referred         | Referred as part of the conflict occasioning the Full Bench reference; approach vindicated. |
| <b>SCJ-049</b> M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr.                                                                              | Respondent      | Followed         | Followed â€” held to squarely cover and dispose of the licensee's representation route.     |

|                                                                                                                                 |                 |                  |                                                  |
|---------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------|
| <b>Dhani Ram v. Chief Engineer, Raj Ghat Project Betwa River Board</b> (2013) 5 ADJ 691 · Allahabad High Court (Division Bench) |                 |                  |                                                  |
| <b>PROPOSITION</b> On declining to relegate a long-pending, fully-pleaded writ to the alternative remedy.                       |                 |                  |                                                  |
| <b>CITED IN</b>                                                                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                               |
| <b>SCJ-164</b> Parmarth Steels & Alloys (Pvt.) Ltd. & Anr. v. U.P. Power Corporation Ltd. (Transco) & Others                    | Petitioner      | Referred         | Cited in support of deciding the writ on merits. |

|                                                                                                                                                                                                                                             |                 |                  |                                                                           |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------|
| <b>Dhirendra Kumar Rai v. State of U.P.</b> 2010 (28) LCD 1248 · Allahabad High Court (DB)                                                                                                                                                  |                 |                  |                                                                           |
| <b>PROPOSITION</b> Surveys precedent on suspension power under Rule 4, U.P. Government Servant (Discipline & Appeal) Rules, 1999, holding suspension warranted only for allegations serious enough to attract major penalty if established. |                 |                  |                                                                           |
| <b>CITED IN</b>                                                                                                                                                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                        |
| <b>SCJ-116</b> Shabih Haider v. State of U.P. thru. Prin. Secy., Housing & Urban Planning & Ors.                                                                                                                                            | Court           | Followed         | Followed as the controlling survey of the applicable suspension standard. |

**Diwakar Dutt Bhatt v. Life Insurance Corporation of India** (1998) 2 UPLBEC 1154 · Allahabad High Court (Division Bench)**PROPOSITION** The bar of alternative remedy is a matter of self-imposed discipline; where the petition was entertained and pleadings exchanged, it is inexpedient to dismiss it on that ground.

| CITED IN                                                                                                     | CITED BY | TREATMENT | HOW TREATED                                   |
|--------------------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------|
| <b>SCJ-164</b> Parmarth Steels & Alloys (Pvt.) Ltd. & Anr. v. U.P. Power Corporation Ltd. (Transco) & Others | Court    | Referred  | Noticed within the quoted Roshan Lal extract. |

**Dr. Devendra Pratap Singh & Others v. Union of India** 2011 (7) ADJ 169 (DB) (LB) · Allahabad High Court (Lucknow Bench, DB)**PROPOSITION** Even while deciding a private dispute, the Court may have regard to the larger public interest.

| CITED IN                                                                                         | CITED BY | TREATMENT | HOW TREATED                                                                                                           |
|--------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-113</b> Satya Narayan v. U.P. Power Corporation Ltd. thru. its Managing Director & Others | Court    | Followed  | Cited to justify the Court's broader observations/directions on departmental negligence beyond the immediate dispute. |

**Gaurav Sharma v. State of U.P. & Others** Writ-C No. 8396 of 2018 (Allahabad HC, DB) · Allahabad High Court (DB)**PROPOSITION** A genuine occupier has a statutory right under s.43(1) to a connection and may furnish an indemnity bond (Annexure 4.2) where the owner's NOC is unavailable; a family dispute is no ground to refuse. [SCJ-027 in this corpus.]

| CITED IN                                              | CITED BY | TREATMENT | HOW TREATED                                              |
|-------------------------------------------------------|----------|-----------|----------------------------------------------------------|
| <b>SCJ-033</b> Husna Bano v. State of U.P. & 9 Others | Court    | Followed  | Followed (its paragraph 9 quoted) as directly governing. |

**Ghanshyam Gupta v. United India Insurance Co. Ltd. & Ors.** Civil Misc. Writ Petition No. 53188 of 2011, decided 14.9.2011 · Allahabad High Court**PROPOSITION** Follows the same marginal-heading-not-aid-to-construction principle.

| CITED IN                                            | CITED BY | TREATMENT | HOW TREATED                                                               |
|-----------------------------------------------------|----------|-----------|---------------------------------------------------------------------------|
| <b>SCJ-059</b> M/S Modern Rice Mill v. MVVNL & Anr. | Court    | Referred  | Referred as a recent application of the same principle by the same Court. |

**Hazi Mohd. Yaseen v. Paschimanchal Vidyut Vitran Nigam Ltd.** 2011 (10) ADJ 261 (DB) · Allahabad High Court (DB)**PROPOSITION** Same procedural-fairness principle for s.126/Clause 8.1 assessment.

| CITED IN                                                                        | CITED BY | TREATMENT | HOW TREATED                       |
|---------------------------------------------------------------------------------|----------|-----------|-----------------------------------|
| <b>SCJ-117</b> Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another | Court    | Followed  | Followed as supporting authority. |

**Heinz India Pvt. Ltd. v. State of U.P.** 2012 (4) AWC 3662 · Allahabad High Court

**PROPOSITION** Judicial review of administrative action is confined to legality, procedural propriety, and Wednesbury unreasonableness â€” illegality, irrationality, procedural impropriety, or abuse of power.

| CITED IN                                                                                                            | CITED BY   | TREATMENT     | HOW TREATED                                                                                 |
|---------------------------------------------------------------------------------------------------------------------|------------|---------------|---------------------------------------------------------------------------------------------|
| <b>SCJ-061</b> M/S Om Ice Factory Thru' Its Partner Satyapal Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. | Petitioner | Distinguished | Held inapplicable â€” none of the five grounds of judicial review was shown to be violated. |

**Inter College Kusmaul, Gorakhpur & Anr. v. State of U.P. & Ors.** 2006 (5) AWC 4436 · Allahabad High Court (DB)

**PROPOSITION** Expounds the maxims lex non cogit ad impossibilia, impotentia excusat legem and nemo tenetur ad impossibilia (the law does not compel the impossible).

| CITED IN                                                         | CITED BY | TREATMENT | HOW TREATED                                                                                                                          |
|------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-060</b> M/S Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors. | Court    | Followed  | Followed to permit exceptional reliance on an outside/check meter for billing where the consumer's own meter cannot yield a reading. |

**Jindal Poly Films Limited v. U.P. Electricity Regulatory Commission, Lucknow** Writ Petition No. 2456 (MB) of 2011, decided 15.4.2011 · Allahabad High Court (DB)

**PROPOSITION** Regulation 8.1(i) of the 2007 Regulations, giving the Distribution Licensee a remedy of representation to the Electricity Ombudsman, is intra vires the Act, 2003, on a 'read as a whole' construction.

| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED                                                                                     |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------------------------------------------------------|
| <b>SCJ-043</b> Kisan Cold Storage & Ice Factory v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors. (Full Bench reference) | Court    | Overruled | Overruled â€” did not engage Section 42(5)-(7) specifically; does not lay down the correct law. |

**Kali Das Wadhvani & Anr. v. Jagjiwan Das & Anr.** 1985 (2) ARC 533 · Allahabad High Court

**PROPOSITION** Jurisdiction cannot be conferred by consent, acquiescence or waiver where there is none; these factors are relevant only to pecuniary/territorial jurisdiction, not inherent jurisdiction, the absence of which renders a decree a nullity.

| CITED IN                                                                                    | CITED BY | TREATMENT | HOW TREATED |
|---------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-049</b> M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr. | Court    | Relied on | Relied on.  |

**Kamil v. State of U.P. & Others** 2016 (6) ADJ 11 (DB) · Allahabad High Court (DB)

**PROPOSITION** Same procedural-fairness principle for s.126/Clause 8.1 assessment.

| CITED IN                                                                        | CITED BY | TREATMENT | HOW TREATED                       |
|---------------------------------------------------------------------------------|----------|-----------|-----------------------------------|
| <b>SCJ-117</b> Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. & Another | Court    | Followed  | Followed as supporting authority. |



**Kunwar Sarvesh Kumar Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.** 2012 (2) ADJ 509 · Allahabad High Court (Single Judge)**PROPOSITION** In theft cases, the Clause 8.1 assessment procedure of the Supply Code, 2005 applies.

| CITED IN                                                     | CITED BY   | TREATMENT | HOW TREATED                                                                                  |
|--------------------------------------------------------------|------------|-----------|----------------------------------------------------------------------------------------------|
| <b>SCJ-111</b> Sandeep Kesarwani v. State of U.P. & 3 Others | Respondent | Followed  | Followed as consistent authority for the Clause 8.1 procedure applying to theft assessments. |

**L.M.L. Ltd. (U.P. Power Corporation v. L.M.L. Ltd.)** 2001 All LJ 2520 · Allahabad High Court (Division Bench)**PROPOSITION** Earlier Division Bench decision adjudicating the tariff/guaranteed-supply-surcharge issues between the licensee and consumers.

| CITED IN                                                                            | CITED BY | TREATMENT | HOW TREATED                                                                                                                                                                                     |
|-------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-155</b> M/s Saini Alloys Pvt. Ltd. v. U.P. Power Corporation, Lucknow & Ors. | Court    | Followed  | Held binding on this coordinate Bench and good law; the Bench followed it and held the Commission had no jurisdiction to reinterpret it or to permit the appellants to approach the High Court. |

**Lalit Kumar Kapoor v. Kanpur Electricity Supply Company, Kanpur** 2011 (10) ADJ 484 : 2012 (2) ALJ 63 · Allahabad High Court**PROPOSITION** Where the period of unauthorised use could not be ascertained, the maximum period was used for the assessment.

| CITED IN                                             | CITED BY   | TREATMENT     | HOW TREATED                      |
|------------------------------------------------------|------------|---------------|----------------------------------|
| <b>SCJ-211</b> Ram Bahadur v. State of U.P. & Others | Respondent | Distinguished | Distinguished on the same basis. |

**LML Ltd., Kanpur v. State of U.P.** AIR 2001 Allahabad 321 · Allahabad High Court (DB)**PROPOSITION** A tariff approved by the Regulatory Commission alone can be implemented by a licensee, which has no power to alter or vary it; a licensee circular inconsistent with the approved tariff is void and inoperative.

| CITED IN                                                                                                     | CITED BY | TREATMENT | HOW TREATED                                                                                                                                                                                                                                                      |
|--------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-094</b> Northern Coalfield Ltd. v. Chairman and Managing Director, U.P. Power Corporation Ltd. & Ors. | Court    | Followed  | Followed on the general principle (undisputed by both parties); its specific observations on restricted-hours surcharge were treated as obiter and not relied on, since that case did not involve a consumer who had in fact used power during restricted hours. |

**Maa Vind Vasini Industries v. Purvanchal Vidyut Vitran Nigam Ltd.** 2008 (1) ADJ 75 : 2008 (2) ALJ 456 (DB) · Allahabad High Court (Division Bench)**PROPOSITION** The Clause 6.8 / s.126 procedure for assessing unauthorised use “recording and disclosing the evidence and affording a hearing” must be followed before a valid assessment/demand can be made.

| CITED IN                                                  | CITED BY | TREATMENT | HOW TREATED                                                                                                |
|-----------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------------------------------------|
| <b>SCJ-158</b> Ashok Kumar & Ors. v. State of U.P. & Ors. | Court    | Applied   | Applied; the Court quoted paras 15-16 and followed it on the mandatory nature of the Clause 6.8 procedure. |

**Mirzapur Electric Supply Company Limited v. State of U.P.** AIR 1975 All 29 · Allahabad High Court (Division Bench)

**PROPOSITION** The amount of security demanded is not 'dues' owed as a debt but only an amount demanded as a condition of supply; it cannot be recovered as arrears of land revenue under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958.

| CITED IN                                                                                                                                                            | CITED BY   | TREATMENT | HOW TREATED                                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|-------------------------------------------------------------------------------|
| <b>SCJ-252</b> Tehri Girders Limited and another v. Paschimanchal Vidyut Vitran Nigam Limited and others (with R.A. Castings, Sikka Papers and connected petitions) | Petitioner | Relied on | Relied on / followed as fully covering the issue that security is not 'dues'. |

**Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd.** 2012 (1) ADJ 296 : (2012) 90 ALR 12 · Allahabad High Court

**PROPOSITION** A report of a laboratory that is not independent “ in particular the meter manufacturer's own lab “ cannot be relied upon; the manufacturer cannot be a judge in its own cause and its lab is not an 'independent laboratory'.

| CITED IN                                         | CITED BY   | TREATMENT | HOW TREATED                                                      |
|--------------------------------------------------|------------|-----------|------------------------------------------------------------------|
| <b>SCJ-161</b> Rituraj v. State of U.P. & Others | Petitioner | Followed  | Followed and quoted (paras 48-52) on the manufacturer-lab point. |

**Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.** (DB) · Allahabad High Court (DB)

**PROPOSITION** A tampered meter is also a 'defective meter' within Clause 5.6 (read with Clause 5.9(a)(ii)); where tampering (a foreign remote-sensing device) was not visible on inspection and was established only by a subsequent committee's opening of the meter, the consumer had a right under Clause 5.6(c)(iii) to independent testing.

| CITED IN                                                                                                  | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                |
|-----------------------------------------------------------------------------------------------------------|------------|---------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-064</b> M/S Santosh Preservation Pvt. Ltd. & Anr. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Anr. | Petitioner | Distinguished | Distinguished “ that case involved tampering not obvious at inspection, established only by later test/committee report, unlike the patent tampering here. |

**Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.** (2014) 105 ALR 603 · Allahabad High Court (Division Bench)

**PROPOSITION** Clause 5.6 applies to tampered meters too and the Clause 5.6(c)(iii) testing-venue option must be offered before testing.

| CITED IN                                         | CITED BY   | TREATMENT | HOW TREATED                                     |
|--------------------------------------------------|------------|-----------|-------------------------------------------------|
| <b>SCJ-161</b> Rituraj v. State of U.P. & Others | Petitioner | Relied on | Relied on. (Digested in the corpus as SCJ-153.) |

**Om Narain Sahu v. U.P. Power Corporation & Others** Writ Petition No. 4545 (M/B) of 2005, order dated 3.1.2013 · Allahabad High Court (Lucknow Bench, DB)

**PROPOSITION** Directed U.P. Power Corporation to refund dues with interest, constitute a committee for time-bound connection processes, hold disciplinary inquiry against responsible officers, with costs for departmental default/delay.

| CITED IN                                                                                         | CITED BY   | TREATMENT | HOW TREATED                                                                                                                                |
|--------------------------------------------------------------------------------------------------|------------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-113</b> Satya Narayan v. U.P. Power Corporation Ltd. thru. its Managing Director & Others | Petitioner | Followed  | Relied on as a companion precedent (same author-Judge) directing systemic reform in response to Power Corporation administrative failures. |

**Pachimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Ors.** Writ Petition No. 6411 (MS) of 2012 · Allahabad High Court (Single Judge)**PROPOSITION** (The other Single-Judge decision consistent with confining the Ombudsman remedy to the consumer.)

| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED                                                                                 |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------------------------|
| <b>SCJ-043</b> Kisan Cold Storage & Ice Factory v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors. (Full Bench reference) | Court    | Referred  | Referred as part of the conflict occasioning the Full Bench reference; approach vindicated. |

**Paschimanchal Vidyut Vitran Nigam Ltd. & Others v. The Appellate Authority/Addl. Commissioner & Anr.** Civil Misc. Writ Petition No. 4222 of 2009, decided 26.3.2010 · Allahabad High Court**PROPOSITION** The 2003 Act's scheme does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso (restoration of supply on deposit of the 'assessed amount') presupposes an assessment under Section 126, covering all categories of unauthorised use including theft; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the theft assessment was correctly made.

| CITED IN                                                                       | CITED BY | TREATMENT | HOW TREATED                                          |
|--------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------|
| <b>SCJ-069</b> M/S Trikoot Iron & Steels Castings Ltd. v. State of U.P. & Ors. | Court    | Followed  | Followed and quoted at length as the core reasoning. |

**Paschimanchal VVNL v. (owner) â€” judgment dated 18.11.2011 in Writ-C No. 20679 of 2010** Writ-C No. 20679 of 2010 (Allahabad HC, 18-11-2011) · Allahabad High Court**PROPOSITION** The owner of premises is a 'consumer' and can be assessed under s.135 for theft on the premises even if let out; the assessment there was valid; the appeal was remanded only to examine the acquittal under Clause 8.2(X)(G)&(H).

| CITED IN                                                                                               | CITED BY   | TREATMENT | HOW TREATED                                                                                                               |
|--------------------------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-179</b> Paschimanchal Vidyut Vitaran Nigam Ltd. & Anr. v. Commissioner, Moradabad Region & Anr. | Petitioner | Relied on | Relied on as the final judgment whose findings the Commissioner was bound by and could not reverse on the limited remand. |

**Pawan Kumar Agrawal v. State of U.P. & Others** Writ Petition No. 31019 of 2007, judgment dated 12.10.2007 · Allahabad High Court**PROPOSITION** M/s Laxmi Cotsyn Ltd. (a textile-dyeing industry) is not covered by Clause 3.4(a) and cannot be compelled to construct an independent feeder at its own cost; it is entitled to a new connection from the existing mixed feeder.

| CITED IN                                                                                                                                                                     | CITED BY                              | TREATMENT     | HOW TREATED                                                                                                                  |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------|---------------|------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-123</b> Sigma Castings Ltd. & Another v. Purvanchal Vidyut Vitran Nigam Ltd. & Others (with Kundan Castings (P) Ltd.; PVVNL v. Vidyut Lokpal; M/s Shyam Ferrous Ltd.) | Petitioners (for discrimination plea) | Distinguished | Distinguished as involving a non-Clause-3.4(a) industry, unlike the petitioners here who conceded coverage by Clause 3.4(a). |

**Poonam Devi (Smt.) v. Chief Engineer, Electricity Board and others** (2004) 3 U.P.L.B.E.C. 2292 · Allahabad High Court**PROPOSITION** Similar view as Shakuntala Devi on the legally wedded wife's entitlement over a nominee second wife.

| CITED IN                                             | CITED BY | TREATMENT | HOW TREATED                                                                       |
|------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------|
| <b>SCJ-080</b> Manno Singh v. State of U.P. & Others | Court    | Followed  | followed (as general persuasive analogue; not an electricity/Supply Code holding) |

**Prachi Leathers v. U.P. Power Corporation Ltd.** 2003 (6) AWC 5665 · Allahabad High Court

**PROPOSITION** Where power is taken surreptitiously/by theft (rather than under a licensee-sanctioned surcharge arrangement), a penalty rather than a mere surcharge is attracted.

| CITED IN                                                                                                     | CITED BY | TREATMENT | HOW TREATED                                               |
|--------------------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------|
| <b>SCJ-094</b> Northern Coalfield Ltd. v. Chairman and Managing Director, U.P. Power Corporation Ltd. & Ors. | Court    | Followed  | Cited for the surcharge-versus-theft-penalty distinction. |

**Purvanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal (Electricity Ombudsman)** 2008 (5) ALJ 683 : AIR 2008 All 127 · Allahabad High Court (Division Bench)

**PROPOSITION** An Electricity Ombudsman's award (where conciliation/mediation fails) is akin to an arbitral award and challengeable only on limited grounds similar to s.34 of the Arbitration and Conciliation Act, 1996; a settlement by conciliation is challengeable only for want of jurisdiction or fraud.

| CITED IN                                                                                                                 | CITED BY | TREATMENT | HOW TREATED                                                                             |
|--------------------------------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------------|
| <b>SCJ-258</b> Executive Engineer, Electricity Urban Distribution Division IInd v. Electricity Ombudsman, Lucknow & Ors. | Court    | Followed  | Reiterated and followed on the limited scope of interference with an Ombudsman's award. |

**Radha Krishna Cold Storage v. State of U.P. & Others** Writ Petition No. 19574 of 2008 · Allahabad High Court (DB)

**PROPOSITION** An appeal under s.127 lies against an order that is in substance an assessment order under s.126, regardless of whether it is mislabelled as passed under s.135.

| CITED IN                                                     | CITED BY | TREATMENT | HOW TREATED                                                                            |
|--------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------------------|
| <b>SCJ-111</b> Sandeep Kesarwani v. State of U.P. & 3 Others | Court    | Followed  | Followed to confirm s.127 appellate remedy is available for theft-related assessments. |

**Raghvendra Garg v. State of U.P. & 5 Ors.** Writ C No. 14547 of 2016, order dated 14.9.2016 (DB) · Allahabad High Court (DB)

**PROPOSITION** In the absence of a statutory provision, no recovery can be made from the personal assets of a company's director for the company's outstanding dues.

| CITED IN                                                                                   | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                                                                         |
|--------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-090</b> Narendra Singh Panwar v. Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Petitioner | Distinguished | Held inapplicable on the facts, since Clause 4.3(f)(v)/6.15 of the Supply Code furnish the statutory provision authorising recovery against Directors, and (independently) a Director's own personal undertaking/guarantee grounded liability here. |

**Rajesh Kumar Gupta v. State of U.P.** 2005 (1) AWC 474 · Allahabad High Court (Division Bench)

**PROPOSITION** Under the provisions then in force, and in view of a temporary injunction in favour of the tenant, the electricity department could not refuse a connection to the tenant-applicant.

| CITED IN                                                  | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                |
|-----------------------------------------------------------|------------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-236</b> Iftakhar Ahsan v. State of U.P. and others | Petitioner | Distinguished | Distinguished: decided under the pre-2005-Code provisions; superseded by Clause 4.4(a) (vi) of the 2005 Code which makes the owner's consent mandatory, so it does not aid the petitioner. |

**Ravi Shanker Giri v. Sub-Divisional Officer, U.P. Power Corporation Ltd. & Others** 2007 (4) AWC 3934 · Allahabad High Court (DB)**PROPOSITION** Unless there is consent of the owner of the premises (as required under the Supply Code), electricity connection cannot be granted.

| CITED IN                                                               | CITED BY   | TREATMENT | HOW TREATED                                                                                                                                                                                                |
|------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-115</b> Seema Mansoor v. U.P. Power Corporation Ltd. & 3 Others | Respondent | Overruled | Overruled/held not to lay down correct law “decided without noticing ss.42/43 of the Electricity Act, the Code's definition of 'occupier', and Clause 4.4(a)(i)/Annexure 4.2's indemnity-bond alternative. |

**Roshan Lal v. State of U.P.** 2009 (9) ADJ 670 · Allahabad High Court (Division Bench)**PROPOSITION** Existence of an alternative remedy is a self-imposed discipline, not a jurisdictional bar; dismissing a writ on that ground long after filing and exchange of pleadings may shut out the alternative remedy itself and is to be avoided.

| CITED IN                                                                                                     | CITED BY   | TREATMENT | HOW TREATED                            |
|--------------------------------------------------------------------------------------------------------------|------------|-----------|----------------------------------------|
| <b>SCJ-164</b> Parmarth Steels & Alloys (Pvt.) Ltd. & Anr. v. U.P. Power Corporation Ltd. (Transco) & Others | Petitioner | Followed  | Followed and quoted (paras 7, 10, 11). |

**Sardar Hasan Siddique v. State Transport Appellate Tribunal** AIR 1986 All 132 · Allahabad High Court (DB)**PROPOSITION** A tribunal of limited jurisdiction cannot derive jurisdiction apart from the statute; no consent can confer it, and any decision by such a tribunal without jurisdiction is a nullity.

| CITED IN                                                                                    | CITED BY | TREATMENT | HOW TREATED |
|---------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-049</b> M.D., Pakshimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Anr. | Court    | Relied on | Relied on.  |

**Satya Narayan v. U.P. Power Corporation Ltd.** 2013 (5) ADJ 648 · Allahabad High Court**PROPOSITION** Applied Clause 6.15's two-year bar to a stale (12-15 year) electricity-dues recovery.

| CITED IN                                                                  | CITED BY | TREATMENT     | HOW TREATED                                                                                                                                                    |
|---------------------------------------------------------------------------|----------|---------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-122</b> Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others | Court    | Distinguished | Distinguished “that case (SCJ-113 in this corpus) did not involve a pre-2003-Act liability, so the Kusumam Hotels temporal-scope point was inapplicable there. |

**Satya Pal v. State of U.P. & Others** 2000 Cr.L.J. 569 · Allahabad High Court (Full Bench)**PROPOSITION** Same standard as above (earlier Full Bench).

| CITED IN                                                  | CITED BY | TREATMENT | HOW TREATED |
|-----------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-102</b> Pawan Kumar Laur v. State of U.P. & Others | Court    | Followed  | Followed.   |

**Seema Mansoor v. U.P. Power Corporation & 3 Others** 2014 (6) ADJ 672 · Allahabad High Court

**PROPOSITION** An occupier (including a tenant) has a statutory right under Sections 42-43 and Clause 4.4 of the Code to apply for and obtain supply; where the owner's consent is absent, the indemnity-bond route (Annexure 4.2) is available.

| CITED IN                                                 | CITED BY   | TREATMENT | HOW TREATED                                                                           |
|----------------------------------------------------------|------------|-----------|---------------------------------------------------------------------------------------|
| <b>SCJ-006</b> Anand Kumar v. State of U.P. & 2 Others   | Court      | Followed  | Followed and relied on to hold the tenant entitled to have the application processed. |
| <b>SCJ-027</b> Gaurav Sharma v. State of U.P. & 4 Others | Petitioner | Followed  | Followed as the governing authority on the occupier's entitlement.                    |

**Seema Mansoor v. U.P. Power Corporation Ltd.** Writ - C No. 28295 of 2014 (Allahabad HC, Division Bench) · Allahabad High Court (Division Bench)

**PROPOSITION** An application for a connection cannot be refused for want of the landlord's consent; on furnishing an indemnity bond, a lessee/tenant/occupier cannot be refused a connection merely for want of consent of the landlord.

| CITED IN                                             | CITED BY | TREATMENT | HOW TREATED                                         |
|------------------------------------------------------|----------|-----------|-----------------------------------------------------|
| <b>SCJ-212</b> Deepak Jain v. State of U.P. & Others | Court    | Followed  | Followed as the governing Division Bench authority. |

**Shakuntala Devi (Smt.) v. Executive Engineer, Electricity Transmission Ist, U.P. Electricity Board, Allahabad** (2001) 1 U.P.L.B.E.C. 8691 · Allahabad High Court

**PROPOSITION** A nomination in favour of a second wife cannot defeat the legally wedded first wife's claim to retiral benefits, provident fund, and Dying-in-Harness appointment.

| CITED IN                                             | CITED BY | TREATMENT | HOW TREATED                                                                       |
|------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------|
| <b>SCJ-080</b> Manno Singh v. State of U.P. & Others | Court    | Followed  | followed (as general persuasive analogue; not an electricity/Supply Code holding) |

**State of U.P. v. Aditya Prasad Srivastava** 2017 (2) ADJ 554 (DB) (LB) · Allahabad High Court (DB)

**PROPOSITION** Same principle on proof of charges in a departmental inquiry.

| CITED IN                                                             | CITED BY | TREATMENT | HOW TREATED                 |
|----------------------------------------------------------------------|----------|-----------|-----------------------------|
| <b>SCJ-017</b> Dharendra Kumar Chaudhary v. State of U.P. & 5 Others | Court    | Referred  | Referred within the catena. |

**State of U.P. v. Brij Bhushan Sharma** Writ Petition No. 474 (SB) of 2011 (Allahabad HC, DB) · Allahabad High Court (DB)

**PROPOSITION** The practice of the State filing frivolous writ petitions challenging tribunal orders is deprecated.

| CITED IN                                                                                                  | CITED BY | TREATMENT | HOW TREATED                                    |
|-----------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------|
| <b>SCJ-039</b> Kanpur Electricity Supply Co. Ltd. & Anr. v. U.P. Electricity Regulatory Commission & Ors. | Court    | Referred  | Referred to the same effect in imposing costs. |

|                                                                                                             |                 |                  |                             |
|-------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------|
| <b>State of U.P. v. Kishori Lal</b> 2018 (9) ADJ 397 (DB) (LB) · Allahabad High Court (DB)                  |                 |                  |                             |
| <b>PROPOSITION</b> Same principle on the Establishment's burden to prove charges in a departmental inquiry. |                 |                  |                             |
| <b>CITED IN</b>                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>          |
| <b>SCJ-017</b> Dhirendra Kumar Chaudhary v. State of U.P. & 5 Others                                        | Court           | Referred         | Referred within the catena. |

  

|                                                                                                                                    |                 |                  |                                                               |
|------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------|
| <b>State of U.P. v. Suresh Kumar</b> Writ Petition No. 506 (S/B) of 2011 (Allahabad HC, DB) · Allahabad High Court (DB)            |                 |                  |                                                               |
| <b>PROPOSITION</b> The State and its instrumentalities should refrain from filing frivolous petitions that waste the Court's time. |                 |                  |                                                               |
| <b>CITED IN</b>                                                                                                                    | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                            |
| <b>SCJ-039</b> Kanpur Electricity Supply Co. Ltd. & Anr. v. U.P. Electricity Regulatory Commission & Ors.                          | Court           | Referred         | Referred to deprecate the licensee's frivolous writ petition. |

  

|                                                                                                                                                                  |                 |                  |                                                                                         |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------|
| <b>Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.</b> Writ Petition No. 51844 of 2009 (interim order dated 7.10.2009) · Allahabad High Court |                 |                  |                                                                                         |
| <b>PROPOSITION</b> Interim order restraining demand of additional security under the Code pending adjudication.                                                  |                 |                  |                                                                                         |
| <b>CITED IN</b>                                                                                                                                                  | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                      |
| <b>SCJ-175</b> M/s Forntier Alloy Steels Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others                                                               | Petitioner      | Followed         | Followed for granting identical interim relief; the present petition connected with it. |

  

|                                                                                                                                                                                     |                 |                  |                                                                                        |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------------------|
| <b>Tanveer Azam v. State of U.P. &amp; Others (also cited as Iftikhar Ahsan v. State of U.P.)</b> Writ Petition No. 71425 of 2013, order dated 3.1.2014 · Allahabad High Court (DB) |                 |                  |                                                                                        |
| <b>PROPOSITION</b> Same as Ravi Shankar Giri “owner's consent required under the Code for grant of electricity connection.                                                          |                 |                  |                                                                                        |
| <b>CITED IN</b>                                                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                     |
| <b>SCJ-115</b> Seema Mansoor v. U.P. Power Corporation Ltd. & 3 Others                                                                                                              | Respondent      | Overruled        | Overruled/held not to lay down correct law, for the same reasons as Ravi Shankar Giri. |

  

|                                                                                                                                                                                                                                                                                                         |                 |                  |                                                                            |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------------------------|
| <b>Tehri Girders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</b> 2009 (9) ADJ 19 (2009 SCC OnLine All 1262) · Allahabad High Court (Division Bench)                                                                                                                                                  |                 |                  |                                                                            |
| <b>PROPOSITION</b> Clause 4.49 speaks of 'recovery of any dues'; additional security is not a recoverable due, its only consequence on non-payment being non-release of load / discontinuance of supply, so Clause 4.49 is not attracted and no bank guarantee for additional security can be demanded. |                 |                  |                                                                            |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                         | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                         |
| <b>SCJ-250</b> Barnala Steel Industries Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd. and Anr.                                                                                                                                                                                                        | Petitioner      | Followed         | Followed as a binding coordinate-bench decision (no SLP filed against it). |

|                                                                                                                                                                                                                                                                                                                                 |                 |                  |                                              |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------|
| <b>Torrent Power Ltd. v. State of U.P.</b> Civil Misc. Writ Petition No. 41139 of 2012, decided 4-12-2013 (Allahabad HC) · Allahabad High Court (Single Judge)                                                                                                                                                                  |                 |                  |                                              |
| <b>PROPOSITION</b> A Permanent Lok Adalat can entertain a compoundable-offence electricity dispute for conciliation, but on failure of conciliation cannot decide it on merits under s.22-C(8), because that provision ousts adjudicatory jurisdiction over any dispute relating to an offence irrespective of compoundability. |                 |                  |                                              |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                                 | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                           |
| <b>SCJ-159</b> Pashchimanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat, Moradabad & Anr.                                                                                                                                                                                                                                | Petitioner      | Followed         | Followed, the Court being in full agreement. |

|                                                                                                                                                                                         |                 |                  |                    |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>Vinod Kumar v. State of Uttar Pradesh</b> Allahabad High Court (Full Bench)                                                                                                          |                 |                  |                    |
| <b>PROPOSITION</b> Sets out the special-circumstances test for entertaining a s.438 Cr.P.C. application directly before the High Court without first approaching the Court of Sessions. |                 |                  |                    |
| <b>CITED IN</b>                                                                                                                                                                         | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-131</b> Sunil Kumar v. State of U.P. And Another                                                                                                                                 | Court           | Followed         | Applied.           |

|                                                                                                                                                                                                                                     |                 |                  |                                                       |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------|
| <b>Vishanji Tokarsi v. Collector, Kanpur Nagar</b> 2001 (43) ALR 96 · Allahabad High Court (DB)                                                                                                                                     |                 |                  |                                                       |
| <b>PROPOSITION</b> Once a demand notice is sent by registered post under the 1958 Dues Recovery Act, a claim of non-service/non-receipt cannot be accepted; Explanation 1 to s.3 deems registered-post dispatch sufficient service. |                 |                  |                                                       |
| <b>CITED IN</b>                                                                                                                                                                                                                     | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                    |
| <b>SCJ-122</b> Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others                                                                                                                                                           | Court           | Followed         | Applied to reject the petitioner's non-receipt claim. |

|                                                                                                                                                                                                                                                             |                 |                  |                          |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------|
| <b>Vivekanand Yadav v. State of U.P. &amp; Anr.</b> 2010 (10) ADJ 1 (FB) · Allahabad High Court (Full Bench)                                                                                                                                                |                 |                  |                          |
| <b>PROPOSITION</b> Sets out the complete procedural framework for preliminary/fact-finding enquiry and final removal enquiry under s.95(1)(g) of the U.P. Panchayat Raj Act, 1947 and the 1997 Enquiry Rules, including who qualifies as 'Enquiry Officer'. |                 |                  |                          |
| <b>CITED IN</b>                                                                                                                                                                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>       |
| <b>SCJ-140</b> Usha Devi (Smt.) v. State of U.P. & 2 Others                                                                                                                                                                                                 | Court           | Followed         | Followed as controlling. |

|                                                                                                                                                                    |                 |                  |                                                                         |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------|
| <b>Wig Brothers (Builders &amp; Engineers) (P) Ltd. &amp; Anr. v. Union of India &amp; Ors.</b> (2003) 3 Company Law Journal 328 (All) · Allahabad High Court (DB) |                 |                  |                                                                         |
| <b>PROPOSITION</b> Payment of interest is a necessary corollary to the retention of an amount; it is neither penal nor confiscatory.                               |                 |                  |                                                                         |
| <b>CITED IN</b>                                                                                                                                                    | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                      |
| <b>SCJ-055</b> M/S Hind Industries Limited v. State of U.P. & Ors.                                                                                                 | Court           | Relied on        | Relied on to justify charging interest on the long-evaded assessed sum. |



Other High Courts 25 authorities · 25 citations

*M/s. Classic Color Lab v. Assistant Engineer and Others (Kerala HC)* 2014 (3) KLT 57 · Kerala High Court (Division Bench)

**PROPOSITION** Following Seetaram Rice Mill, an assessment under s.126(6) for unauthorised use (there, industrial-tariff electricity misused for commercial purposes) must be at the rate applicable to the higher-tariff category actually used, not the consumer's nominal category; a purposive (not textual) interpretation of s.126 is required.

| CITED IN                                                                                                                | CITED BY | TREATMENT | HOW TREATED                                                                                                                                                                                                                                                                                                   |
|-------------------------------------------------------------------------------------------------------------------------|----------|-----------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals) | Court    | Followed  | Approved as correctly decided by the Kerala High Court below (and effectively reaffirmed by the Supreme Court), while the Kerala High Court's later attempt in the present case to carve out a fixed-charges-only exception for 'mere overdrawal' cases was rejected as inconsistent with the same reasoning. |

*M/s JMD Alloys Limited v. Bihar State Electricity Board* AIR 2009 (Patna) 26 · Patna High Court

**PROPOSITION** Sending a disputed Secure Meter for testing to its manufacturer's own accredited laboratory is likely to create a strong bias in favour of the supplier/manufacturer, even if the laboratory is accredited.

| CITED IN                                            | CITED BY   | TREATMENT | HOW TREATED                                                                                                          |
|-----------------------------------------------------|------------|-----------|----------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-059</b> M/S Modern Rice Mill v. MVVNL & Anr. | Petitioner | Followed  | Followed to hold that the manufacturer's testing report cannot be relied upon as an 'independent laboratory' report. |

*Arup Sarkar v. C.E.S.C. Limited and Others* 2020 STPL 4200 Calcutta (Writ Petition No. 18367 of 2019, decided 11.2.2020) · Calcutta High Court

**PROPOSITION** A litigation lawyer's chambers, used for livelihood based on personal professional skill, is not commercial activity; directed billing under 'Domestic (Urban)' category.

| CITED IN                                                                                                                            | CITED BY | TREATMENT | HOW TREATED                                                  |
|-------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------|
| <b>SCJ-133</b> Tehsil Bar Association, Sadar Tehsil Parisar, Gandhi Nagar, Ghaziabad v. U.P. Power Corporation Limited And 3 Others | Court    | Followed  | Followed as directly analogous precedent from another State. |

*Awadesh S. Pandey v. Tata Power Corporation Ltd.* AIR 2007 Bom 52 · Bombay High Court

**PROPOSITION** Section 56(2)'s two-year bar limits only the special coercive remedy of disconnection under s.56(1); it does not extinguish the underlying debt or bar recovery of a sum falling within two years of the demand, and does not preclude independent recovery by suit.

| CITED IN                                                                  | CITED BY | TREATMENT | HOW TREATED                                                                                                                                                                       |
|---------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-122</b> Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others | Court    | Followed  | Cited as persuasive authority on the limited scope of s.56(2), though the Court found the broader question of Paliwal Alloys' correctness academic on the facts and left it open. |

**B.N. Magon v. South Delhi Municipal Corporation** 217 (2015) DLT 55 · Delhi High Court**PROPOSITION** Cited by petitioner in support of the profession/commercial-activity distinction.

| CITED IN                                                                                                                            | CITED BY | TREATMENT | HOW TREATED |
|-------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-133</b> Tehsil Bar Association, Sadar Tehsil Parisar, Gandhi Nagar, Ghaziabad v. U.P. Power Corporation Limited And 3 Others | Court    | Referred  | Cited.      |

**Bharat Barrel & Drum Manufacturing Co. Pvt. Ltd. v. Municipal Corporation of Greater Bombay** AIR 1978 Bom 369 · Bombay High Court**PROPOSITION** There is no limitation for making a demand by way of supplementary bill; constructive res judicata does not apply to bar a supplementary demand for previously unclaimed misuse charges.

| CITED IN                                                                  | CITED BY | TREATMENT | HOW TREATED                                               |
|---------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------|
| <b>SCJ-122</b> Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others | Court    | Followed  | Approved and applied (as endorsed by Swastic Industries). |

**Bimal Kumar Gupta v. Special Police Establishment Lokayukt** 2001 (1) MPHT 330; (2001) 3 JLJ 2 · Madhya Pradesh High Court (Single Judge)**PROPOSITION** Employees of the Madhya Pradesh State Electricity Board are not 'public servants' for purposes of prosecution under the Prevention of Corruption Act, since s.81 of the 1948 Act only deems them public servants under IPC s.21, and a 'deemed provision' cannot extend to another statute (relying on State of Maharashtra v. Laljit Rajashi Shah).

| CITED IN                                                     | CITED BY   | TREATMENT | HOW TREATED                                                                                                                                                                                                                   |
|--------------------------------------------------------------|------------|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-091</b> Naresh Kumar Madan v. State of Madhya Pradesh | Petitioner | Overruled | Overruled â€” held not to lay down the correct law; the 1988 Act's own broader 'public servant' definition (s.2(1)(c)(iii)) independently captures Board employees regardless of the 1948 Act's IPC-specific deeming fiction. |

**Citizen Forum Maharashtra v. State of Maharashtra** W.P. No. 3701 of 2007, Bombay High Court (Nagpur Bench), decided 12.2.2008 · Bombay High Court**PROPOSITION** Upheld the power of a distribution licensee to appoint a distribution franchisee for consumer benefit.

| CITED IN                                                                              | CITED BY | TREATMENT | HOW TREATED                                                                                    |
|---------------------------------------------------------------------------------------|----------|-----------|------------------------------------------------------------------------------------------------|
| <b>SCJ-136</b> Torrent Power Limited v. U.P. Electricity Regulatory Commission & Ors. | Court    | Referred  | Noted/cited by the distribution licensees in support of the franchisee arrangement's validity. |

**Global Feeds Feedback Energy Distribution Company Private Ltd. v. Government of Odisha** 2019 SCC OnLine Ori 205 · Orissa High Court**PROPOSITION** The contractual terms between a distribution licensee and its franchisee are privy to those parties, absent a specific statutory provision regulating that relationship.

| CITED IN                                                                              | CITED BY | TREATMENT | HOW TREATED |
|---------------------------------------------------------------------------------------|----------|-----------|-------------|
| <b>SCJ-136</b> Torrent Power Limited v. U.P. Electricity Regulatory Commission & Ors. | Court    | Followed  | Followed.   |

|                                                                                                                       |            |               |                                                                                               |
|-----------------------------------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------------------------------------------------------|
| <b>Hotel Adityaz Ltd. v. M.P. Kshetra Vidyut Vitran Co. Ltd.</b> AIR 2016 (NOC) 39 (M.P.) · Madhya Pradesh High Court |            |               |                                                                                               |
| PROPOSITION Theft cases fall only under Section 135, and Section 126 has no application to them.                      |            |               |                                                                                               |
| CITED IN                                                                                                              | CITED BY   | TREATMENT     | HOW TREATED                                                                                   |
| SCJ-042 West Bengal State Electricity Distribution Co. Ltd. (WBSEDCL) v. M/s Orion Metal Pvt. Ltd.                    | Respondent | Distinguished | Distinguished – the view that Section 126 has no application to theft cases was not accepted. |

|                                                                                                                                                                                                    |          |           |                                                                                               |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------------------|
| <b>JMD Alloys Ltd.</b> Patna High Court                                                                                                                                                            |          |           |                                                                                               |
| PROPOSITION Sending a meter for testing to the accredited laboratory of its manufacturer/supplier (Secure Meters Ltd.) is likely to create a strong bias on the part of the supplier/manufacturer. |          |           |                                                                                               |
| CITED IN                                                                                                                                                                                           | CITED BY | TREATMENT | HOW TREATED                                                                                   |
| SCJ-161 Rituraj v. State of U.P. & Others                                                                                                                                                          | Court    | Referred  | Noticed within the quoted Modern Rice Mill extract in support of the manufacturer-bias point. |

|                                                                                                                                    |            |           |                                                                                                                              |
|------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------------------------------------------------------------------|
| <b>K. Sambasivaraju v. M.V.S.R. Chandrayya Chetty</b> AIR 1967 Andhra Pradesh 87 · Andhra Pradesh High Court (Division Bench)      |            |           |                                                                                                                              |
| PROPOSITION The word 'instrument' (as in s.2(14) of the Stamp Act, 1899) must receive an extensive meaning including an affidavit. |            |           |                                                                                                                              |
| CITED IN                                                                                                                           | CITED BY   | TREATMENT | HOW TREATED                                                                                                                  |
| SCJ-246 M/s L.M.L. Ltd. v. State of U.P. & Ors.                                                                                    | Petitioner | Relied on | Relied on to hold that the affidavit of undertaking qualified as an 'instrument' acceptable under the unamended Clause 4.49. |

|                                                                                                                                          |          |           |                                   |
|------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|-----------------------------------|
| <b>Kirpa Singh v. Ajaypal Singh</b> 1928 ILR 10 Lahore 165 (FB) · Lahore High Court                                                      |          |           |                                   |
| PROPOSITION Right of appeal governed by law at the date of institution of the suit, not at the date of decision or of filing the appeal. |          |           |                                   |
| CITED IN                                                                                                                                 | CITED BY | TREATMENT | HOW TREATED                       |
| SCJ-008 Aruna Bhargava v. PuVVNL & Another                                                                                               | Court    | Referred  | Referred; approved in Garikapati. |

|                                                                                                                                                                              |          |           |                                                                            |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|----------------------------------------------------------------------------|
| <b>MCD v. H.D. Shourie</b> 53 (1994) DLT 1 · Delhi High Court                                                                                                                |          |           |                                                                            |
| PROPOSITION Electricity charges become due, and limitation for their recovery commences, only when the bill is raised – not from the date of underlying consumption/default. |          |           |                                                                            |
| CITED IN                                                                                                                                                                     | CITED BY | TREATMENT | HOW TREATED                                                                |
| SCJ-122 Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others                                                                                                           | Court    | Followed  | Followed to hold the 2002 violations only 'became due' upon the 2009 bill. |

**Modern Syntax (I) Ltd. v. Debts Recovery Tribunal, Jaipur** AIR 2001 Raj 170 · Rajasthan High Court

**PROPOSITION** The provisions of a Relief Undertaking Act, being meant to sub-serve public interest and prevent unemployment, are to be given a liberal interpretation.

| CITED IN                                                                              | CITED BY   | TREATMENT | HOW TREATED                                                                                 |
|---------------------------------------------------------------------------------------|------------|-----------|---------------------------------------------------------------------------------------------|
| <b>SCJ-038</b> Kanpur Electricity Supply Co. Ltd. & Anr. v. M/s L.M.L. Limited & Ors. | Respondent | Relied on | Relied on (by the respondent) for a liberal, revival-oriented reading of the relief regime. |

**Modern Syntax (I) Ltd. v. Debts Recovery Tribunal, Jaipur** AIR 2001 Rajasthan 170 · Rajasthan High Court (Division Bench)

**PROPOSITION** The effect of a relief-undertaking notification is that any right, obligation or liability accrued before the undertaking was declared a relief undertaking, and any remedy for its enforcement, stands suspended, and all proceedings related thereto pending before any court/tribunal/authority are stayed during the currency of the notification.

| CITED IN                                               | CITED BY   | TREATMENT | HOW TREATED                                                                                                       |
|--------------------------------------------------------|------------|-----------|-------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-246</b> M/s L.M.L. Ltd. v. State of U.P. & Ors. | Petitioner | Relied on | Relied on to hold that the relief-undertaking notification operated as a stay of recovery satisfying Clause 4.49. |

**Nana bin Aba v. Skeku bin Andu** (1908) ILR 32 Bom 337 · Bombay High Court

**PROPOSITION** Followed Colonial Sugar Refining on the vested, substantive nature of the right of appeal.

| CITED IN                                          | CITED BY | TREATMENT | HOW TREATED                            |
|---------------------------------------------------|----------|-----------|----------------------------------------|
| <b>SCJ-008</b> Aruna Bhargava v. PuVVNL & Another | Court    | Referred  | Referred within the line of authority. |

**NDMC v. Karam Chandra Thapar & Brothers Pvt. Ltd.** 162 (2009) DLT (decided 16.7.2009) · Delhi High Court

**PROPOSITION** Liability to pay electricity charges is a statutory liability preserved by s.6 of the General Clauses Act; a bill can be issued even years after consumption.

| CITED IN                                                                  | CITED BY | TREATMENT | HOW TREATED                                                  |
|---------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------|
| <b>SCJ-122</b> Shyam Ferrous Ltd. Gopal Nagar v. State of U.P. & 6 Others | Court    | Followed  | Followed for the statutory-liability-preservation principle. |

**Punjab State Electricity Board v. Guru Nanak Agriculture Engineering Works** AIR 2007 P&H 57 · Punjab and Haryana High Court

**PROPOSITION** Relied on by the plaintiff for the proposition that the civil court's jurisdiction is not barred in such an electricity dispute.

| CITED IN                                                                            | CITED BY   | TREATMENT | HOW TREATED                                                                                    |
|-------------------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------------------------------------|
| <b>SCJ-207</b> Executive Engineer, Distribution Division & Anr. v. Pacific Promoter | Respondent | Doubted   | Respectfully disagreed with; the Court held the civil court's jurisdiction is barred by s.145. |

|                                                                                                                                                                         |                 |                  |                    |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>Ramanathan v. State of Kerala</b> 1991 (1) KLJ 410 · Kerala High Court                                                                                               |                 |                  |                    |
| <b>PROPOSITION</b> The profession of a lawyer does not involve commercial or industrial activity, in the context of the Kerala Shops and Commercial Establishments Act. |                 |                  |                    |
| <b>CITED IN</b>                                                                                                                                                         | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-133</b> Tehsil Bar Association, Sadar Tehsil Parisar, Gandhi Nagar, Ghaziabad v. U.P. Power Corporation Limited And 3 Others                                     | Court           | Followed         | Followed.          |

|                                                                                                                                                                                                                      |                 |                  |                    |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------|
| <b>Sakharam Narayan Kherdekar v. City of Nagpur Corporation</b> AIR 1964 Bombay 200 · Bombay High Court (Division Bench)                                                                                             |                 |                  |                    |
| <b>PROPOSITION</b> A lawyer's office is not a commercial establishment under the Bombay Shops and Establishments Act, given the personal-skill, intelligence, and individual-characteristics nature of the activity. |                 |                  |                    |
| <b>CITED IN</b>                                                                                                                                                                                                      | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b> |
| <b>SCJ-133</b> Tehsil Bar Association, Sadar Tehsil Parisar, Gandhi Nagar, Ghaziabad v. U.P. Power Corporation Limited And 3 Others                                                                                  | Court           | Followed         | Followed.          |

|                                                                                                                                                                                                                                                                                                                                                       |                 |                  |                                                                                                     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------|
| <b>Sarwottam Ispat Ltd. v. Southern Power Distribution Company of Telangana Ltd. &amp; Ors.</b> 2016 (6) ALD 162 · High Court of Judicature at Hyderabad (DB)                                                                                                                                                                                         |                 |                  |                                                                                                     |
| <b>PROPOSITION</b> Where pre-paid meters are not installed, it is mandatory for consumers to pay the security deposit demanded; a request for a prepaid meter when none is available does not entitle the consumer to a waiver, and Section 47 does not envisage waiver or an alternative mode of security (e.g. bank guarantee) enforceable by writ. |                 |                  |                                                                                                     |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                                                       | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                  |
| <b>SCJ-053</b> M/S Dev Prayag Paper Mill (Pvt.) & Ors. v. State of U.P. & Ors. (batch of ~90 connected writ petitions)                                                                                                                                                                                                                                | Court           | Followed         | Followed and agreed with in full (the same Chief Justice had been a member of that Division Bench). |

|                                                                                                                                                                                                                                   |                 |                  |                                                                                                                                               |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Sk. Jafar Ali v. West Bengal State Electricity Distribution Company Limited</b> AIR 2010 Cal 84 · Calcutta High Court                                                                                                          |                 |                  |                                                                                                                                               |
| <b>PROPOSITION</b> The phrase 'applicable for the relevant category of services' in s.126(6) should be construed as the rate applicable to the category the consumer belongs to, not the higher category of the unauthorised use. |                 |                  |                                                                                                                                               |
| <b>CITED IN</b>                                                                                                                                                                                                                   | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                            |
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                                                                                           | Court           | Distinguished    | Disagreed with by the Kerala High Court below (a disagreement left undisturbed since the Supreme Court's review was confined to para 31(vi)). |

|                                                                                                                                                                                                                                                             |                 |                  |                                                                                                                                                         |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Tirumala Modern Rice Mill v. Transmission Corporation of A.P. Ltd. (AP Transco)</b> AIR 2007 AP 265 · Andhra Pradesh High Court                                                                                                                          |                 |                  |                                                                                                                                                         |
| <b>PROPOSITION</b> Parts XIV/XV of the Electricity Act do not contemplate provisional assessment of energy pilfered in theft cases; where a consumer accepts and deposits a provisional assessment without demur, no further liability/action may be taken. |                 |                  |                                                                                                                                                         |
| <b>CITED IN</b>                                                                                                                                                                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                      |
| <b>SCJ-111</b> Sandeep Kesarwani v. State of U.P. & 3 Others                                                                                                                                                                                                | Petitioner      | Distinguished    | Held not to lay down the proposition that s.126 assessment is inapplicable to theft cases; distinguished as not supporting the petitioner's submission. |

|                                                                                                           |            |               |                                               |
|-----------------------------------------------------------------------------------------------------------|------------|---------------|-----------------------------------------------|
| <b>Wonder Jupiterchit, In re</b> 1992 (74) CC 215 (Kerala) · Kerala High Court                            |            |               |                                               |
| PROPOSITION Cited by a secured creditor on the scope of expenses recoverable from the liquidation estate. |            |               |                                               |
| CITED IN                                                                                                  | CITED BY   | TREATMENT     | HOW TREATED                                   |
| SCJ-152 U.P. State Cement Corporation Ltd. (In Liquidation), In re                                        | Respondent | Distinguished | Held not applicable to the facts of the case. |

Statutes, Tribunals, Treatises & Other13 authorities · 13 citations

|                                                                                                                                                 |            |           |                                                                                                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------|------------|-----------|------------------------------------------------------------------------------------------------------|
| <b>M/s Uttarakhand Power Corporation Ltd. v. M/s Shyam Baba Developers &amp; Builders Pvt. Ltd.</b> Company Appeal (AT) No. 346 of 2023 · NCLAT |            |           |                                                                                                      |
| PROPOSITION K.C. Ninan is not applicable where the electricity authority has filed a claim in liquidation proceedings.                          |            |           |                                                                                                      |
| CITED IN                                                                                                                                        | CITED BY   | TREATMENT | HOW TREATED                                                                                          |
| SCJ-054 M/S Dharti Agro Industries Pvt. Ltd. v. The Managing Director, Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others                       | Petitioner | Followed  | Relied on by the petitioner and accepted by the Court to confine K.C. Ninan outside the IBC context. |

|                                                                                                                                                        |          |           |                                          |
|--------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|------------------------------------------|
| <b>Black’s Law Dictionary (5th Edn.)</b> Dictionary                                                                                                    |          |           |                                          |
| PROPOSITION 'Temporary' is that which is to last for a limited time only, as distinguished from that which is perpetual or indefinite in its duration. |          |           |                                          |
| CITED IN                                                                                                                                               | CITED BY | TREATMENT | HOW TREATED                              |
| SCJ-166 Hyundai Engineering and Construction Co. Ltd. v. State of U.P. & Others                                                                        | Court    | Referred  | Referred to construe 'temporary supply'. |

|                                                                                                       |          |           |                                           |
|-------------------------------------------------------------------------------------------------------|----------|-----------|-------------------------------------------|
| <b>Broom’s Legal Maxims (10th Edn.), p. 191</b> Treatise                                              |          |           |                                           |
| PROPOSITION No man shall take advantage of his own wrong “ recognised in courts of law and of equity. |          |           |                                           |
| CITED IN                                                                                              | CITED BY | TREATMENT | HOW TREATED                               |
| SCJ-001 Indian Oil Corporation Ltd. v. State of U.P. & 3 Others                                       | Court    | Referred  | Extracted (¶ 56) in support of the maxim. |

|                                                                                                                                                        |          |           |                                                                                                  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|--------------------------------------------------------------------------------------------------|
| <b>Chandler v. D.P.P.</b> [1964] A.C. 763 · House of Lords                                                                                             |          |           |                                                                                                  |
| PROPOSITION Side notes/marginal headings cannot be used as an aid to statutory construction; they are mere catchwords, not enacted as part of the Act. |          |           |                                                                                                  |
| CITED IN                                                                                                                                               | CITED BY | TREATMENT | HOW TREATED                                                                                      |
| SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr.                                                                                                           | Court    | Relied on | Relied on for the marginal-heading principle applied to Clause 5.6's 'Defective Meters' heading. |

|                                                                                                                                                                                                                                                                                                                                              |                 |                  |                                                                                                                   |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|-------------------------------------------------------------------------------------------------------------------|
| <b>City Corporation Limited v. Maharashtra Electricity Regulatory Commission and Anr.</b> 2024 SCC OnLine APTEL 103 · Appellate Tribunal for Electricity                                                                                                                                                                                     |                 |                  |                                                                                                                   |
| <b>PROPOSITION</b> A distribution franchisee is the agent of the distribution licensee (its principal); the licensee alone is accountable to consumers and to the ERC's regulatory jurisdiction; an ERC lacks jurisdiction to adjudicate a petition filed by a franchisee, or to apply a licensee's tariff order to the franchisee directly. |                 |                  |                                                                                                                   |
| <b>CITED IN</b>                                                                                                                                                                                                                                                                                                                              | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                |
| <b>SCJ-136</b> Torrent Power Limited v. U.P. Electricity Regulatory Commission & Ors.                                                                                                                                                                                                                                                        | Court           | Followed         | Followed and extensively quoted as establishing the agency framework governing licensee-franchisee relationships. |

|                                                                                                                                                                                                    |                 |                  |                                                          |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------------------------|
| <b>Colonial Sugar Refining Co. Ltd. v. Irving</b> (1905) AC 369 · Privy Council                                                                                                                    |                 |                  |                                                          |
| <b>PROPOSITION</b> The right of appeal is a substantive right that vests on the initiation of proceedings; only procedural statutes may be retrospective, not those affecting the right of appeal. |                 |                  |                                                          |
| <b>CITED IN</b>                                                                                                                                                                                    | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                       |
| <b>SCJ-008</b> Aruna Bhargava v. PuVVNL & Another                                                                                                                                                  | Court           | Referred         | Referred as the foundational statement of the principle. |

|                                                                                                                                                                               |                 |                  |                                                                                                                                                                                                |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Dakshin Haryana Bijli Vitran Nigam Ltd. &amp; Ors. v. Megh Raj</b> Revision Petition No. 3144 of 2007, decided 11.9.2008 · National Consumer Disputes Redressal Commission |                 |                  |                                                                                                                                                                                                |
| <b>PROPOSITION</b> The power to compound under Section 152 presupposes a pending prosecution, acceptance of the sum amounting to an acquittal.                                |                 |                  |                                                                                                                                                                                                |
| <b>CITED IN</b>                                                                                                                                                               | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                                                                                                                                             |
| <b>SCJ-003</b> Abhinav Seva Sansthan Mahavidyalaya v. U.P. Power Corporation Nigam Ltd. & Ors.                                                                                | Petitioner      | Distinguished    | Distinguished / confined “read as applicable only to compounding under s.152(3), where a prosecution is pending; it does not govern s.152(2) compounding before any prosecution is instituted. |

|                                                                                                                                                                           |                 |                  |                                        |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|----------------------------------------|
| <b>Delhi Cloth &amp; General Mills Co. Ltd. v. Income Tax Commissioner, Delhi</b> ILR 9 Lahore 284 · Privy Council                                                        |                 |                  |                                        |
| <b>PROPOSITION</b> Only a statute dealing with procedure may have retrospective effect; a statute conferring substantive rights, including the right of appeal, does not. |                 |                  |                                        |
| <b>CITED IN</b>                                                                                                                                                           | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                     |
| <b>SCJ-008</b> Aruna Bhargava v. PuVVNL & Another                                                                                                                         | Court           | Referred         | Referred within the line of authority. |

|                                                                                                                                                                                                                                                             |                 |                  |                                                                          |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------|--------------------------------------------------------------------------|
| <b>McEldowney v. Forde</b> (1971) AC 632 · House of Lords                                                                                                                                                                                                   |                 |                  |                                                                          |
| <b>PROPOSITION</b> In reviewing subordinate legislation's validity, a court's task is threefold: determine the meaning of the enabling words, determine the meaning of the subordinate legislation, and decide whether the latter complies with the former. |                 |                  |                                                                          |
| <b>CITED IN</b>                                                                                                                                                                                                                                             | <b>CITED BY</b> | <b>TREATMENT</b> | <b>HOW TREATED</b>                                                       |
| <b>SCJ-147</b> Kerala State Electricity Board & Ors. v. Thomas Joseph Alias Thomas M.J. & Ors. (with connected appeals)                                                                                                                                     | Court           | Referred         | Cited (Lord Diplock) for the analytical framework of ultra vires review. |

**North Delhi Power Ltd. (NDPL) v. DERC** 2007 ELR (APTEL) 193 · Appellate Tribunal for Electricity

**PROPOSITION** Restricting a utility's claim by disallowing reasonably anticipated expenditure and deferring it to the truing-up exercise is not prudence; truing up only fills the gap between actual and anticipated expenses.

| CITED IN                                                                           | CITED BY | TREATMENT | HOW TREATED                |
|------------------------------------------------------------------------------------|----------|-----------|----------------------------|
| <b>SCJ-010</b> BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission | Court    | Relied on | Relied on and agreed with. |

**P. Ramanatha Aiyar's Advanced Law Lexicon (4th Edn.)** Dictionary

**PROPOSITION** 'Temporary' means lasting for a time only; existing or continuing for a limited time; not of long duration; not permanent; transitory.

| CITED IN                                                                               | CITED BY | TREATMENT | HOW TREATED                                                                       |
|----------------------------------------------------------------------------------------|----------|-----------|-----------------------------------------------------------------------------------|
| <b>SCJ-166</b> Hyundai Engineering and Construction Co. Ltd. v. State of U.P. & Others | Court    | Referred  | Referred to construe 'temporary supply' in the absence of a statutory definition. |

**Pashchimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Pvt. Ltd. & Ors. (NCLT Allahabad / NCLAT New Delhi)** Order dated 15.5.2019 · NCLT/NCLAT

**PROPOSITION** Once a liquidation order is passed against a Corporate Debtor, the District Collector cannot separately recover/auction the Corporate Debtor's property for electricity dues under ss.173/174 of the Electricity Act, 2003, since IBC (a later Parliamentary Act) overrides; the electricity authority's remedy is to file a claim before the liquidator.

| CITED IN                                                                                   | CITED BY   | TREATMENT     | HOW TREATED                                                                                                                                                                                                        |
|--------------------------------------------------------------------------------------------|------------|---------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SCJ-090</b> Narendra Singh Panwar v. Pashchimanchal Vidyut Vitran Nigam Ltd. & 2 Others | Petitioner | Distinguished | Relied on by the petitioner as squarely applicable, but distinguished â€” that ruling concerned recovery from the Corporate Debtor's own assets/estate, not a Director's independent personal-guarantee liability. |

**State Load Despatch Centre v. GERC** 2015 SCC OnLine APTEL 50 · Appellate Tribunal for Electricity

**PROPOSITION** 'Truing up' means the adjustment of actual amounts incurred against the estimated/projected amounts determined under the ARR.

| CITED IN                                                                           | CITED BY | TREATMENT | HOW TREATED                   |
|------------------------------------------------------------------------------------|----------|-----------|-------------------------------|
| <b>SCJ-010</b> BSES Rajdhani Power Ltd. v. Delhi Electricity Regulatory Commission | Court    | Referred  | Referred to define truing up. |